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CITY OF BERKELEY

BERKELEY CITY COUNCIL REGULAR MEETING

July 7, 2026

WEBVTT

1
00:00:18.540 --> 00:00:21.370
Boardroom: My mom's here.

2
00:00:21.790 --> 00:00:23.380
Boardroom: Oh, it's also Zoom.

3
00:00:24.500 --> 00:00:26.080
Boardroom: Okay.

4
00:00:30.830 --> 00:00:34.280
Boardroom: What are you doing?

5
00:00:34.400 --> 00:00:41.890
Boardroom: Hello, good evening, everyone. I'm calling to order…

6
00:00:42.490 --> 00:00:54.970
Boardroom: Berkeley City Council meeting today is Tuesday, July 7th, 2026, and it is 6.05 p.m. Can we start off with a roll, please? Okay, Councilmember Kastarwani? Here.

7
00:00:55.090 --> 00:00:57.449
Boardroom: Oh, here, there you are, alright.

8
00:00:57.630 --> 00:00:59.489
Boardroom: And Customer Taplin?

9
00:01:02.420 --> 00:01:03.890
Boardroom: Councilmember Taplin?

10
00:01:05.570 --> 00:01:06.230
Boardroom: is…

11
00:01:06.230 --> 00:01:07.000

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Terry Taplin: Pleasant.

12
00:01:07.000 --> 00:01:15.869
Boardroom: Present. Bartlett is absent. Trega? Present. O'Keefe? I'm here. Blackaby?

13
00:01:16.510 --> 00:01:17.220
Brent Blackaby: Here.

14
00:01:17.750 --> 00:01:37.259
Boardroom: Unapara? Here. Humbert? Present. And Mayor Ishii? Here. Okay. Okay. Thank you very much. So, tonight is the first, City Council meeting of the month, so I will read the land acknowledgement statement. The City of Berkeley recognizes that the community we live in was built on the territory of Huchun.

15
00:01:37.260 --> 00:01:52.370
Boardroom: The ancestral and unceded land of the Chochenyo-speaking Ohlone people, the ancestors and descendants of the sovereign Verona Band of Alameda County. This land was and continues to be of great importance to all of the Ohlone tribes and descendants of the Verona Band.

16
00:01:52.420 --> 00:02:15.989
Boardroom: As we begin our meeting tonight, we acknowledge and honor the original inhabitants of Berkeley, the documented 5,000-year history of a vibrant community at the West Berkeley Shell Mound, and the Ohlone people who continue to reside in the East Bay. We recognize that the Berkeley's residents have and continue to benefit from the use and occupation of this unceded, stolen land since the City of Berkeley's incorporation in 1878.

17
00:02:16.200 --> 00:02:35.700
Boardroom: As stewards of the laws regulating the City of Berkeley, it is not only vital that we recognize the history of this land, but also recognize that the Ohlone people are present members of Berkeley and other East Bay communities today. The City of Berkeley will continue to build relationships with the Lijon tribe, and to create meaningful actions that uphold the intention of this land acknowledgement.

18
00:02:35.940 --> 00:02:58.919
Boardroom: So for this evening, we have two ceremonial matters. One is an adjournment in memory, for Carl Anthony, which was requested by Councilmember Trey Gubb, and, he will read something in a minute. And then also, we have a presentation from Ryan Lau from AC Transit External… he's the AC Transit External Affairs Representative. So I'm going to start us off with our adjournment in memory and pass it over to

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19
00:02:58.920 --> 00:03:00.690
Boardroom: Councilmember Traka.

20
00:03:00.750 --> 00:03:12.379
Boardroom: And, also, I think that, his grandson is here. If you want to come up to the front here, you can come up to the podium. Thank you. And anyone else who's here for the adjournment in memory?

21
00:03:13.480 --> 00:03:16.180
Boardroom: Thank you, Madam Mayor.

22
00:03:17.020 --> 00:03:20.590
Boardroom: Today, we adjourn in memory of…

23
00:03:21.750 --> 00:03:32.749
Boardroom: Today, we are joined in memory of Carl Anthony, a visionary architect, regional planner, author, educator, and one of the nation's pioneers of environmental justice.

24
00:03:33.280 --> 00:03:48.169
Boardroom: Carl Anthony passed away on April 4th, 2026, at the age of 87, leaving behind a legacy that reshaped the way our country approaches environmental stewardship, equity, and community development.

25
00:03:48.360 --> 00:03:56.099
Boardroom: Born in Philly, Carl studied architecture at Columbia University before making the Bay Area his home.

26
00:03:56.100 --> 00:04:08.779
Boardroom: Berkeley became the center of his life's work, where he advanced the belief that every community deserves clean air, safe neighborhoods, affordable housing, and meaningful opportunities to thrive.

27
00:04:09.080 --> 00:04:11.940
Boardroom: As the founding director of Urban Habitat.

28
00:04:12.550 --> 00:04:20.740
Boardroom: Carl helped build one of the nation's leading organizations dedicated to environmental justice and equitable regional planning.

29

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00:04:21.060 --> 00:04:34.489
Boardroom: He later served as president of the Earth Island Institute, co-founded Breakthrough Communities, and brought together diverse leaders to address the challenges facing cities and regions throughout California.

30
00:04:34.860 --> 00:04:38.250
Boardroom: Crow's influence on Berkeley was profound.

31
00:04:38.410 --> 00:04:41.689
Boardroom: As president of the Berkeley Planning Commission.

32
00:04:42.420 --> 00:04:58.020
Boardroom: He… this… this was before we had chairs, we had presidents. He championed thoughtful planning that reflected the needs of all residents and helped shape a more inclusive vision for the city's future.

33
00:04:58.510 --> 00:05:06.579
Boardroom: At UC Berkeley, he inspired generations of students to examine the connections between race, place, and the environment.

34
00:05:06.980 --> 00:05:13.580
Boardroom: Encouraging many of them to pursue lives of public service and civic leadership.

35
00:05:14.180 --> 00:05:16.290
Boardroom: Through his writing, including

36
00:05:17.050 --> 00:05:29.230
Boardroom: The earth, the city, and the hitting narrative of race. Howard challenged readers to think differently about the history of American cities and the importance of creating communities

37
00:05:29.480 --> 00:05:31.549
Boardroom: Where everyone can succeed.

38
00:05:31.690 --> 00:05:50.709
Boardroom: His ideas continue to guide policymakers, planners, educators, and community leaders across the country. Carl Anthony's legacy lives on in the institutions he strengthened, the students and advocates he mentored, and the countless lives he touched.

39
00:05:51.280 --> 00:06:00.460

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Boardroom: We extend our deepest condolences to his family, friends, colleagues, and all who were inspired by his remarkable life.

40
00:06:01.090 --> 00:06:08.550
Boardroom: May he rest in power, and may his enduring example continue to inspire future generations.

41
00:06:11.450 --> 00:06:21.279
Boardroom: Thank you to the Council, for letting me say a few words about my grandfather. My name is, Makai Sloan Anthony, and I am, Carl Anthony's grandson.

42
00:06:21.510 --> 00:06:23.069
Boardroom: So…

43
00:06:23.580 --> 00:06:34.800
Boardroom: Carl moved to Berkeley in the early 70s, where my father was born, and where I was born and raised, just a little less than a mile from here, actually, next to San Pablo Park.

44
00:06:35.810 --> 00:06:43.830
Boardroom: And when I think about my grandfather, it can be very difficult to pick one achievement above all others to highlight from his long and fruitful life.

45
00:06:45.200 --> 00:06:54.100
Boardroom: For one thing, he was the only African-American student at the Columbia University School of Architecture when he first entered into the program in the 1960s.

46
00:06:54.630 --> 00:07:04.689
Boardroom: He went on a tour of HBCUs in order to encourage African American students to enter the prestigious architecture program, and successfully increased applications from black students.

47
00:07:04.860 --> 00:07:09.820
Boardroom: He visited Spain and West Africa in order to study traditional African architecture.

48
00:07:09.970 --> 00:07:14.969
Boardroom: He was an assistant professor of architecture at UC Berkeley College of Environmental Design.

49

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00:07:16.410 --> 00:07:26.979
Boardroom: He co-founded Urban Habitat, which sought to create more multicultural leadership within environmental justice programs. He was a fellow at Harvard University and a published author.

50
00:07:27.150 --> 00:07:38.279
Boardroom: The list goes on and on, but despite all these incredible achievements and awards, by and large, his biggest success is the legacy he left, which is carried through his son, Khalil Dok Anthony.

51
00:07:38.340 --> 00:07:47.639
Boardroom: his niece, Robin Anthony Couyate, and their respective children, myself, Makai, and Robin's children, and Folly and Jasmine Couyate.

52
00:07:48.850 --> 00:08:02.169
Boardroom: It is because of my grandfather that my father is not afraid to express his strong sense of justice. It is because of my grandfather that our generation has such a high standard of excellence and a desire to spread the change that Carl fought his whole life to see.

53
00:08:02.960 --> 00:08:18.440
Boardroom: After a life of fighting for change and a better tomorrow, my grandfather, Carl Cocaine Anthony, finally gets to rest and reconnect with his brother, Louis Edward Anthony Jr, their father, Louis Edward Anthony Sr, and their mother, Mildred Anthony. Thank you.

54
00:08:23.820 --> 00:08:39.580
Boardroom: Thank you very much for sharing, stories of your grandfather and his legacy, and thank you to Councilmember Trey Gob for requesting the adjournment in memory for this evening. I will now invite Ryan up to present, about AC Transit.

55
00:08:40.260 --> 00:08:43.149
Boardroom: And I believe we have a presentation.

56
00:08:46.870 --> 00:08:57.269
Boardroom: I have a whole cohort over here. Wonderful. And just so you know, for some reason, I think, like, one of them has to be on while the other one is, or something. You'll see.

57
00:08:59.100 --> 00:09:10.170
Boardroom: Okay. I'm going to start. So, good evening. I'm Stephen Jones, Director of Legislative Affairs and Community Relations at AC Transit, and it's a real pleasure to be here today.

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58
00:09:10.300 --> 00:09:17.530
Boardroom: Thank you. And to share with you the essential role that AC Transit plays in the everyday lives of people in the neighborhoods of Berkeley.

59
00:09:17.540 --> 00:09:33.089
Boardroom: Alongside members of the AC Transit team, we'll also directly address the current budget challenges that, frankly, without a long-term solution, will impact the bus network that our cities depend on every day. But first, let's start with who we are. Next slide, please.

60
00:09:33.990 --> 00:09:46.210
Boardroom: The Alameda Contra Costa Transit District is not an agency of any East Bay City. We are a special district serving 13 cities and 8 unincorporated communities across Alameda and Contra Costa counties.

61
00:09:46.210 --> 00:10:02.790
Boardroom: We span more than 364 square miles, carry more than 3 million riders each month, and are governed by a publicly elected board of directors. 3 out of 4 riders are people of color, and nearly two-thirds are low-income, making AC Transit an essential lifeline for all the communities that we serve.

62
00:10:02.880 --> 00:10:14.140
Boardroom: It is why, for more than 65 years, we've strategically operated bus facilities in Oakland, Emeryville, Hayward, and Richmond, keeping buses close to the communities that rely on them every day.

63
00:10:14.140 --> 00:10:23.220
Boardroom: It's also why we're proud to have received the top honor as Outstanding Public Transit Transportation System in the United States in 2023. Next slide.

64
00:10:23.400 --> 00:10:40.099
Boardroom: Slide 3, so, okay. So being a top transit agency translates into 40 million rides, every year, so let's unpack that number. That's more than 140,000 riders board on a typical weekday. Weekends are even busier, with more than 160,000 riders.

65
00:10:40.930 --> 00:10:52.220
Boardroom: Each weekday, more than 9,500 commuters rely on AC Transit to cross the bay. And when school returns, at least 30,000 students will depend on us to get safely to and from class each day.

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66
00:10:52.250 --> 00:11:05.870
Boardroom: Riders recognize our affordability and our value, and the numbers prove it. February, March, and April delivered our first three straight months of year-over-year ridership growth since the pandemic. Next slide.

67
00:11:06.100 --> 00:11:25.529
Boardroom: We're also a Workforce First employer. AC Transit supports more than 5,100 jobs across the East Bay. More than half of those jobs are created outside our agency. Together, they generate over $604 million in annual wages, and they inject nearly $1 billion into the East Bay economy every year.

68
00:11:25.570 --> 00:11:33.650
Boardroom: Every bus we operate creates jobs, supports local businesses, and strengthens our communities. Next slide.

69
00:11:34.140 --> 00:11:48.700
Boardroom: While fueling the East Bay economy, we're also cleaning the air. For over a quarter century, AC Transit has led the nation in zero-emission buses. Today, our fleet of 58 zero-emission buses are eliminating any tight tailpipe emissions from our streets.

70
00:11:48.790 --> 00:11:59.129
Boardroom: That leadership earned AC Transit a $40 million federal investment to launch the transit industry's first zero-emission bus university, or ZEBU.

71
00:11:59.140 --> 00:12:11.280
Boardroom: Alongside Chabot College and the Amalgamated Transit Union, Local 192, ZEBU will help our employees earn associate degrees while preparing the clean transit workforce of tomorrow.

72
00:12:12.340 --> 00:12:13.930
Boardroom: Slide 6.

73
00:12:14.060 --> 00:12:31.899
Boardroom: Our riders recognize our value because we're making transit more affordable, faster, and safer. Our E-ZPass program provides unlimited rides at deep discounts for participating employers, colleges, and communities. Clipper Start gives income-eligible adults half off every ride.

74
00:12:31.980 --> 00:12:48.560

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Boardroom: We redesigned 104 bus lines last summer under our Realigned network, cutting travel times by up to 20 minutes, and AI-powered cameras mounted inside buses help keep bus lanes and bus stops clear, improving safety and reliability.

75
00:12:48.710 --> 00:12:49.860
Boardroom: Next slide.

76
00:12:50.700 --> 00:13:06.529
Boardroom: I mentioned that 3 out of 4 AC Transit riders are people of color, and nearly 2 thirds are low-income. So let's put those numbers into perspective. More than half earn less than $50,000 a year below the federal poverty level in one of the nation's most expensive regions.

77
00:13:06.630 --> 00:13:15.639
Boardroom: Many are already struggling to afford the essentials, like housing and transportation. And that helps to explain why 65% of our riders are transit-dependent.

78
00:13:15.820 --> 00:13:30.909
Boardroom: So, any service cuts would not be just an inconvenience, they would upend the lives of those who rely most on AC transit. So I'm now going to turn it over to my colleague, Ryan Lau, who will share more about our deficit projections and potential impacts to service.

79
00:13:31.440 --> 00:13:32.620
Boardroom: Next slide, please.

80
00:13:34.340 --> 00:13:42.399
Boardroom: So you often hear the phrase, good stewards of public dollars. Simply put, it means that, every… we make every taxpayer dollar count.

81
00:13:42.870 --> 00:13:50.049
Boardroom: And we know that when fares go unpaid, it doesn't just… the cost just doesn't disappear. It becomes a funding gap.

82
00:13:50.180 --> 00:13:59.239
Boardroom: And that's why we launched, this month, the Multilingual Fair Required Fare Compliance Campaign. The message is simple.

83
00:13:59.840 --> 00:14:01.760
Boardroom: Pay the fare, protect the bus line.

84

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00:14:02.250 --> 00:14:15.889
Boardroom: Also, a comprehensive state, audit report found that AC Transit Syncs service well with East Bay, other East Bay, bus agencies. Our collective real challenges are sustainable funding, not mismanagement.

85
00:14:16.060 --> 00:14:25.289
Boardroom: What's more, a separate SB63 review confirmed average annual savings of $33 million since 2020.

86
00:14:25.710 --> 00:14:33.360
Boardroom: The commitment to making every taxpayer dollar count is why we have earned a top-tier AA-plus credit rating. Next slide, please.

87
00:14:36.740 --> 00:14:52.499
Boardroom: When the cost of running our bus network rises faster than the revenue supporting it, it results in a fiscal cliff. What's behind it? Federal pandemic relief is gone, regional sales tax revenue has flattened, and the fare revenue growth has slowed. Fuel costs are up 28%,

88
00:14:52.580 --> 00:15:01.629
Boardroom: Bus maintenance parts have increased 14%, and the cost of buying a new bus has surged 35%. You can see, it's lopsided and it's unsustainable.

89
00:15:02.110 --> 00:15:03.329
Boardroom: Next slide, please.

90
00:15:04.110 --> 00:15:24.100
Boardroom: But we are not standing idle. Instead, we're taking action. The last fiscal year alone, we've tightened our belt by $9 million. How do we do that? We hired only for positions that are directly supporting service. We scaled back temporary staffing, saving roughly $2 million annually. We brought outside professional services in-house.

91
00:15:24.250 --> 00:15:35.179
Boardroom: We partnered with other agencies to purchase goods and services for less, and we've even temporarily restructured payments to our pension plan to preserve cash.

92
00:15:35.340 --> 00:15:38.430
Boardroom: We're making every dollar, taxpayer dollar, count.

93
00:15:38.840 --> 00:15:40.069

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Boardroom: Next slide, please.

94
00:15:41.130 --> 00:15:56.269
Boardroom: And the dollars must count, because AC Transit is projecting a $200 million deficit over the next 4 years. That translates to an annual funding gap of at least $50 million beginning in 2027. Without long-term, sustainable funding.

95
00:15:56.320 --> 00:16:01.609
Boardroom: Service reductions of up to 16% become unavoidable, and so would the human impact.

96
00:16:01.670 --> 00:16:08.789
Boardroom: Potential layoffs affecting as many as 300 employees. As you can see, we're facing a looming service

97
00:16:09.160 --> 00:16:11.509
Boardroom: Workforce and community crisis.

98
00:16:12.040 --> 00:16:13.189
Boardroom: Next slide, please.

99
00:16:15.360 --> 00:16:19.939
Boardroom: However, we have been thrown a lifeline. It's not a permanent solution.

100
00:16:20.100 --> 00:16:26.000
Boardroom: It's a state bridge loan, and it's exactly that. A loan, not a bailout, and it must be repaid with interest.

101
00:16:26.140 --> 00:16:32.849
Boardroom: AC Transit's share is $55 million, enough to close this year's budget gap and avoid service cuts today.

102
00:16:33.040 --> 00:16:38.820
Boardroom: But next summer, the loan is gone, reserves are exhausted, and the funding challenges return.

103
00:16:39.020 --> 00:16:53.759
Boardroom: That's why HOPE now rests with the Connect Bay Area Act, or SB63. It's a measure that would ask 5 Bay Area counties to approve a 14-year, half-cent sales tax measure, or 1 cent in San Francisco.

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104
00:16:54.050 --> 00:17:12.300
Boardroom: If approved, it would generate an estimated $980 million annually for Bay Area buses, trains, and ferries. AC Transit would receive approximately $52 million each year, helping to protect existing bus service and preventing layoffs. Without long-term funding, our bus network remains at risk.

105
00:17:12.730 --> 00:17:22.499
Boardroom: To show what that could mean for riders and our communities, I'd like to invite our planning team to provide an overview. Next slide, please.

106
00:17:22.910 --> 00:17:42.839
Boardroom: Thanks, Ryan. Good evening, I'm Robert Del Rosario, Director of Service Development and Planning at AC Transit. In these uncertain financial times, our approach is simple. Plan for the worst and hope for the best. That's why we developed a worst-case scenario contingency service plan. And it's just that, a contingency, and would only take effect if no new long-term funding is secured by December of this year.

107
00:17:42.980 --> 00:17:59.100
Boardroom: If that happens, our priority is protecting as much service as possible. The contingency plan preserves the Realline routing network we launched last summer. Its guiding principles are clear. Minimize route eliminations, protect hours of service, and maintain frequent bus service where riders depend on it most. Next slide, please.

108
00:18:01.540 --> 00:18:20.560
Boardroom: So in the map here, you'll see these are the lines where we're showing some reduction, either in frequency, span of service, or both frequency and span of service. So the proposed contingency plan is designed to protect the most service for the greatest number of riders. Its priority is preserving the backbone of the East Bay, or what AC Transit calls the primary route network.

109
00:18:20.790 --> 00:18:26.590
Boardroom: To achieve that, service reductions are focused where ridership is lowest, minimizing impacts on the greatest number of riders.

110
00:18:26.730 --> 00:18:37.489
Boardroom: The busiest bus lines and major travel corridors remain the highest priority. Weekday service every 15 minutes or better is preserved on key corridors, including Telegraph, Broadway, San Pablo, and International.

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00:18:37.810 --> 00:18:44.800
Boardroom: Where reductions are necessary, the plan first reduces frequency to every 30 minutes or more, rather than eliminating service altogether.

112
00:18:45.080 --> 00:18:53.410
Boardroom: Most routes will continue operating daily from 6am to 10 p.m, maintaining access to work, school, healthcare, and other essential trips.

113
00:18:53.700 --> 00:18:57.669
Boardroom: The strategy protects late evening service, so riders still have a reliable way home.

114
00:18:57.850 --> 00:19:01.539
Boardroom: More than 90% of the bus network remains intact under the proposed plan.

115
00:19:01.780 --> 00:19:02.900
Boardroom: Next slide, please.

116
00:19:05.310 --> 00:19:14.939
Boardroom: The city's busiest corridors will continue to receive frequent, reliable service. Lines 1T, 6, 18, 51A, 51B, 52, 57,

117
00:19:14.940 --> 00:19:32.440
Boardroom: And the 72 suite of routes on the San Palo Corridor would continue operating every 15 minutes or better on weekdays. Most other Berkeley routes would continue operating from 6 a.m. to 10 p.m, with most buses arriving every 30 to 40 minutes on weekdays. Service in the Hills would operate from 7am to 7pm, every 60 minutes on weekdays.

118
00:19:32.440 --> 00:19:33.210
Boardroom: Next slide.

119
00:19:34.320 --> 00:19:46.820
Boardroom: For Transbay, service will be eliminated on weekends for Line F, and peak period trips will be reduced for most other Transbay routes. These include lines G, FS, and J, all traveling through Berkeley. Next slide.

120
00:19:49.320 --> 00:19:58.760

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Boardroom: All-nighter service would remain intact on lines 800, 801, and 851, but low ridership all-nighter lines 802, 805, and 840 would be eliminated.

121
00:19:58.760 --> 00:20:09.390
Boardroom: These routes would be offset by lines 40, 72, and 73, which are the daytime equivalents to these routes, and those would begin service early at 4 AM to serve the period with the highest overnight demand.

122
00:20:09.390 --> 00:20:16.460
Boardroom: It's important to stress again that this plan would only take effect if no new long-term funding is secured by December of 2026.

123
00:20:16.720 --> 00:20:17.680
Boardroom: Next slide.

124
00:20:19.560 --> 00:20:40.479
Boardroom: Here's our timeline for reviewing the plan, bringing it forward to our board for consideration. I'll just touch on some of the key dates. We're expected to set a public hearing in August, and then hold the public hearing through our board of directors in October. The key here is that we need to make a decision on a plan by the end of the year.

125
00:20:40.480 --> 00:20:57.070
Boardroom: So we'll see what happens with, with Election Day, and then come the end of the year, if, we need to seek a long… we're unable to secure long-term revenue, we will have to implement a plan that the board would decide on by the end of the year, and then we implement in June of, 2027.

126
00:20:57.070 --> 00:21:01.069
Boardroom: With that, I'll turn it back over to Steven to close us out. Thank you.

127
00:21:01.330 --> 00:21:15.939
Boardroom: Yeah, thanks. So, in closing, AC Transit wants to hear from Berkeley residents, and here's how we ask them to engage. You can scan the QR code to learn more about our contingency service plan, and you can fill out the feedback form at that

128
00:21:15.940 --> 00:21:38.409
Boardroom: link. You can email us at planning at actransit.org, and as always, you can visit our website, actransit.org, to learn more. So thank

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you so much for your time. We are committed to keeping Berkeley and the East Bay moving, with 40 million trips a year, connecting riders to jobs, schools, and essential services. So thank you again so much for your time.

129
00:21:39.910 --> 00:21:59.320
Boardroom: Thank you so much for the presentation. I really appreciate it. I know it is very challenging, and, I thank you for bringing us the information. It is really important for us to understand, since there are so many riders, the AC Transit riders, here in our city, I just want to check and see if any of my colleagues have questions.

130
00:22:02.190 --> 00:22:24.850
Boardroom: And I'm sure, also, we can reach out if folks have other, more detailed follow-up questions. I do just want to make sure that you send us these, if you haven't already, you may have already sent it, but these surveys to, our emails, so that we can also share them through our newsletters and get it out to the community. I'm also curious how you're interacting with UC Berkeley and Berkeley City College, which are, you know

131
00:22:24.850 --> 00:22:31.460
Boardroom: You know, our two, colleges, universities in the city, in terms of getting this out to them as well.

132
00:22:32.520 --> 00:22:33.790
Boardroom: the survey.

133
00:22:33.920 --> 00:22:44.889
Boardroom: Yeah, we will definitely work with them to make sure to push those out, to, all of our communities, but, you know, Berkeley is special. So we'll make sure to, to,

134
00:22:44.890 --> 00:23:03.659
Boardroom: provide that to them. Thank you, yeah, I know a lot of the students are gone for the summer, and many Berkeley City College students are, you know, commuters, so I want to make sure that they're able to take those surveys. Great! Alright, well, thank you so much. We'll follow up if we have any other questions. Thank you for being here and for the presentation. Appreciate it. Thank you so much.

135
00:23:04.520 --> 00:23:09.450
Boardroom: Okay, very good, thank you all. So now moving on to City Manager comments.

136

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00:23:09.840 --> 00:23:12.860
Boardroom: No comments tonight, Madam Mayor, thank you. Thank you.

137
00:23:13.110 --> 00:23:19.129
Boardroom: I do not see our city auditor, so… And, okay, so we'll now move on to public comment on non-agenda matters.

138
00:23:32.340 --> 00:23:38.130
Boardroom: Okay, so this is public comment on items that are not on the agenda.

139
00:23:38.390 --> 00:23:45.379
Boardroom: I'll pick 5 cards for in-person speakers, and then we'll go to the first

140
00:23:45.610 --> 00:23:52.960
Boardroom: 5 hands raised on the Zoom, and everybody will have one minute Each.

141
00:24:11.370 --> 00:24:12.590
Boardroom: Okay.

142
00:24:16.210 --> 00:24:21.440
Boardroom: So the… Five in-person speakers are…

143
00:24:21.970 --> 00:24:29.690
Boardroom: Steven Alpert, Steve Tracy, Khadija McFall, Russell Bates, and Gina Rieger.

144
00:24:32.990 --> 00:24:36.290
Boardroom: You can come up in any order, whoever's ready, come on up.

145
00:24:55.250 --> 00:24:58.520
Boardroom: Come on up, if you heard your name called. Yep.

146
00:25:04.230 --> 00:25:09.990
Boardroom: I just want to talk about garbage. This was distributed to us.

147
00:25:10.170 --> 00:25:22.189
Boardroom: And in my neighborhood, we try very hard to put our carts out in this order, but we live in a neighborhood where cars routinely move the carts back onto the curb.

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148
00:25:22.220 --> 00:25:37.989
Boardroom: Because they want parking spaces. Even if you try to move the carts back in the right position, you hang around and watch your garbage all morning, there isn't even enough space to do it, because there's so much demand for parking.

149
00:25:37.990 --> 00:25:45.260
Boardroom: I'm describing the 1100 block of Addison Street. I suspect there are other neighborhoods who have this problem, too.

150
00:25:45.260 --> 00:26:01.529
Boardroom: And my concern is that we have been told eventually we will have to pay a charge if we want our garbage to be picked up. I think that's extremely unfair, and I hope you will take this into consideration, and

151
00:26:01.600 --> 00:26:11.049
Boardroom: Look at areas where there is great demand for, parking. Thank you. Thank you. Could you give her a card? Thank you.

152
00:26:11.180 --> 00:26:11.880
Boardroom: Okay.

153
00:26:14.380 --> 00:26:18.820
Boardroom: Honorable Mayor, Council Members,

154
00:26:19.600 --> 00:26:25.279
Boardroom: I'm here once again, to talk about what's going on in

155
00:26:25.820 --> 00:26:30.910
Boardroom: Palestine 48, especially in Gaza, the West Bank.

156
00:26:31.100 --> 00:26:33.100
Boardroom: What's going on in Lebanon?

157
00:26:33.370 --> 00:26:51.380
Boardroom: And congratulate the people of Iran for what they're doing to mitigate the damage that's being done by the Zionist entity in that area. Also, Hezbollah is doing their share. Wars need to stop.

158
00:26:51.630 --> 00:26:53.890

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Boardroom: Every war needs to stop.

159
00:26:54.150 --> 00:26:55.909
Boardroom: Including this war.

160
00:26:56.140 --> 00:26:59.819
Boardroom: going on there. It's very, very discouraging.

161
00:26:59.890 --> 00:27:13.620
Boardroom: For anybody who's a veteran of any war, to see another war going on with people are getting killed and murdered, and it hurts a lot. It makes me sick to my stomach that it is going on.

162
00:27:13.670 --> 00:27:19.950
Boardroom: Please call for a ceasefire for the people of Palestine. Thank you. Thank you. Thank you, Russell.

163
00:27:31.980 --> 00:27:39.909
Boardroom: Good evening. Affordable and, inclusive are targets of the city housing program.

164
00:27:40.430 --> 00:27:51.039
Boardroom: I'm here to review what you guys did in February, which was a win. Both Affordable Annex Inclusive Housing, that was built on Virginia Street.

165
00:27:51.460 --> 00:27:57.139
Boardroom: 2109 Virginia Street. We had 18 units of the 55.

166
00:27:58.840 --> 00:28:01.169
Boardroom: We're affordable, two categories.

167
00:28:02.230 --> 00:28:09.169
Boardroom: Under current code, this project, Patrick Kennedy's project, qualified for a 100% density bonus.

168
00:28:09.440 --> 00:28:15.759
Boardroom: 55 units became 110 units, Under current code.

169
00:28:16.590 --> 00:28:27.309
Boardroom: 3 stories under current code became 8 stories under current code, with the affordable housing on-site. No trust fund.

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170
00:28:29.100 --> 00:28:36.659
Boardroom: where it's designed to be, affordable and inclusive. We don't need upzoning, we just need more of the same. Thanks so much.

171
00:28:44.720 --> 00:28:48.739
Boardroom: Hi, I'm Gina Rieger. I'm going to cede my minute to Stephen Albert.

172
00:28:55.980 --> 00:28:57.120
Boardroom: Two minutes?

173
00:28:57.670 --> 00:29:03.819
Boardroom: I'm Dr. Steven Alpert. On May 19th, Mayor Ishii interrupted by public comment remarks.

174
00:29:04.020 --> 00:29:10.830
Boardroom: The First Amendment Coalition advised that this was a violation of both the Brown Act and the First Amendment right to free speech.

175
00:29:11.010 --> 00:29:20.450
Boardroom: For Government Code 54960, I forwarded a formal cease and desist letter requesting that henceforth the Council will not interrupt public comment remarks.

176
00:29:20.590 --> 00:29:25.450
Boardroom: by our speaker addressing statements or positions publicly made by individual council members.

177
00:29:25.560 --> 00:29:42.609
Boardroom: City has until tomorrow, July 8th, to provide this commitment, which must be approved by the Council in an open session during a regular or special meeting as a separate agenda item, or I can and I will file legal action against the City as recommended by the First Amendment Coalition.

178
00:29:42.800 --> 00:29:50.410
Boardroom: That said, this Council supports the false narrative that building market-rate housing will readily produce affordable units.

179
00:29:50.560 --> 00:29:54.100
Boardroom: Real-world data contradict this.

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180
00:29:54.250 --> 00:30:04.510
Boardroom: As shown in Table 1, the Buckhole study demonstrated that in our area, it takes decades for newly built market-rate housing to filter down and become affordable.

181
00:30:04.670 --> 00:30:16.729
Boardroom: Council members also assert that building market rate improvements invariably will drive down rents. Housing data from nearby Emory refute this, and the YIMBY supply-side etiology that you support.

182
00:30:17.030 --> 00:30:28.120
Boardroom: As reported this April in the Emeryville Tattler, Emeryville went the Yimby way. Now it has the most expensive rent in the East Bay. Building more is supposed to bring cheaper rent. What happened?

183
00:30:28.460 --> 00:30:37.939
Boardroom: Despite massive building between 2020 and 2024, Emoryville had a 16.3% year-over-year increase in one-bedroom rooms.

184
00:30:38.050 --> 00:30:40.029
Boardroom: The largest in the Bay Area.

185
00:30:40.320 --> 00:30:49.879
Boardroom: Our Council's fervor to build more market-rate housing may produce a similar outcome in Berkeley without so much as addressing housing affordability. Thank you.

186
00:30:50.520 --> 00:30:51.710
Boardroom: Thank you.

187
00:30:52.830 --> 00:30:58.000
Boardroom: Okay, now we'll go to the first 5 hands raised on Zoom.

188
00:31:00.700 --> 00:31:08.779
Boardroom: First speaker is… eDisco… eDisconder.

189
00:31:11.440 --> 00:31:14.099
ediskander: Ed… Ed Iskender, can you hear me?

190
00:31:14.360 --> 00:31:15.050
Boardroom: Yes.

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191
00:31:15.270 --> 00:31:24.060
ediskander: Hi, how are you? I want to thank the Honorable Mayor and the City Council. I've been here before, there's an issue with the

192
00:31:24.060 --> 00:31:35.409
ediskander: The coffee shop, the behavior of the proprietor of a coffee shop on the corner of Shattuck Avenue and Kittredge. I will not state his name for legal record. I have now, for almost a year.

193
00:31:35.540 --> 00:31:37.510
ediskander: Been attempting to meet with

194
00:31:38.080 --> 00:31:51.830
ediskander: appropriate city council members, particularly Igor Tregoub, under whose jurisdiction that the location of that coffee shop falls, I believe, and that has been to no avail.

195
00:31:51.950 --> 00:31:55.739
ediskander: And it's really unfortunate, because I hold…

196
00:31:56.330 --> 00:32:00.630
ediskander: Mr. Tragoob, as well as all City Council members in high esteem.

197
00:32:00.750 --> 00:32:16.750
ediskander: and I want this matter, approached in an appropriate manner. This person should be actually, at the end of the day, he should be banned from having any business in Berkeley, and I have police records and video and audio.

198
00:32:16.910 --> 00:32:17.720
ediskander: And…

199
00:32:17.720 --> 00:32:18.360
Boardroom: Thank you.

200
00:32:18.360 --> 00:32:19.070
ediskander: Lots of…

201
00:32:19.070 --> 00:32:21.960
Boardroom: Thanks so much for your… thanks for your comment.

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202
00:32:22.930 --> 00:32:25.800
Boardroom: Next is Alana Auerbach.

203
00:32:28.690 --> 00:32:39.329
Elana Auerbach: Hi there. Dr. Husam Abu Safiya is a Palestinian pediatrician held in Israeli detention without charge since December 2024.

204
00:32:39.530 --> 00:32:46.629
Elana Auerbach: His life is now in imminent danger. He was beaten so badly with hammers and batons…

205
00:32:47.020 --> 00:32:50.920
Elana Auerbach: That last Thursday, his attorney almost didn't recognize him.

206
00:32:50.990 --> 00:32:57.190
Elana Auerbach: Barely breathing, struggling to sit upright with fresh injuries to his head, eyes, ears, and neck.

207
00:32:57.190 --> 00:33:21.479
Elana Auerbach: and repeatedly on the verge of losing consciousness, Dr. Abu Safiya said to his attorney, they brought me here to kill me. I don't see myself surviving. This is the end. I urge you to make an emergency resolution demanding his immediate release. Refer to the email I sent you today. This council spends thousands of dollars every year commemorating the Nazi Holocaust. Never again is often said at those events.

208
00:33:21.590 --> 00:33:30.319
Elana Auerbach: Silence isn't neutrality, it's complicity. There's a growing global outcry for his release. Will you use your voice and position to join that chorus?

209
00:33:30.470 --> 00:33:31.200
Elana Auerbach: Please!

210
00:33:31.200 --> 00:33:32.990
Boardroom: Thank you, Alana, your time's up.

211
00:33:34.000 --> 00:33:37.199
Boardroom: Next is Cheryl Davila, former council member.

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212
00:33:42.300 --> 00:33:45.800
Cheryl Davila, Former Councilmember, Founder CEMTF: In reference to what was just said by Alana.

213
00:33:47.830 --> 00:34:00.070
Cheryl Davila, Former Councilmember, Founder CEMTF: Doctor… Sophia's son is urging the world leaders to secure his release before it's too late.

214
00:34:00.520 --> 00:34:09.880
Cheryl Davila, Former Councilmember, Founder CEMTF: Saying, Dr. Hussam Abu Safawi needs to be released now. You need to save his life before it's too late.

215
00:34:10.409 --> 00:34:12.399
Cheryl Davila, Former Councilmember, Founder CEMTF: Don't. Let.

216
00:34:12.520 --> 00:34:15.290
Cheryl Davila, Former Councilmember, Founder CEMTF: Down a heroic doctor.

217
00:34:15.560 --> 00:34:19.279
Cheryl Davila, Former Councilmember, Founder CEMTF: Please act now. That is a quote.

218
00:34:20.520 --> 00:34:27.889
Cheryl Davila, Former Councilmember, Founder CEMTF: So, what are you gonna do about it? It's been over 555 days. He's detained without charge.

219
00:34:29.570 --> 00:34:35.319
Cheryl Davila, Former Councilmember, Founder CEMTF: It's sad that you all don't care about Palestinians. You need to change your hearts.

220
00:34:35.830 --> 00:34:37.729
Cheryl Davila, Former Councilmember, Founder CEMTF: Show some love!

221
00:34:38.370 --> 00:34:45.370
Cheryl Davila, Former Councilmember, Founder CEMTF: For your community, pay freakin' attention to when people are talking. Get off your cell phones!

222
00:34:45.850 --> 00:34:50.409
Boardroom: Thank you. Thank you. Next is Della Luna.

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223
00:34:54.110 --> 00:35:11.249
Della Luna (she/her) Huichun: Yes, I wanted to suggest that the mayor's office call Mayor Mamdani's office and asked for any guiding tips, or, advice, or any, like, inspirations, because the mayor,

224
00:35:11.910 --> 00:35:28.769
Della Luna (she/her) Huichun: Mom Donnie has been making just amazing goals and surpassing benchmarks in only 6 months. It's truly remarkable. And I think that, you know, any city council, the body, would look up to that in these remarkable changes, and so I just wanted to suggest that

225
00:35:28.870 --> 00:35:32.229
Della Luna (she/her) Huichun: City of Berkeley, connect with,

226
00:35:32.860 --> 00:35:42.460
Della Luna (she/her) Huichun: in, like, a mentorship way, to get maybe the top 10 tips for making headway in the problems that we have here in Berkeley. Thank you.

227
00:35:43.860 --> 00:35:44.910
Boardroom: Thank you.

228
00:35:45.190 --> 00:35:50.140
Boardroom: And the last speaker is, Ted.

229
00:35:50.520 --> 00:35:51.740
Boardroom: Ted Kemp.

230
00:35:56.050 --> 00:36:04.169
Ted Kempf: Thank you very much. My name is Ted Kemp. As you said, I am, the Assistant Director of Albany Berkeley Soccer Club.

231
00:36:04.390 --> 00:36:10.940
Ted Kempf: And it's come to my attention that, there's a couple city agenda items, one being,

232
00:36:11.230 --> 00:36:14.909
Ted Kempf: a bike lane, a dedicated bike lane in Hopkins.

233
00:36:15.230 --> 00:36:22.979
Ted Kempf: Which, of course, there's always need for bike lanes. However, it runs right by, Martin Luther King Jr. Middle School.

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234
00:36:23.180 --> 00:36:25.560
Ted Kempf: And it's a very active…

235
00:36:25.920 --> 00:36:38.019
Ted Kempf: sports use area, and I'd be very concerned about the safety of families and children trying to cross the street and, get into… in and out of the field space, and thought.

236
00:36:38.110 --> 00:36:52.529
Ted Kempf: would ask that, we consider other options. Secondly, as the assistant director at Albany Berkeley Soccer Club, with, a census of over, about 2,000, players.

237
00:36:52.630 --> 00:36:59.500
Ted Kempf: We have been frozen out of equitable space of use for, city fields.

238
00:36:59.500 --> 00:37:00.319
Boardroom: So I'd have to.

239
00:37:00.320 --> 00:37:00.670
Ted Kempf: to be.

240
00:37:00.670 --> 00:37:07.329
Boardroom: Thank you so much for your… thanks for your comment. Your time is up, but feel free to reach out about the fields.

241
00:37:09.520 --> 00:37:11.419
Boardroom: That's it, that's the last,

242
00:37:11.860 --> 00:37:23.780
Boardroom: Okay, thank you very much. We are moving on to our consent calendar. So I would like… sorry? Union public comment? Oh, I'm so sorry. Are there any unions here this evening?

243
00:37:26.670 --> 00:37:32.339
Boardroom: I didn't see any, so… If there's any designated representatives of…

244
00:37:32.930 --> 00:37:36.900
Boardroom: city unions on the Zoom, now would be the time to speak, but…

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245
00:37:37.320 --> 00:37:40.260
Boardroom: I don't see any hands raised.

246
00:37:40.880 --> 00:37:44.200
Boardroom: Okay, my apologies, I didn't see any here in person, so…

247
00:37:44.390 --> 00:37:59.330
Boardroom: Okay, very good. So, are there any comments on the consent calendar? And actually, before we do that, I wanted to move the waterfront-specific plan environmental review authorization and near-term

248
00:37:59.600 --> 00:38:03.780
Boardroom: Priority adjustments, item number 9, to consent.

249
00:38:05.020 --> 00:38:08.359
Boardroom: Oh, Councilmember Taplin, did you have your hands raised?

250
00:38:09.720 --> 00:38:19.200
Terry Taplin: Oh, yes, thank you. I, I support that. I raised my hand because I wanted to, refer everyone's attention to the Supplemental 3 in my office.

251
00:38:20.810 --> 00:38:22.220
Terry Taplin: Submitted.

252
00:38:22.220 --> 00:38:23.550
Boardroom: Oh, thank you.

253
00:38:25.770 --> 00:38:30.369
Terry Taplin: This one is just adding Councilor Caspermani as a co-sponsor to item…

254
00:38:31.760 --> 00:38:36.520
Boardroom: Oh, thank you, I think they're passing something out now. It's item 8 on action. Item 8.

255
00:38:36.750 --> 00:38:40.450
Boardroom: It's the large vehicle parking on action.

256
00:39:03.330 --> 00:39:07.750

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Boardroom: But we would need a motion and a vote to accept this, so…

257
00:39:11.170 --> 00:39:13.060
Boardroom: I'm just… okay.

258
00:39:14.480 --> 00:39:16.129
Boardroom: I'd move to accept it.

259
00:39:18.390 --> 00:39:19.000
Terry Taplin: second.

260
00:39:20.210 --> 00:39:30.209
Boardroom: Can we take the roll on that, please? Okay, to accept the revision from Councilmember Taplin on, item number 8, Large Vehicle Parking, Councilmember Kesarwani?

261
00:39:30.210 --> 00:39:30.960
Rashi Kesarwani: Yes.

262
00:39:31.490 --> 00:39:32.360
Boardroom: Taplin.

263
00:39:32.360 --> 00:39:33.080
Terry Taplin: Aye.

264
00:39:33.250 --> 00:39:38.980
Boardroom: Bartlett? Yes. Trago? Aye. O'Keefe? Yeah. Blackaby?

265
00:39:38.980 --> 00:39:39.670
Brent Blackaby: Yes.

266
00:39:40.230 --> 00:39:45.099
Boardroom: Lunapara? Yes. Humbert? Yes. And Mary Ishii? Yes.

267
00:39:45.150 --> 00:40:00.439
Boardroom: Okay. So, I had just said, though, right before that, which is why I paused, that I wanted to move item number 9 to the consent calendar. So, I believe that we need unanimous consent of the entire Council to do that. So, do we need to take a vote?

268
00:40:00.500 --> 00:40:09.500

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Boardroom: Okay. Is there any opposition… is there any objection to moving it? Okay, very good. Okay, thanks. Are there other comments?

269
00:40:12.290 --> 00:40:13.830
Boardroom: From my Councilmember colleagues.

270
00:40:14.020 --> 00:40:16.210
Boardroom: Yes. Councilmember Humbert.

271
00:40:17.250 --> 00:40:21.890
Boardroom: Yes, thank you, Madam Mayor. I'm wondering also, and I don't know what Councilmember

272
00:40:22.140 --> 00:40:34.340
Boardroom: Taplan thinks about this, but it occurs to me that maybe number 8 could be moved to, the consent calendar as well, the large vehicle parking regulations and the public right-of-way.

273
00:40:34.440 --> 00:40:43.369
Boardroom: It's a referral. It doesn't change. It's not an ordinance or anything like that. I would object to that. You would? Yes. Okay. That's fine.

274
00:40:44.390 --> 00:40:59.819
Boardroom: Okay. And then, I want to thank, Chief Sprague and the City Manager's Office for item number 6, and all of the work that went into that. And then, since 9 is on…

275
00:41:00.040 --> 00:41:07.210
Boardroom: the consent calendar, I want to say that Let's see…

276
00:41:08.750 --> 00:41:15.039
Boardroom: No, excuse me, strike that. No, I'm good. That's it. Thanks. Thank you. Councilmember Brockaby?

277
00:41:18.360 --> 00:41:40.209
Brent Blackaby: Thanks, Madam Mayor. Just a couple of brief comments. First, I want to appreciate both the work of the Police Department as well as the Police Accountability Board in the review of the 2025 Annual Police Equipment Report. Just appreciation that we've now consolidated two reports into one, which was one of the objectives of making the revisions earlier this year.

278

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00:41:40.210 --> 00:41:42.689
Brent Blackaby: while maintaining the Berkeley-specific.

279
00:41:42.730 --> 00:41:58.009
Brent Blackaby: reporting requirements around, deployment of less lethal, not just use, as well as use of handheld pepper spray. So, again, and I… and if you look at the Police Accountability Board's letter, in Supplemental 2,

280
00:41:58.010 --> 00:42:07.120
Brent Blackaby: I think they were also largely in support and appreciation of this, Bonsai report, so thank you for that. Also, just note very briefly from the report that

281
00:42:07.270 --> 00:42:13.190
Brent Blackaby: Over the past year, there's only 13 uses of

282
00:42:13.200 --> 00:42:24.869
Brent Blackaby: less lethal tools, and a total of 61 deployments where you might, you know, show something and not actually use it. Some of those actual deployments were actually out of Berkeley.

283
00:42:24.870 --> 00:42:40.940
Brent Blackaby: And so I, again, I appreciate the detail in the report, and also the fact that this continues to be a very, rare, which is, as intended, rare use of these, less lethal tools, but I appreciate the reporting, on them.

284
00:42:41.020 --> 00:42:50.820
Brent Blackaby: The other item I wanted to comment on was item 4, the Revenue Agreements. Again, appreciation to the police chief and her team for seeking and obtaining these grants.

285
00:42:50.820 --> 00:43:02.760
Brent Blackaby: Which provides $80,000 for crime suppression, community safety initiatives, and staffing of high-impact community events. And so with that, I'd, be supporting the consent calendar. Thank you.

286
00:43:04.140 --> 00:43:07.220
Boardroom: Thank you. Anyone else have comments?

287
00:43:07.980 --> 00:43:11.959
Boardroom: Okay, very good. Can we, go to…

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This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

288
00:43:12.210 --> 00:43:16.439
Boardroom: Any, public comment on consent calendar and information items only, please?

289
00:43:18.870 --> 00:43:24.230
Boardroom: And just as a reminder, we moved item 9 to the consent calendar. Anybody online?

290
00:43:25.150 --> 00:43:27.489
Boardroom: There's two hands raised.

291
00:43:28.270 --> 00:43:38.350
Boardroom: This is for public comments on consent and information items, and also Item 9, the waterfront-specific plan. The first speaker is Marilyn.

292
00:43:44.300 --> 00:43:54.680
Marilyn C: Madam Mayor and members of the City Council, my name is Marilyn Cleveland. I'm a resident of Berkeley and a member of the Berkeley Society of Friends and its Racial Justice Action Team.

293
00:43:54.930 --> 00:44:04.069
Marilyn C: I am concerned to see that City Council Agenda Item Number 5 for the Annual Military Equipment Report required by state law

294
00:44:04.340 --> 00:44:11.060
Marilyn C: Does not appear to include the report from the Police Accountability Board concerning its review of the report.

295
00:44:11.350 --> 00:44:27.880
Marilyn C: If that has changed since the materials that were provided, then I'm glad to hear that, but the materials with the agenda report did not include it. I also note that the report does not appear to comply with state law in several ways.

296
00:44:28.110 --> 00:44:43.069
Marilyn C: I ask that the Council defer consideration of this report until the Council and public have received the PAB comments concerning this report, and the report has been brought into compliance with state law, including AB481.

297
00:44:43.450 --> 00:44:45.949
Marilyn C: Thank you for your consideration.

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298
00:44:48.930 --> 00:44:56.309
Boardroom: We have received materials from PAB, so, yeah, the, the, the, Police Accountability

299
00:44:56.370 --> 00:45:09.669
Boardroom: Board submitted, their letter after the agenda packet was published, and so it's in the supplemental communications packet, and it's also published with the,

300
00:45:09.740 --> 00:45:16.370
Boardroom: Police Department's item on the, agenda website for this, for this meeting. Thank you.

301
00:45:17.260 --> 00:45:19.560
Boardroom: And next is Kelly.

302
00:45:22.420 --> 00:45:27.709
Kelly's iPad: Was it… is item 6 still on action, or was it moved?

303
00:45:27.840 --> 00:45:29.660
Boardroom: That's a public hearing on action.

304
00:45:30.150 --> 00:45:32.700
Kelly's iPad: Okay, I'll save my comment. Thank you.

305
00:45:32.700 --> 00:45:33.570
Boardroom: Thank you.

306
00:45:34.810 --> 00:45:35.810
Boardroom: Okay.

307
00:45:36.380 --> 00:45:39.150
Boardroom: Anything else? Anyone else? Next is Cameron.

308
00:45:43.620 --> 00:45:51.720
Cameron Woo: Hello, my name is Cameron Wu. I'm a current resident and a member of the Berkeley Art Commission, but tonight I speak only on my behalf.

309
00:45:51.980 --> 00:45:54.119

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Cameron Woo: Can I ask that the City Council?

310
00:45:54.280 --> 00:46:02.890
Cameron Woo: Give item 3 on the consent calendar serious consideration, pass this item in order for a nexus study.

311
00:46:03.040 --> 00:46:10.110
Cameron Woo: To see if the fee for public art may continue, or be adjusted to make the in-lieu fee more affordable.

312
00:46:10.440 --> 00:46:11.550
Cameron Woo: the current…

313
00:46:11.940 --> 00:46:22.339
Cameron Woo: All-or-nothing situation is unpalatable, and hundreds of thousands of dollars for public art are lost by developers utilizing this loophole.

314
00:46:22.450 --> 00:46:23.840
Cameron Woo: Please help us.

315
00:46:24.190 --> 00:46:25.479
Cameron Woo: Support the arts.

316
00:46:26.220 --> 00:46:27.820
Cameron Woo: Thank you for your time.

317
00:46:28.750 --> 00:46:30.319
Boardroom: Thank you. Thank you.

318
00:46:30.870 --> 00:46:35.910
Boardroom: Last, hand raised for consent.

319
00:46:36.080 --> 00:46:40.130
Boardroom: And information items is Cheryl Davil, a former council member.

320
00:46:43.550 --> 00:46:58.980
Cheryl Davila, Former Councilmember, Founder CEMTF: So, the item from the police on their weapons inventory is really alarming. The public should really be paying attention to all these, weapons that they have.

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321
00:46:59.050 --> 00:47:08.989
Cheryl Davila, Former Councilmember, Founder CEMTF: that they can use against your constituents of the City of Berkeley, the residents of the City of Berkeley.

322
00:47:09.030 --> 00:47:17.910
Cheryl Davila, Former Councilmember, Founder CEMTF: They don't need all this quote-unquote less than lethal single 40mm launcher.

323
00:47:17.910 --> 00:47:30.910
Cheryl Davila, Former Councilmember, Founder CEMTF: or less than lethal, lethal, my core, 40 millimeter Multi-launcher, or 40 millimeter rounds, or 300FN,

324
00:47:30.910 --> 00:47:48.330
Cheryl Davila, Former Councilmember, Founder CEMTF: a less than lethal FN303 launcher and associated FN rounds. There's thousands and hundreds and thousands of all these different equipments and their ammunitions, rifles,

325
00:47:48.930 --> 00:47:52.340
Cheryl Davila, Former Councilmember, Founder CEMTF: It's really, really, really alarming.

326
00:47:52.660 --> 00:48:07.029
Cheryl Davila, Former Councilmember, Founder CEMTF: And, we're in the 47 era of fascism and authoritarianism, and you should be getting these weapons out of our police department to protect

327
00:48:07.210 --> 00:48:09.009
Cheryl Davila, Former Councilmember, Founder CEMTF: Us from them.

328
00:48:10.080 --> 00:48:18.959
Cheryl Davila, Former Councilmember, Founder CEMTF: Free Palestine, free yourselves from these isms that keep you in the way that you are.

329
00:48:22.250 --> 00:48:25.549
Boardroom: Thank you. There's one more hand, Wendy?

330
00:48:26.360 --> 00:48:29.339
Boardroom: Wendy should be, able to unmute.

331

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00:48:32.370 --> 00:48:43.600
wendy a: Thank you. Wendy Altson, also with the Berkeley Friends Meeting. And on number 5, And…

332
00:48:44.570 --> 00:49:03.610
wendy a: going to the Police Accountability Board, and then seeing the item on the agenda. There's no mention in the item of the Police Accountability Board review. It wasn't filed by the police department or the City Manager with the item originally, and

333
00:49:03.690 --> 00:49:11.610
wendy a: it… Being made available only in the sec- as late as the second supplemental.

334
00:49:11.780 --> 00:49:31.389
wendy a: when it's a required part of the process, is not very helpful, at least to the public. I don't know that it's helpful to you either. And I would just urge that you request or demand, as appropriate, that both be filed together.

335
00:49:31.540 --> 00:49:41.389
wendy a: When this item comes before you each year, this is an annual process, and the Police Accountability Boards,

336
00:49:42.370 --> 00:49:50.290
wendy a: information that they are communicating to you should be a part of the agenda item. Thank you.

337
00:49:53.200 --> 00:50:17.649
Boardroom: Just a note, our Police Accountability Board is made up of, you know, of residents, and so they're not always able to send things, you know, as expeditiously as I know they would like to, and so I just want to comment on the fact that, as our city clerk said, when that letter was sent to us, it was added as supplemental materials, and so, you know, we can't add something that hasn't been sent to us, so I do want to just

338
00:50:17.650 --> 00:50:28.010
Boardroom: thank the PAB for their report, and, you know, recognize that these processes sometimes take a long time, and that, you know, that we did receive it. So, thank you.

339
00:50:30.580 --> 00:50:32.190
Boardroom: That, that was the last comment.

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340
00:50:36.980 --> 00:50:37.960
Boardroom: Okay.

341
00:50:38.790 --> 00:50:42.379
Boardroom: Thank you very much. Alright, is there a motion to approve the consent calendar?

342
00:50:42.860 --> 00:50:43.810
Boardroom: So moved.

343
00:50:45.420 --> 00:50:46.330
Boardroom: Second.

344
00:50:48.020 --> 00:50:53.490
Boardroom: Can we take the roll on that, please? Okay, to approve the consent calendar, Councilmember Kesarwani.

345
00:50:53.490 --> 00:50:53.960
Rashi Kesarwani: Yes.

346
00:50:54.470 --> 00:50:55.290
Boardroom: Taplin.

347
00:50:55.290 --> 00:50:56.000
Terry Taplin: Aye.

348
00:50:56.430 --> 00:51:01.219
Boardroom: Bartlett? Yes. Trega? Aye. O'Keefe? Yes. Blackaby?

349
00:51:01.220 --> 00:51:02.120
Brent Blackaby: Yes.

350
00:51:02.280 --> 00:51:14.320
Boardroom: Lunapara? Yes. Cumbert? Yes. And Mary Ishii? Yes. Okay, motion carries. Okay, thank you very much. We're moving on to the action calendar, and we're gonna start off with public hearings. I don't…

351
00:51:14.360 --> 00:51:28.040
Boardroom: know if there's a presentation on this one? I'm number 6, Ambulance transport fee increase? There is no presentation, Madam Mayor, but we do have personnel from the fire department here if there are

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questions. Sounds good. Are there any questions for my Council colleagues?

352
00:51:28.990 --> 00:51:35.309
Boardroom: No questions? Is there any public comment on this item? The number 6, item number 6, Ambulance Transport Fee Increase.

353
00:51:38.300 --> 00:51:43.760
Boardroom: Okay. There's one… One hand raised, online.

354
00:51:43.970 --> 00:51:45.880
Boardroom: That's Kelly.

355
00:51:49.850 --> 00:51:58.110
Kelly's iPad: Yes, thank you, and I wanted to pose sort of a request

356
00:51:58.490 --> 00:52:03.839
Kelly's iPad: to our Chief Gregg on this item for the future.

357
00:52:03.970 --> 00:52:07.870
Kelly's iPad: I've been looking at today at…

358
00:52:08.050 --> 00:52:13.280
Kelly's iPad: The plans for the new Sutter Hospital in Emeryville.

359
00:52:13.690 --> 00:52:27.369
Kelly's iPad: at, 5300, I believe you pronounce the street Shuron, C-H-I-R-O-N. And I would hope that at some point, you could, do a presentation

360
00:52:27.800 --> 00:52:29.019
Kelly's iPad: to us.

361
00:52:29.180 --> 00:52:32.449
Kelly's iPad: to Council and the public on how

362
00:52:32.690 --> 00:52:47.130
Kelly's iPad: Transport, may change with the move… with the move of acute services from I… I'll debate.

363
00:52:47.630 --> 00:52:49.740
Kelly's iPad: To the new hospital.

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364
00:52:50.230 --> 00:53:02.619
Kelly’s iPad: And how that might, impact, say, traffic on Adeline, and what would probably be the new emergency route to this new location.

365
00:53:02.860 --> 00:53:07.759
Kelly’s iPad: As that may impact how we look at our streets in Berkeley.

366
00:53:08.870 --> 00:53:11.800
Kelly’s iPad: So that's a request. Thank you very much.

367
00:53:12.060 --> 00:53:13.280
Boardroom: Thank you, Kelly.

368
00:53:15.940 --> 00:53:21.600
Boardroom: That's it. Okay, thank you very much. Is there a motion to approve? Close the…

369
00:53:22.070 --> 00:53:33.290
Boardroom: Sorry? Yes. Is there a motion to close the public hearing? Thank you. I'll second that. Alright, can we take the roll on that, please? Okay, to close the public hearing, Councilmember Kesarwani.

370
00:53:33.290 --> 00:53:34.010
Rashi Kesarwani: Yes.

371
00:53:34.210 --> 00:53:34.840
Boardroom: Kaplan.

372
00:53:34.840 --> 00:53:35.600
Terry Taplin: Aye.

373
00:53:35.760 --> 00:53:40.340
Boardroom: Bartlett? Yes. Trega? Aye. O'Keefe? Yes. Blackaby?

374
00:53:40.340 --> 00:53:41.320
Brent Blackaby: Yes.

375
00:53:41.320 --> 00:53:53.119

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Boardroom: Lunapara? Yes. Humber? Yes. And Mary Sheets? Yes. Okay. All right, thank you very much. Okay, we're now moving on to item number 7, Memorandum of Under… Sorry?

376
00:53:53.120 --> 00:54:02.149
Boardroom: Oh. Oh my gosh, I'm so sorry. Okay, sorry. Is there a motion to approve?

377
00:54:02.350 --> 00:54:15.459
Boardroom: I'll move to approve, and I'll incorporate my comments, mistaken comments on the consent calendar, thanking the Chief and the City Manager's Office by reference here. Thank you.

378
00:54:15.770 --> 00:54:18.550
Boardroom: Thank you. Is there a second? Second.

379
00:54:18.660 --> 00:54:26.410
Boardroom: Okay, can we take the roll, please? Okay, to approve the, ambulance transport fee increase, Councilmember Kesarwani?

380
00:54:26.410 --> 00:54:27.120
Rashi Kesarwani: Yes.

381
00:54:27.480 --> 00:54:28.160
Boardroom: Kaplin?

382
00:54:28.160 --> 00:54:28.910
Terry Taplin: Aye.

383
00:54:29.100 --> 00:54:33.239
Boardroom: Bartlett? Yes. Tragib? Aye. O'Keefe? Yes. Blackaby?

384
00:54:33.240 --> 00:54:34.150
Brent Blackaby: Yes.

385
00:54:34.150 --> 00:54:49.850
Boardroom: Lunapara? Yes. Humbert? Yes. And Mayor Ishii? Yes. Okay, motion carries. Okay, thank you very much. Alright, opening the public hearing for item number 7, Memorandum of Understanding, Compendium 2026, Agreements with Other Law Enforcement Agencies and Private Organizations.

386
00:54:50.270 --> 00:54:51.300

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Boardroom: Hi!

387
00:54:51.980 --> 00:54:53.040
Boardroom: Welcome.

388
00:54:55.430 --> 00:54:56.940
Boardroom: Good evening.

389
00:54:57.260 --> 00:55:00.519
Boardroom: No presentation, but happy to answer any questions, if there's any questions.

390
00:55:02.250 --> 00:55:04.799
Boardroom: Are there any questions from my Council colleagues?

391
00:55:05.320 --> 00:55:07.500
Boardroom: Yes, go ahead, Councilmember Traika.

392
00:55:07.550 --> 00:55:23.320
Boardroom: Thank you so much. I just had a question. I saw that there was a rescission with an MOU with, BUSD. I was curious if you could provide additional information.

393
00:55:23.320 --> 00:55:47.040
Boardroom: Yeah, sure, so that, MOU that was existing wasn't really even an MOU, it was just, some basic agreements that, are over a decade old. We've been in conversation with the superintendent over the last couple years about how to start codifying that material, as it's, not how we operate currently with our SRO and interact with the school district, and it's such an old document, I made the decision to remove it.

394
00:55:47.090 --> 00:55:51.859
Boardroom: While we work through a more official, policy to have with the school district.

395
00:55:52.870 --> 00:56:03.890
Boardroom: Okay, other than that, just wanted to commend you on the depth and breadth of the report. Thank you. Thank you. Question from Councilmember Broccabee.

396
00:56:04.210 --> 00:56:16.279

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Brent Blackaby: Yes, hi, thank you, and thanks, Chief Lewis and Mr. Malberg, for being here. I just wanted to ask a question, actually two. One is on the NCRIC MOU, which is number 3.12.

397
00:56:16.330 --> 00:56:36.469
Brent Blackaby: I note that in the MOU, it explicitly prohibits the sharing of our ALPR and body-worn camera data with the NCRIC. I know there have been some recent news reports about San Francisco, so I just wanted to give you a chance to comment on how

398
00:56:36.470 --> 00:56:46.070
Brent Blackaby: sort of our data relationship with NCRIC is different and more restrictive in terms of how we don't share that kind of sensitive data.

399
00:56:46.360 --> 00:57:11.349
Boardroom: Yeah, thank you, for that opportunity. Absolutely, I know there were some, recent media stories, about sharing of information that was on the NCRIC platform, or access point, around ALPR reading. As I've shared with Council before in our community, we do not share with NCRIC, we do not provide them ALPR information, and, if you recall, last summer, we limited down the agencies we share to our local counties.

400
00:57:11.350 --> 00:57:25.249
Boardroom: and all those agencies that we share, and cooperate with ALPR information sign a waiver, attesting that they will follow both our sanctuary city policies and state law, in order for them to be someone that we share information with.

401
00:57:25.490 --> 00:57:25.990
Boardroom: Great.

402
00:57:26.040 --> 00:57:44.139
Brent Blackaby: I just want to appreciate that, because it was sort of… it is very explicit in that MOU. It's not a general MOU. We're very clear in terms of that… maintaining that restriction on that data, and so I just… I wanted to appreciate that, and sort of doesn't allow us to get to a point that we saw with San Francisco in the recent news reports.

403
00:57:44.140 --> 00:57:56.549
Brent Blackaby: The other question I wanted to talk about real quickly was on the SARs, the suspicious activity reports. I noticed we had issued 12 of those, last year, and most of those are with NICRIC as well, is that right? Is that usually who we're…

404

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00:57:56.830 --> 00:57:59.199
Brent Blackaby: I guess it could be other partner organizations.

405
00:57:59.200 --> 00:58:23.030
Boardroom: where those, reports go to, and just a little bit of information about how they work. And so, what we know is that a single incident that happens in one location that seems relatively minor or small or a one-off, might be something that other jurisdictions are experiencing, might be a sign of a, a larger scale thing occurring or starting to occur, and so.

406
00:58:23.030 --> 00:58:46.619
Boardroom: a lot of that information then allows us to have a clearinghouse, and it's not that you go there and look at other departments SARS, and then you make, take action upon it, but that allows a clearinghouse to look at all those things and say, here's a pattern. And a perfect example is, we, sometimes we'll get bomb threats that come in, anonymous bomb threats that come in via email to a school.

407
00:58:46.620 --> 00:59:11.460
Boardroom: And it might just say BHS, something like that. And then we're able to communicate with Nick Rick, and they're like, yeah, you know, states, states, or, school districts throughout the state, throughout the country have been receiving this exact thing, and everybody that's BHS is seeing the same email address, and we're able to kind of determine that it proves not so, right? Or that it's a hoax email or something like that. And so without being able to provide the

408
00:59:11.460 --> 00:59:22.669
Boardroom: individualized events that occur in our city to that. We wouldn't have that opportunity to understand, you know, a greater impact or whether something might have validity or not.

409
00:59:23.030 --> 00:59:25.000
Brent Blackaby: Great. Thank you. That's all I had. Thanks.

410
00:59:25.120 --> 00:59:41.259
Boardroom: Thank you so much, and I did just want to comment that the Chief had sent an email about this to us, like, immediately, almost after this article came out about San Francisco, and that we were able to share it with our Sanctuary City partners who were, task force partners who were really concerned about this, so thank you, Chief, for sending that.

411
00:59:41.260 --> 01:00:05.940
Boardroom: And I did have a question as well, did… just want to check, does anyone else have questions before I ask? Okay. I was wondering if

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you could clarify a relationship with the U.S. Marshals Service Fugitive Tasks? Just talk a little bit about what that looks like? Yeah, of course. So if we're looking at working a, local incident in our city, and, we learn that the offender has fled to a jurisdiction in another state.

412
01:00:05.940 --> 01:00:30.439
Boardroom: In another area. The U.S. Marshals is a resource for us that we can let them know we have a, authorized warrant from a judge. Are you able to assist us with that? For example, a case we had in Texas is a case that we worked with the U.S. Marshals Service. And so there, was a time when we had someone that worked on that task force, and so if we had a local case, they would provide resources and personnel to help us work that case.

413
01:00:30.480 --> 01:00:55.310
Boardroom: And then if, there was a local case in another jurisdiction near us, then that person could go and assist with that. It's a way you share resources and personnel power. We currently don't have anybody that's participating in a task force with the U.S. Marshals. Is that a capacity issue, or is that just, like, we haven't picked a new person? Both. Okay. Just curious, thank you. Yes. And then, I'm also wondering, so when we deploy mutual aid.

414
01:00:55.310 --> 01:01:20.250
Boardroom: How do we ensure that other agencies are adhering to Berkeley's policies, you know, specifically around, like, use of force, sanctuary city, etc? So, when we're going to somewhere else to provide mutual aid, or mutual aid is coming to us? Mutual aid is coming to us. Right. Typically what you'll see is that, all mutual aid is coordinated through the county's mutual aid coordinator. And, when we have a need for mutual aid, we will communicate with Alameda County Sheriff's Department.

415
01:01:20.250 --> 01:01:43.520
Boardroom: and say, we have this need in our city. Then they come and arrive, and resources arrive in our city, and we would tell them certain things, like, hey, here are our specific policies. And an example I can give you is, for a while, Oakland had a very specific policy prohibiting a munition. When we would show up to check in for that mutual aid there, they would say, here's the prohibitions we have if you are coming and operating in the city of Oakland.

416
01:01:43.520 --> 01:02:00.160
Boardroom: If you can't abide by that, we can't… we can't accept your services, or we will give you a different task to do while you're in here. So there were times when, we would respond and we would do, facility protection, because we couldn't use tear gas.

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417
01:02:00.160 --> 01:02:19.740
Boardroom: In a crowd control, so it wasn't safe for us to deploy in that manner, so we did a different task and activity. So we would be checking with agencies that came to us, you know, do you have any issues complying with these specific things that are specific to Berkeley? Yes. Either, thank you, we can't use your assistance, or hey, we're going to assign you to some task that doesn't put you in jeopardy of having to do that thing.

418
01:02:20.060 --> 01:02:32.840
Boardroom: Thank you, that's very helpful. Okay, is there any public comment on this item? We are on item number 7, the Memorandum of Understanding Compendium 2026, Agreements with other law enforcement agencies and private organizations.

419
01:02:33.190 --> 01:02:34.710
Boardroom: Is anybody online?

420
01:02:35.880 --> 01:02:40.010
Boardroom: There are two hands raised, online.

421
01:02:40.170 --> 01:02:43.410
Boardroom: First is, Wendy.

422
01:02:47.000 --> 01:02:50.980
wendy a: Thank you, Wendy Alphabet Berkeley Friends Committee.

423
01:02:51.170 --> 01:02:59.250
wendy a: I would just note that the Chief did not answer the last question in terms of mutual aid coming to Berkeley.

424
01:02:59.370 --> 01:03:09.980
wendy a: I'd note that the rate of $190 for the jail to process a UCPDE arrest

425
01:03:10.090 --> 01:03:20.890
wendy a: Especially if that includes either medical or transport to Santa Rita seems awfully low. But my main point is, with regard to this.

426
01:03:21.280 --> 01:03:38.959
wendy a: federal MOU that Councilmember Blackby raised, that the language of ALPR is not extended to all of the other data gathering cameras and information that you just approved.

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427
01:03:39.060 --> 01:03:49.619
wendy a: And it should be… state all those different descriptions, you know, of community, video, and fixed cameras, and…

428
01:03:49.920 --> 01:03:58.969
wendy a: first responder drones, and all the other things that are planned to be in effect within this next year. And…

429
01:03:59.080 --> 01:04:00.040
wendy a: B.

430
01:04:00.270 --> 01:04:05.030
wendy a: There's not specific language in there that says that.

431
01:04:05.690 --> 01:04:10.150
wendy a: We will not provide information to the feds

432
01:04:10.510 --> 01:04:28.769
wendy a: you know, contrary to the sanctuary policy and state law, in… with regard to the First Amendment and immigration. So, I think all of those reasons mean that… that those MOUs should be,

433
01:04:29.310 --> 01:04:34.199
wendy a: Not approved tonight, but revised slightly before they come back to you.

434
01:04:34.910 --> 01:04:39.430
wendy a: the data sharing aspect of them is very concerning. Thank you.

435
01:04:40.700 --> 01:04:41.670
Boardroom: Thank you.

436
01:04:41.950 --> 01:04:44.130
Boardroom: Okay, oop.

437
01:04:45.810 --> 01:04:47.869
Boardroom: The next is Marilyn.

438
01:04:54.570 --> 01:04:55.510
Marilyn C: Thank you.

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439
01:04:56.150 --> 01:04:58.579
Marilyn C: My name is Marilyn Cleveland.

440
01:04:58.800 --> 01:05:05.609
Marilyn C: And I'm a resident of Berkeley. I'm here to express concern that the,

441
01:05:05.920 --> 01:05:14.079
Marilyn C: agreement with the Berkeley… I'm sorry, with the Northern California Regional Information Center. Nick Rick.

442
01:05:14.310 --> 01:05:24.660
Marilyn C: One of the many federal fusion centers set up to create more surveillance and intelligence sharing among police agencies, can lead to…

443
01:05:24.990 --> 01:05:33.069
Marilyn C: To… problems with First Amendment activity and other…

444
01:05:33.300 --> 01:05:49.140
Marilyn C: activities supported by the Bill of Rights. That information can be shared from NICRIC with other, federal agencies, including the Department of Justice, ICE, and other subgroups of the Department of Homeland Security.

445
01:05:49.630 --> 01:06:00.090
Marilyn C: We've already seen efforts to stifle free speech and other protected activities, including demonstrations on college campuses, in 2025.

446
01:06:00.660 --> 01:06:25.640
Marilyn C: The Berkeley Police Department submitted multiple suspicious activity reports related to pro-Palestinian activity and other protected forms of free speech. These were reports that were on protected First Amendment speech and other activities. So please remove the agreement with Nick Rick and obtain further information about which agreements may lead

447
01:06:25.640 --> 01:06:34.279
Marilyn C: to violation of protected First Amendment actions before considering approval of this MOU compendium agreement. Thank you.

448
01:06:34.950 --> 01:06:36.420

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Boardroom: Thank you, Marilyn.

449
01:06:37.210 --> 01:06:44.529
Boardroom: I see no other comments. Yes, thank you. Any comments from my Council colleagues?

450
01:06:47.140 --> 01:06:55.269
Boardroom: I'll just say thank you. Thanks, Chief, for answering our questions, and appreciate your answers, previously to my questions, and

451
01:06:55.590 --> 01:07:12.419
Boardroom: also just the work that it takes to put this together, because I know there's a lot of work that's involved, so thank you very much. Yeah, I appreciate that our department does really care about, you know, other officers coming in, and adhering to our policies, so thank you. That's very important to us. Yes?

452
01:07:13.190 --> 01:07:21.160
Boardroom: Sorry, thank you, Madam Mayor, and apologies, I think the parliamentarian is on the foot.

453
01:07:21.610 --> 01:07:26.109
Boardroom: I… So, in…

454
01:07:26.660 --> 01:07:41.079
Boardroom: just listening to some of the public comments, I, I had, an additional question for the Chief, and a question for… Maybe this is for the Chief as well.

455
01:07:41.170 --> 01:07:56.119
Boardroom: I really appreciated the way in which, PD and the PAB worked closely together on, the police equipment report. I was wondering if you could describe the process… is…

456
01:07:56.280 --> 01:08:12.549
Boardroom: Is the MOU Compendium something that historically, the PAB reviews, and if so, can you describe, the process, that took place this year?

457
01:08:14.270 --> 01:08:24.299
Boardroom: And I will wait for it. Yeah, if you, if you recall, last year we had a robust discussion with the PAB. There were several,

458

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01:08:24.300 --> 01:08:49.109
Boardroom: old MOUs, or agreements that were in there. There were, like, federal agreements that kind of described the way you could interact with certain federal agencies, and we knew we weren't interacting with them in that way, but they were still in our book, and so we had a long conversation, both with Council and the PAB, and we were able to remove a lot of those from there, so it was very clear that those relationships didn't exist, the rescissions. This went to PAB at, I think it was 33 days, something like that.

459
01:08:49.109 --> 01:08:53.359
Boardroom: I don't remember the exact number of days, but it went to PAP very early for their first look at this.

460
01:08:53.359 --> 01:08:56.479
Boardroom: In fact, there were a couple things they, they,

461
01:08:56.479 --> 01:09:15.250
Boardroom: had questions about that we were able to answer and work through, so it was a collaborative process. They discussed it at the, I think, at least two PAB meetings, if I'm not mistaken, and so it's a collaborative process. they, were able to provide feedback both to us and to Council, if they so desired, around the document.

462
01:09:15.250 --> 01:09:18.619
Boardroom: Yeah, thank you. I… I do…

463
01:09:19.020 --> 01:09:31.380
Boardroom: 60 days. Sorry. Thank you. And I do recall last year, it was a very, interactive process, so appreciate your clarifying,

464
01:09:31.510 --> 01:09:41.329
Boardroom: Can you also just, you know, I think just, For the sake of,

465
01:09:41.859 --> 01:09:55.940
Boardroom: the public being informed, speak to the relationship between these MOU compendiums and our, internal procedures around data sharing practices.

466
01:09:56.990 --> 01:10:21.489
Boardroom: Yeah, of course, if I think I'm understanding the question correctly in light of the public comment, just to be clear, the policies that set forth both our uses, collection, sharing, retention periods are the guiding principles, are our policies around every one of our technologies, and those would be the things that would say when and what

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we would share and in what ways we share. Those reflect reproductive rights,

467
01:10:21.490 --> 01:10:31.620
Boardroom: immigration status, that, you know, how we interact with federal partners, all of those things are built into every one of our use policies, to very clearly state that we would not chair in that manner.

468
01:10:32.610 --> 01:10:33.500
Boardroom: Thank you.

469
01:10:34.640 --> 01:10:45.289
Boardroom: Thank you very much. Councilmember Humbert? Yeah, I just wanted to say thank you, Chief, and thank you, Arlo, for this report, and thank you for answering all those questions so very clearly. Thanks.

470
01:10:45.800 --> 01:10:50.860
Boardroom: Okay, is there a motion to close the public hearing? So moved.

471
01:10:51.630 --> 01:10:52.900
Boardroom: A second.

472
01:10:52.900 --> 01:10:53.610
Brent Blackaby: Second.

473
01:10:54.330 --> 01:10:56.040
Boardroom: Thank you. Can we take the roll?

474
01:10:57.130 --> 01:10:59.939
Boardroom: Okay, to close the public hearing, Councilmember Kisarwani.

475
01:10:59.940 --> 01:11:00.560
Rashi Kesarwani: Yes.

476
01:11:01.010 --> 01:11:02.010
Boardroom: Taplin?

477
01:11:02.010 --> 01:11:02.580
Terry Taplin: Yes.

478
01:11:02.940 --> 01:11:08.100

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Boardroom: Bartlett? Yes. Trega? Aye. O'Keefe? Yes. Blackaby?

479
01:11:08.100 --> 01:11:08.870
Brent Blackaby: Yes.

480
01:11:09.120 --> 01:11:16.000
Boardroom: Unapara? Yes. Humbert? Yes. And Mary Ishii? Yes. Okay. All right. Closed.

481
01:11:16.230 --> 01:11:19.700
Boardroom: Is there a motion to proof item number 7?

482
01:11:20.430 --> 01:11:21.450
Boardroom: So moved.

483
01:11:22.730 --> 01:11:23.450
Brent Blackaby: Second.

484
01:11:24.190 --> 01:11:38.889
Boardroom: You can take the roll on that, please? Okay, to approve the, Memorandum of Understanding Compendium 2026 agreements with other law enforcement agencies and private organizations, Councilmember Kesarwani?

485
01:11:41.730 --> 01:11:42.530
Rashi Kesarwani: Yes.

486
01:11:42.650 --> 01:11:43.640
Boardroom: Yes.

487
01:11:43.930 --> 01:11:45.340
Boardroom: Taplin?

488
01:11:45.340 --> 01:11:46.010
Terry Taplin: Aye.

489
01:11:46.200 --> 01:11:51.740
Boardroom: Bartlett? Yes. Tregeb? Aye. O'Keefe? Yes. Blackaby?

490
01:11:51.740 --> 01:11:52.370
Brent Blackaby: Yes.

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491
01:11:52.830 --> 01:12:07.229
Boardroom: Luna Parra? Yes. Humbert? Yes. And Mayor Ishii? Yes. Okay, motion carries. Thank you very much. We are going to take a brief break between now and item number 8. Just, like, 10 minutes. Thank you.

492
01:12:13.140 --> 01:12:14.548
Boardroom: Sounds like a needle.

493
01:12:15.720 --> 01:12:30.590
Boardroom: Okay, sorry about that, everyone. Thank you for your patience. We are moving on to item number 8, which is the large vehicle parking regulations in the public right-of-way. And, excuse me, Councilmember Taplin, are you… are you here to present?

494
01:12:32.340 --> 01:12:35.900
Terry Taplin: Yes, thank you very much, Madam Mayor, and good evening to everybody.

495
01:12:36.500 --> 01:12:53.499
Terry Taplin: I thank my co-sponsors, Councilmembers Blackaby, Humber, and Kassarwani, the members of the Health, Life Enrichment, Equity, and Community Policy Committee, the Neighborhood Services Division and City Manager's Office, as well as Madam City Attorney Brown and her office for all of their input and guidance throughout the iterations of this item.

496
01:12:54.130 --> 01:13:05.080
Terry Taplin: Long-term recreational vehicle parking, disproportionately concentrate in commercial industrial neighborhoods and in proximity to open water resources in West Berkeley, is a well-known phenomenon. Additionally.

497
01:13:05.080 --> 01:13:25.710
Terry Taplin: While many RVs at any given time may be used to provide shelter to community members experiencing homelessness, it is not uncommon for vehicles either not utilized for shelter, no longer utilized for shelter, or otherwise discarded by owners to sit abandoned on the roadside indefinitely and unabated due to a deficiency in the Berkeley Municipal Code's definition of the term abandoned vehicle.

498
01:13:25.910 --> 01:13:50.900
Terry Taplin: Over the years, indefinite recreational and abandoned vehicle parking in the public right-of-way has led to reported conflicts in the right-of-way, including reports ranging from impediments to delivery access, obstruction of sidewalks and roadways, debris accumulation, the disposal of waste in City of Berkeley storm drains, dog

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attacks against commercial employees, and public health and safety hazards in the most extreme cases, including the recent outbreak of leptospirosis.

499
01:13:51.710 --> 01:14:03.820
Terry Taplin: Recently, Bay Area cities, including San Jose, San Francisco, others in the region, and even Oakland, have adopted a variety of stances toward the management of long-term large vehicle parking and hazard abatement in the right-of-way.

500
01:14:03.850 --> 01:14:13.760
Terry Taplin: These approaches often pair parking restrictions and regulations with the establishment of large-scale, safe parking where land and utilities are available, enabling intake for coordinated services.

501
01:14:14.100 --> 01:14:19.640
Terry Taplin: This item recommends that Council do the following. Refer the review of the BMC

502
01:14:20.040 --> 01:14:32.399
Terry Taplin: Chapter 12, Section 98, to ensure that the language authorizes the abatement of hazardous and abandoned vehicles in the right-of-way, clarified the definition of abandoned vehicle, and increases human matter discretion in the establishment of abatement timelines.

503
01:14:32.660 --> 01:14:40.129
Terry Taplin: Refer the study of recent Bay Area legislation regarding the management of long-term large vehicle parking, and receive policy and enforcement recommendations

504
01:14:40.130 --> 01:14:58.880
Terry Taplin: that are regionally consistent, align with the City of Berkeley environmental housing and transportation priorities, reflective of the City's ability to enhance the impact and scale of its coordinated alternative housing initiatives via participation in a county-wide RV parking program, or by joining a comparable program in a neighboring jurisdiction.

505
01:14:59.970 --> 01:15:02.079
Terry Taplin: And which are operationally feasible.

506
01:15:02.090 --> 01:15:11.240

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Terry Taplin: Further, this item requests guidance and clarity on how the City's encampment resolution policy intersects with the BMC in the absence of shelter availability.

507
01:15:11.240 --> 01:15:30.720
Terry Taplin: And lastly, this item refers to the… refers to the drafting… refers to the City Manager and City Attorney the drafting of an ordinance amending BMC 718 to authorize City Manager approval of contracts up to $250,000 for the abatement of abandoned, dismantled, or inoperative vehicles pursuant to BMC 1298.

508
01:15:30.840 --> 01:15:32.390
Terry Taplin: 040A.

509
01:15:33.270 --> 01:15:51.349
Terry Taplin: With clarity and guidance provided by regional policy analysis and insight into the organization's operational capacity, the City and Council can best determine how to coordinate access to critical supportive health and housing services, abate hazards, and maintain the public right-of-way in alignment with our strategic plan goals without being overwhelmed

510
01:15:51.350 --> 01:16:00.920
Terry Taplin: By shifting legislative trends in the region, I did have some… minor revisions.

511
01:16:01.810 --> 01:16:09.630
Terry Taplin: that I was going to offer, and I'm happy to do that now, or after… Public comment, whichever is…

512
01:16:10.270 --> 01:16:13.620
Terry Taplin: More preferable for the… for the Metam Air.

513
01:16:13.790 --> 01:16:18.080
Boardroom: Yeah, I think it would be helpful to know what changes you were looking at.

514
01:16:18.760 --> 01:16:21.270
Terry Taplin: Okay, thank you very much. I will share a screen.

515
01:16:25.740 --> 01:16:30.690
Terry Taplin: Are you all able to see what's… see this? You see my… Google Doc?

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516
01:16:30.690 --> 01:16:31.759
Boardroom: We can see it.

517
01:16:32.070 --> 01:16:36.699
Terry Taplin: So, the first provision is the Reclamation 2D.

518
01:16:37.140 --> 01:16:42.820
Terry Taplin: on the… So that the final clause, striking, including, and.

519
01:16:42.820 --> 01:16:44.989
Boardroom: Could you just make it a bit bigger? I'm sorry.

520
01:16:44.990 --> 01:16:47.140
Terry Taplin: Oh, yes, of course, no problem. Oops.

521
01:16:47.760 --> 01:16:48.260
Boardroom: You know.

522
01:16:48.880 --> 01:16:49.700
Terry Taplin: Tells us.

523
01:16:51.440 --> 01:16:53.419
Boardroom: Yeah, I think that's better.

524
01:16:54.950 --> 01:17:05.639
Terry Taplin: So that clause at the end of… that Recommendation 2D clause will read, as part of the study, include an examination of geographically targeted parking, that it's just a minor…

525
01:17:06.090 --> 01:17:07.879
Terry Taplin: I had a, sort of a…

526
01:17:08.770 --> 01:17:13.959
Terry Taplin: gerund there, but, you know, to not be a gerund. And then, this is…

527
01:17:14.210 --> 01:17:20.699
Terry Taplin: This is a surface-level revision, and the… I am…

528
01:17:21.120 --> 01:17:25.459

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Terry Taplin: Trying to remove the underline from the hyperlink.

529
01:17:26.120 --> 01:17:30.370
Terry Taplin: In… at the end of page 2, the beginning of page 3.

530
01:17:31.730 --> 01:17:34.100
Terry Taplin: If that… Makes sense.

531
01:17:35.300 --> 01:17:36.030
Boardroom: Okay.

532
01:17:36.160 --> 01:17:37.230
Boardroom: Thank you.

533
01:17:38.070 --> 01:17:41.549
Boardroom: Okay, are there any questions for my council colleagues?

534
01:17:45.590 --> 01:17:48.439
Boardroom: Okay, is there any public comment on this item?

535
01:17:56.920 --> 01:18:08.390
Boardroom: This is for public comment on item 8, the large vehicle parking regulation, so if you're on the Zoom and you intend to comment on this item, please raise your hand at this time.

536
01:18:13.330 --> 01:18:15.130
Boardroom: Come on up. Yeah, go ahead.

537
01:18:21.330 --> 01:18:27.600
Boardroom: Well, this is another example of coming at a situation from the wrong end.

538
01:18:28.170 --> 01:18:39.369
Boardroom: The situation being that quite a number of people I've, been… Moved out of their homes.

539
01:18:39.610 --> 01:18:44.670
Boardroom: and have taken refuge in RVs with no other place to go.

540
01:18:47.520 --> 01:18:54.970
Boardroom: In addition What you have is, the…

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541
01:18:56.060 --> 01:19:02.389
Boardroom: In this proposal, basically, a tightening of the definitions.

542
01:19:03.140 --> 01:19:05.689
Boardroom: An abandoned vehicle.

543
01:19:05.830 --> 01:19:11.840
Boardroom: And, funding to enable the city to remove them.

544
01:19:12.910 --> 01:19:14.730
Boardroom: without offering.

545
01:19:15.910 --> 01:19:20.240
Boardroom: We're actually providing an alternative.

546
01:19:20.430 --> 01:19:25.570
Boardroom: And, you have a distinct danger. Thank you.

547
01:19:27.130 --> 01:19:28.460
Boardroom: Thanks for your comment.

548
01:19:31.640 --> 01:19:40.979
Boardroom: Hey, everybody. One thing I've noticed lately is that, the empire is crumbling right now, the economic…

549
01:19:41.120 --> 01:19:46.670
Boardroom: System is gonna be taken Drastic nosedives coming up.

550
01:19:46.880 --> 01:19:53.710
Boardroom: And more and more people are going to be losing Medi-Cal, Medicaid, CalFresh, veterans benefits.

551
01:19:54.090 --> 01:20:08.060
Boardroom: And that's gonna enable many people to wind up on the streets. And sometimes they'll be in RVs, and sometimes they'll need to be there. And any…

552
01:20:08.370 --> 01:20:20.719
Boardroom: with a conscience, the law on older people, and I say older because a lot of your politics stink, are trying to criminalize,

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553
01:20:20.980 --> 01:20:25.949
Boardroom: people who live in RVs, people who are on the street, unhoused people.

554
01:20:26.820 --> 01:20:31.750
Boardroom: You gotta think of another way. You gotta cut these people some slack.

555
01:20:32.430 --> 01:20:37.829
Boardroom: hurting them, criminalizing them is not gonna help. Thank you. Thanks, Russell.

556
01:20:39.960 --> 01:20:41.330
Boardroom: Can I get a couple minutes?

557
01:20:42.280 --> 01:20:43.250
Boardroom: Cool, thank you.

558
01:20:46.760 --> 01:20:47.770
Boardroom: Good evening.

559
01:20:48.030 --> 01:21:00.240
Boardroom: This report acknowledges the health risks created by inadequate sanitation, yet the city has repeatedly failed to provide the infrastructure necessary to address those risks, to then cite the resulting waste as justification for

560
01:21:01.860 --> 01:21:24.560
Boardroom: Enforcement against unhoused people effectively transfers responsibility for a predictable outcome of the city's own inaction onto the population most affected by that inaction. This report also repeatedly says Berkeley should balance enforcement with outreach, coordinated housing, and housing first principles, and that any future policy should be operationally feasible and enhance alternative… alternatives housing initiatives.

561
01:21:24.680 --> 01:21:41.669
Boardroom: I want to point out an intersection that isn't discussed anywhere in this report, the intersection between enforcement and the failures of our housing system itself. I've lived in Berkeley for nearly 30 years. Last fall, I entered coordinated entry for the second time in 3 years, and scored a 96.

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562
01:21:41.750 --> 01:21:59.909
Boardroom: Outreach workers told me that if I found an apartment before receiving a housing match, they could make a voucher happen. I did exactly what the system encourages people to do. Through my own advocacy, I found a landlord who offered me the vacant apartment next door to my best friend, is happy to accept my 5 dogs, and who actively advocated for me.

563
01:21:59.920 --> 01:22:11.279
Boardroom: Then, we discovered that the information I'd been given was false. The organizations involved don't actually have the authority they said they did. As a result, an extraordinary housing opportunity is about to slip away.

564
01:22:11.280 --> 01:22:33.469
Boardroom: This report asks staff to clarify how enforcement intersects with encampment policy, but you should also examine how enforcement intersects with the actual functioning of our housing system, because taking someone's RV is easy. Replacing it with housing is the hard part. Towing someone's RV while they are at work or in a nearby bathroom won't make them less homeless or make them leave town. It just moves them from the parking lane onto the sidewalk.

565
01:22:33.470 --> 01:22:44.130
Boardroom: We've all witnessed the indignity that people living in tents experience. Do you really think that it will be a better visual for all of us who currently live in vehicles to be relegated to tents on sidewalks?

566
01:22:44.510 --> 01:22:55.359
Boardroom: If Berkeley expands its ability to remove large vehicles before fixing the disconnect between outreach workers, voucher programs, and available shelter, then enforcement will continue to outpace housing.

567
01:22:55.580 --> 01:23:11.599
Boardroom: If we're serious about housing first, then the housing system has to work as well as the enforcement system does. That is the only way, unless you plan on arresting us for being economically disadvantaged. Just because the Supreme Court said that you can arrest people for being homeless, doesn't mean you should.

568
01:23:11.600 --> 01:23:16.189
Boardroom: They also overturned Roe vs. Wade, but I don't see any of us rushing to comply with that ruling.

569

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01:23:16.360 --> 01:23:26.730
Boardroom: Follow your conscience. Treat others as you would want to be treated. If the walls were suddenly reversed, and you were at our mercy, do you think that we would treat you so cruelly? Thank you.

570
01:23:27.700 --> 01:23:28.960
Boardroom: Thank you, Amber.

571
01:23:34.020 --> 01:23:39.519
Boardroom: Good evening, Council, Mayors, staff, and community. I have one minute that's being offered.

572
01:23:39.930 --> 01:23:49.750
Boardroom: Thank you. Moni Law, my personal capacity, I'm very concerned, I'm very troubled, and I want to raise a few concerns.

573
01:23:49.770 --> 01:24:05.520
Boardroom: We need house keys, not handcuffs, on the poor people in Berkeley. I walk by them every day, I say good morning to them as I'm on my way to work, and I see that they're sleeping on the street, and I see they're in the cold, and I see that they have nowhere to go.

574
01:24:05.520 --> 01:24:15.660
Boardroom: In this instance, we're asking them to shut down their RV vehicle, and I've actually had the pleasure of working with the prior speaker with the Tiny Home Project.

575
01:24:16.110 --> 01:24:40.999
Boardroom: We're doing constructive action to get people housed, including youth. Do we have a housing space for youth in Berkeley? The answer is no. Do we have women's housing? The answer is no. Do we have domestic violence, advocacy and housing for people who are being threatened with death by their intimate partner? The answer is no. Where are they to go? That's my concern. That quarter million dollars in subsection

576
01:24:41.090 --> 01:24:55.969
Boardroom: 4 of this item, $250,000. You could use, for vouchers, $1,000 a month times 12, multiply that by a number of people, and place an alternative in place of a jail cell, or a park.

577
01:24:55.970 --> 01:25:02.389
Boardroom: or a doorway to sleep in. Last night, I thought it was in a dystopian situation when I left work, and there were more…

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578
01:25:02.390 --> 01:25:14.559
Boardroom: unhoused people on the street as a result of our homeless project, our program that was doing outreach, being disbanded. We're going the wrong direction in our solutions toward housing.

579
01:25:14.560 --> 01:25:18.260
Boardroom: This is not the right way, and I would appreciate your constructive.

580
01:25:18.260 --> 01:25:42.179
Boardroom: compassionate and thinking approach to making a better approach to this. I've lived in a motorhome, but on the road for travel and vacations, and I was fortunate enough to do that. These people are struggling on the street just to survive day to day, and we've got to find a better way, and still keep the sanity, the security, the safety, the concerns to the water. That could be addressed as well without putting people in further harm's way. Thank you.

581
01:25:42.180 --> 01:25:42.900
Boardroom: Woo!

582
01:25:43.260 --> 01:25:44.539
Boardroom: Thank you, Moni.

583
01:25:48.150 --> 01:25:57.800
Boardroom: Carol Morasovic, I've been doing volunteer outreach around where, the Dwight and the Grayson streets are, and I can say, as far as

584
01:25:57.820 --> 01:26:16.500
Boardroom: There was an individual there, he had no outreach at all into the CES system for 12 years, and I was able to facilitate through the options encampment team housing for him, and he is successful in that housing now. I haven't been able to help Amber.

585
01:26:16.500 --> 01:26:22.309
Boardroom: And for the last 4 months, Amber has been so vigorously advocating, has is.

586
01:26:22.350 --> 01:26:39.149
Boardroom: As is the landlord. Her prospective landlord has been calling all over the county, saying where she can get this subsidy for Amber. Amber has been homeless since she's 16 years old. She's been 28 years out in the streets, basically, in Berkeley. And…

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587
01:26:41.440 --> 01:26:52.840
Boardroom: Many of the… these people are all individuals, and I need one more minute for the Where Do We Go people? Okay. Okay. So, the…

588
01:26:54.220 --> 01:26:57.380
Boardroom: These people are all individuals. They're all different.

589
01:26:57.480 --> 01:27:14.990
Boardroom: She is really trying to… has really, really tried to get this place. She's found a place, and she can't get in, and she was first evaluated, assessed in 2022, and now again in 2025. So, if there was a Spark parking lot.

590
01:27:15.040 --> 01:27:33.139
Boardroom: Amber would be in it. Most of these other individuals would be in it. Are there some people who are very difficult? Absolutely. And Amber is actually… I've been working with Amber for about a year now. She's tried to pull the Dwight area together.

591
01:27:33.140 --> 01:27:37.219
Boardroom: ABR has been working with city staff on reporting

592
01:27:37.280 --> 01:27:53.810
Boardroom: abandoned vehicles that were put there by someone who lived in Vallejo, and she's done it to her own detriment, to the sense that she feared retaliation, because her name was leaked as having reported it. Amber has cleaned up the streets… Thank you. Thank you.

593
01:27:54.140 --> 01:28:01.350
Boardroom: Is there any, public comment online for item number 8, which is the large vehicle parking regulations in the public right-of-way?

594
01:28:01.950 --> 01:28:05.929
Boardroom: I have two hands raised. First is Beth Rossner.

595
01:28:07.970 --> 01:28:15.520
Beth Roessner: Good evening, Mayor and Council. This is Beth Rossner, CEO of the Berkeley Chamber of Commerce, expressing support for Item 8.

596
01:28:15.760 --> 01:28:19.809
Beth Roessner: This proposal takes a balanced approach to a complex issue.

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597
01:28:20.070 --> 01:28:31.380
Beth Roessner: Long-term and abandoned large vehicles in the public right-of-way can create health and safety concerns, limit access for customers and employees, and impact nearby businesses.

598
01:28:31.480 --> 01:28:51.069
Beth Roessner: We appreciate that this item strengthens the City's ability to address these issues, while also recognizing the importance of regional coordination, outreach, and alternative housing solutions. We also support the focus on commercial and industrial areas where safe and reliable access is essential for business operations.

599
01:28:51.230 --> 01:28:59.920
Beth Roessner: This is a practical, measured approach that balances compassion with the need to protect public safety and support Berkeley's local economy. Thank you.

600
01:29:00.800 --> 01:29:01.900
Boardroom: Thank you, Beth.

601
01:29:03.460 --> 01:29:09.440
Boardroom: Next… is… Former Councilmember Cheryl Davila.

602
01:29:13.140 --> 01:29:15.670
Former Councilmember Cheryl Davila: So,

603
01:29:15.770 --> 01:29:28.619
Former Councilmember Cheryl Davila: You should be ashamed of yourself, as I call him, the marionette. And, Rashi, you need to get off your freakin' phone, stop laughing, because this shit is not fucking true.

604
01:29:28.620 --> 01:29:30.430
Boardroom: Cheryl, just a reminder.

605
01:29:30.430 --> 01:29:37.399
Former Councilmember Cheryl Davila: people's lives that you're messing with, and I'm wondering if I can get some time from somebody in the room, an extra minute.

606
01:29:37.500 --> 01:29:47.330
Former Councilmember Cheryl Davila: People are living on the street because you guys don't have a mental health department, or a mobile crisis unit, or,

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607
01:29:47.800 --> 01:29:53.310
Former Councilmember Cheryl Davila: Services that go out and make relationships with people living on the street.

608
01:29:54.350 --> 01:30:11.830
Former Councilmember Cheryl Davila: These commercial districts aren't even utilized as much as you think they are, and if you gave them the services, like garbage pickup, shower programs, they could make, or tents, or nicer vehicles.

609
01:30:11.830 --> 01:30:17.359
Former Councilmember Cheryl Davila: You could put money into that instead of evictions. That's what you should be concentrating on.

610
01:30:17.360 --> 01:30:19.229
Boardroom: comment, your time is up.

611
01:30:19.370 --> 01:30:28.429
Boardroom: As a reminder, if you can refer to the Council as a whole in your public comments, are there any other comments? Christ Devere Kohler?

612
01:30:31.610 --> 01:30:46.489
Christoverre Kohler: Hello, thank you. I'm one of those people that, quite a few years ago now, had my RV taken and a pickup truck taken from me, and that was regardless that I would move them on a regular basis and so forth.

613
01:30:46.860 --> 01:30:50.800
Christoverre Kohler: But, it was really common back then. We didn't even have encampments.

614
01:30:50.960 --> 01:31:10.909
Christoverre Kohler: So that was out of the question, too. What I've suggested at times is that, I think there's some legacy skill on how to get by, even in the hardest of circumstances, and I've advocated that some of those skills and some of those resources ought to be made available to people if you're going to put them in the predicament.

615
01:31:10.960 --> 01:31:21.799
Christoverre Kohler: So, I'd be happy to, consult with and confer with anybody about helping them do that, and not just taking things away from them, leaving them unable to get by.

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616
01:31:21.880 --> 01:31:22.820
Christoverre Kohler: Thank you.

617
01:31:23.410 --> 01:31:24.680
Boardroom: Thank you.

618
01:31:25.250 --> 01:31:31.339
Boardroom: I think that was the final public comment online. Yes, the last speaker, yeah. Okay, I will go to Councilmember Humbert.

619
01:31:31.760 --> 01:31:46.049
Boardroom: Thank you, Madam Mayor. I appreciate Councilmember Taplin for bringing this item and adding me as a co-sponsor, and I want to be really clear, this item has to do with abandoned vehicles, not occupied ones.

620
01:31:46.050 --> 01:31:55.000
Boardroom: There are real safety issues with abandoned RVs parked in the city rights-of-way, with attendant trash surrounding them and rat populations in connection with some.

621
01:31:55.000 --> 01:32:13.849
Boardroom: As we've seen very recently. This is a quality of life and public health and safety issue for the housed, the unhoused, and also the RV-dwelling residents of Berkeley, and it deserves our significant attention, staff's significant attention, and work towards resolving this complex set of issues.

622
01:32:13.850 --> 01:32:22.950
Boardroom: And I think that Councilmember Taplin's item is a major step in this direction, and it doesn't, again, have to do with occupied vehicles. Thank you.

623
01:32:24.240 --> 01:32:28.689
Boardroom: Thank you. Councilmember Taplin, your hand was raised, and then Councilmember Blackaby.

624
01:32:30.340 --> 01:32:34.000
Terry Taplin: Yes, thank you very much, and thank you to all the speakers.

625
01:32:34.390 --> 01:32:38.530
Terry Taplin: on the… The city has obligations to both

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626
01:32:39.330 --> 01:32:47.729
Terry Taplin: Maintain the public right-of-way, and abate hazards, public safety and health hazards in the right-of-way, and facilitate

627
01:32:47.970 --> 01:32:55.289
Terry Taplin: access to homelessness services. And in order to do both, the city We'll need boundaries.

628
01:32:55.790 --> 01:33:01.829
Terry Taplin: I share the community support for a safe parking site. In order for us to have one.

629
01:33:01.990 --> 01:33:08.110
Terry Taplin: I do believe we are going to have to work with our neighboring jurisdictions to find…

630
01:33:08.250 --> 01:33:12.810
Terry Taplin: Real space and real infrastructure for us to be able to do that.

631
01:33:13.760 --> 01:33:15.839
Terry Taplin: And of course, the requisite funding.

632
01:33:23.200 --> 01:33:25.250
Terry Taplin: And with that, I move adoption of the item.

633
01:33:26.320 --> 01:33:27.390
Boardroom: Second.

634
01:33:29.370 --> 01:33:31.079
Boardroom: Councilmember Blackaby.

635
01:33:32.230 --> 01:33:50.600
Brent Blackaby: Thanks, Madam Mayor. I'll be brief. I just wanted to thank Councilmember Taplin for bringing this item and adding me as a co-sponsor. I'll say, as we've heard from speakers tonight, we know this is a complex issue. There are a lot of facets to it. This is not finished policy. What it is is asking

636
01:33:50.600 --> 01:33:55.290
Brent Blackaby: For staff to come back and look at all of the various permutations and find

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637
01:33:55.290 --> 01:34:05.620
Brent Blackaby: the sort of best solution that accommodates all of the issues and concerns that we're dealing with. I'll also note that, you know, we do have a policy for abandoned vehicles.

638
01:34:05.620 --> 01:34:24.899
Brent Blackaby: on private property, but this is closing a gap where we don't have a similar definition for the public right-of-way. So part of this is, you know, in the city's domain, in the public right-of-way, trying to bring some consistency, to that definition. I also appreciate the effort to sort of find some regional consistency.

639
01:34:24.900 --> 01:34:36.909
Brent Blackaby: So that, again, we're trying to work with our neighboring jurisdictions, we're trying to address environmental concerns, economic development concerns, and some very important parts of our city.

640
01:34:36.910 --> 01:34:52.130
Brent Blackaby: And that we're trying to do it in such a way that actually supports the transition of folks into supportive housing resources and supportive services, and that if we can align this with that effort, that we'll be in a better position.

641
01:34:52.130 --> 01:35:11.100
Brent Blackaby: And lastly, I'd just say I also appreciate the sensitivity in thinking about this as targeted in areas that need some attention, and where there are environmental concerns in particular. And so, again, this is not a final product, this is not a final answer, this is asking.

642
01:35:11.100 --> 01:35:14.659
Brent Blackaby: Staff to take consideration of all of these different elements.

643
01:35:14.660 --> 01:35:17.990
Brent Blackaby: Take a look at what our neighboring jurisdictions are doing.

644
01:35:17.990 --> 01:35:37.540
Brent Blackaby: try and find some consistency in terms of our definition of abandoned vehicles on private property, and bring that same definition to the public right-of-way, and find a way to move forward here. So, appreciate the sensitivity that the council members brought to this item, proud to support it, and, thank you for the time.

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645
01:35:38.830 --> 01:35:40.420
Boardroom: Councilmember Kessarwani.

646
01:35:42.460 --> 01:35:58.420
Rashi Kesarwani: Thank you very much, Madam Mayor. I also wanted to echo the thanks for Councilmember Taplin for bringing this item to us, and for allowing me to be a co-sponsor of this item. I do think it is an appropriate time to

647
01:35:58.420 --> 01:36:10.349
Rashi Kesarwani: do what this referral is requesting, which is to look at what other Bay Area jurisdictions are doing around this issue. This issue also, intersects

648
01:36:10.400 --> 01:36:22.900
Rashi Kesarwani: with state limitations we have found in addressing the issue of RVs on the public right-of-way in my district, and so I think we do need to take an exhaustive review and see

649
01:36:22.900 --> 01:36:32.450
Rashi Kesarwani: what can be done, and I do just want to also remind us of all the work that has gone into this issue in this city.

650
01:36:32.500 --> 01:36:39.339
Rashi Kesarwani: Since I have been a council member, we have had a safe RV parking site, and then we…

651
01:36:39.660 --> 01:36:52.610
Rashi Kesarwani: we transitioned into, I think, what is a… what I think is a more effective model, which is on 2nd Street in my district, from Cedar, going north, we…

652
01:36:52.610 --> 01:37:07.370
Rashi Kesarwani: implemented what's called an RV buyback program, where we compensated people for their RV, and because we received a state encampment resolution grant, we were able to master lease a motel.

653
01:37:07.440 --> 01:37:14.900
Rashi Kesarwani: and offer people transitional housing. And that was very successful in take-up.

654
01:37:15.130 --> 01:37:23.880

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Rashi Kesarwani: And, we even had the report that was done by the UCSF professor outlining the successes of that model, which

655
01:37:23.980 --> 01:37:38.769
Rashi Kesarwani: Mayor Lurie in San Francisco also adopted after we were successful here. My understanding is, you know, the City of Berkeley was one of the cities that San Francisco looked to when they developed their RV ordinance. And so…

656
01:37:38.920 --> 01:37:46.060
Rashi Kesarwani: So, you know, I just want to say that we have done a lot of work around supporting people who are…

657
01:37:46.170 --> 01:37:59.590
Rashi Kesarwani: marginally housed in an RV, and I hope we can continue to do that work, and I think this referral is also very important to look at what other jurisdictions are doing and see how we can continue to advance

658
01:37:59.720 --> 01:38:07.389
Rashi Kesarwani: our rules and regulations around this. So thank you very much, Councilmember Taplin, and I… I'm looking forward to voting.

659
01:38:09.310 --> 01:38:14.449
Boardroom: Thank you. Not sure if there are any other comments. No? Okay.

660
01:38:14.600 --> 01:38:34.990
Boardroom: So, I'm skeptical that this item will accomplish what it intends to. We already have parking requirements now, and the challenge has been enforcement. And I support enforcing our current parking laws, especially for abandoned vehicles that aren't people's homes. We don't often have the people power to enforce these regulations.

661
01:38:34.990 --> 01:38:58.299
Boardroom: And so, while there are a few cities nearby that are passing new laws to address the RV parking issues, there isn't evidence right now that they are working. And, you know, as Councilmember Kesarwani just stated, there are RV… our RV buyback program was successful in offering… in offering opportunities, which… and also,

662
01:39:00.190 --> 01:39:16.509
Boardroom: the RV Buyback Program was successful, and as was stated, there was a really great study that was done by Dr. Margo Kushel, who also spoke to us at the Alameda County Mayor's Conference, to talk about

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the success of the RV Buyback Program, and how effective it is in moving people from their vehicles into housing.

663
01:39:16.510 --> 01:39:24.519
Boardroom: And we need to continue to offer strategies like that, and interim housing opportunities. Just a note that the cities that are…

664
01:39:24.750 --> 01:39:27.540
Boardroom: passing new laws to address RV parking.

665
01:39:27.640 --> 01:39:39.429
Boardroom: Their new policies are oftentimes connected to safe parking sites, which we don't have currently. And so, you know, for these reasons, I'm going to be voting no on this item. Did you have any comments?

666
01:39:41.120 --> 01:39:42.950
Terry Taplin: Madam Mayor, if I may?

667
01:39:44.370 --> 01:39:45.830
Terry Taplin: Or I'm not sure if you can see my…

668
01:39:45.830 --> 01:39:49.130
Boardroom: I think… Okay, go ahead, you can go first.

669
01:39:49.300 --> 01:40:07.100
Terry Taplin: Oh, I just wanted to say, I appreciate the Mayor's skepticism, however, what this item is asking for is for the City Attorney and the City Manager to analyze the regional policy shifts and provide recommendations for potential actions Council can choose to or not take.

670
01:40:07.490 --> 01:40:24.370
Terry Taplin: But I do think that we should make these decisions. I think our policy choices should be guided by analysis and insight, and that's what this item is asking for. And I do think that if someone abandons a vehicle that's not being used for shelter on a Berkeley street, we should be able to remove it. Thank you.

671
01:40:24.540 --> 01:40:34.339
Boardroom: Absolutely, and I guess my point was just that we already have laws that are… policies that allow us to remove abandoned vehicles from the street, and since we know that there.

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672
01:40:34.340 --> 01:40:37.909
Terry Taplin: That is incorrect. The BMC does not allow us to do that.

673
01:40:37.910 --> 01:40:53.350
Boardroom: Councilmember, if I can finish my statement. So, the other… the other piece that I was saying is that we already know that the RV buyback program has been successful, and so my point was that I think it's more worthwhile of our staff time to focus on implementing policies and programs that we know are effective.

674
01:40:53.550 --> 01:40:57.889
Terry Taplin: One of the recommendations is asking us to look into how we can

675
01:40:58.480 --> 01:41:06.020
Terry Taplin: Partner with labor jurisdictions to stand up a larger, more stable regional safe parking site. Thank you.

676
01:41:07.660 --> 01:41:13.909
Boardroom: And… Go ahead, Councilmember Lenopara. Thank you.

677
01:41:14.190 --> 01:41:22.890
Boardroom: I want to thank the author for bringing this forward and thinking this through. I… I… I…

678
01:41:23.140 --> 01:41:29.740
Boardroom: worry that we're… that we're putting the wrong thing first. I…

679
01:41:30.140 --> 01:41:37.999
Boardroom: I appreciate the sentiment of the item, and I don't agree that it should be something that our staff should be focusing on at the moment.

680
01:41:38.470 --> 01:41:39.549
Boardroom: That's it, thanks.

681
01:41:40.770 --> 01:41:44.680
Boardroom: Thank you. And additionally, we also have

682
01:41:44.810 --> 01:42:09.429
Boardroom: evidence that shows that these parking sites are questionable in their effectiveness, and we know from having a safe parking site at

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Grayson Street that was not as effective in getting people out of their RVs and into homes. So, since we already have that evidence, again, I just feel that this is not something that we need to have staff time used for. But, there's already a motion on the floor, so if we could take the roll on that, please.

683
01:42:10.610 --> 01:42:24.619
Boardroom: Okay, this is to approve the, item 8, as written by the author, with the minor wording change to, recommendation 2D, on the motion, Councilmember Kesarwani? Yes.

684
01:42:24.810 --> 01:42:25.950
Boardroom: Taplin?

685
01:42:25.950 --> 01:42:26.680
Terry Taplin: Yes.

686
01:42:27.030 --> 01:42:29.940
Boardroom: Bartlett? Yes. Drago? Aye.

687
01:42:30.170 --> 01:42:32.770
Boardroom: O'Keefe? Yes. Blackaby?

688
01:42:32.770 --> 01:42:33.630
Brent Blackaby: Yes.

689
01:42:33.780 --> 01:42:36.340
Boardroom: Unapara? No. Humbert?

690
01:42:36.590 --> 01:42:39.730
Boardroom: Mayor Ishii? No. Okay, motion carries.

691
01:42:40.330 --> 01:42:56.879
Boardroom: Okay, we are moving on to item number 9. Oh, nope, we are not, because we moved it to consent. We're moving on to item number 10, which is the 5-year street rehabilitation and Measure FF plans for fiscal years 2027 through 2031. So I will ask staff to come up.

692
01:42:57.200 --> 01:42:58.650
Boardroom: And present.

693
01:43:39.210 --> 01:43:51.330

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Boardroom: Alright, good evening, Mayor, Council Members, Wahiti Miri, Interim Director of Public Works. Tonight, staff is presenting an integrated and transparent 5-year implementation framework.

694
01:43:51.380 --> 01:44:11.009
Boardroom: This plan maintains the city's core paving program, begins delivery of Measure FF, which we are delighted about, coordinates with safety, ADA, stormwater, and utility work, and preserves flexibility for biennial updates as conditions, funding, and project schedules evolve.

695
01:44:11.010 --> 01:44:16.740
Boardroom: With me tonight, are Terrence Salonga to my right, our supervising civil engineer.

696
01:44:17.160 --> 01:44:32.050
Boardroom: line, we have Manuj Mahavin, our Measure FF Principal Program Manager, and just behind us, we have the Public Works Cavalry, which, starting with Paigma Meirfar, our City Engineer, Candace…

697
01:44:32.110 --> 01:44:45.579
Boardroom: Paul Mendrell, our Measure FF program manager, and last but not least, our pavement Engineering Consultant, Joel Ryery. With that said, I'm going to hand it over to Terrence to kick off the presentation, and then we'll field questions as they come in.

698
01:44:45.840 --> 01:44:46.890
Boardroom: Thank you, Lahid.

699
01:44:47.580 --> 01:44:54.969
Boardroom: Good evening, Mayor, members of Council. I'm Terrence Alonga, Supervising Civil Engineer in Public Works, where I oversee the Streets program.

700
01:44:55.460 --> 01:45:01.249
Boardroom: I'm joined tonight on Zoom, as we'd mentioned, by my colleague Manoj Madhavan, the Measure FFF Principal Program Manager.

701
01:45:02.680 --> 01:45:08.029
Boardroom: Tonight, we're presenting two Companion Plans covering fiscal years 2027 through 2031.

702
01:45:08.210 --> 01:45:13.409
Boardroom: I will walk through the 5-year street rehab Plan. Manoj will present the Measure FF plan.

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703
01:45:13.830 --> 01:45:16.900
Boardroom: And at the conclusion, staff will ask Council to adopt both.

704
01:45:18.940 --> 01:45:24.689
Boardroom: To begin with context of the network, the city maintains 213 centerline miles of streets.

705
01:45:25.000 --> 01:45:34.440
Boardroom: As of the end of 2025, the citywide payment condition index, or PCI, was 57, which the industry classifies as at-risk.

706
01:45:34.990 --> 01:45:45.750
Boardroom: The network's replacement value was approximately $1.2 billion, and the 2024 pavement Management Program update measured the deferred maintenance backlog at over $330 million.

707
01:45:46.330 --> 01:45:53.289
Boardroom: What these figures reflect more than anything is that the cost of repairing a street rises substantially the longer the repair waits.

708
01:45:53.670 --> 01:45:57.420
Boardroom: And I want to spend a moment on that relationship before turning to the plan itself.

709
01:45:58.930 --> 01:46:10.510
Boardroom: This chart is a typical pavement deterioration curve. It plots the condition of a street over its life with pavement condition on the vertical axis and aging years along the horizontal.

710
01:46:11.250 --> 01:46:18.920
Boardroom: The colored bands represent condition categories from good at the top to failed at the bottom, and the call-outs identify the treatment appropriate to each.

711
01:46:19.240 --> 01:46:25.060
Boardroom: As the curve shows, the newly paved streets hold its condition for many years before it drops off steeply.

712
01:46:25.540 --> 01:46:41.690
Boardroom: The cost multipliers shown are approximate, but the relationship between them is what's important. So a crack seal or other preventative maintenance applied while a street is still in good

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condition, and the green band represents our baseline cost. Left untreated, the street falls into the yellow band, where a surface seal costs roughly 10 times as much.

713
01:46:42.070 --> 01:46:56.410
Boardroom: Continue to ignore a street, and it falls into the orange band, where an overlay costs on the order of 20 times the baseline cost. And once a street has failed into the red band, the only remaining option is full reconstruction at roughly 40 times the cost of the original baseline cost.

714
01:46:58.320 --> 01:47:04.479
Boardroom: Given those escalating costs, the central question of pavement management is how to keep streets from declining in the first place.

715
01:47:05.070 --> 01:47:17.090
Boardroom: The baseline program applies critical point management, often summarized as right treatment and right time, which means we target streets near the bottom of the condition tier, and treat them before they fall into the next, more expensive tier.

716
01:47:17.430 --> 01:47:23.910
Boardroom: Trading Streams at the… at that point in their life cycle is where each paving dollar delivers the most important life across the network.

717
01:47:24.730 --> 01:47:35.270
Boardroom: However, an approach built on cost efficiency means streets already in poor condition can wait a long time for their turn. And those streets can remain in a condition that carry real impacts for the residents who live on them.

718
01:47:35.580 --> 01:47:44.330
Boardroom: Both needs are legitimate, and the City is addressing them through two complementary programs, the Street Rehab Plan and Measure FF, which Manoj will discuss later in this presentation.

719
01:47:47.020 --> 01:47:50.290
Boardroom: So how does critical point management become an actual list of streets?

720
01:47:50.690 --> 01:47:55.360
Boardroom: Street selection rests on two inputs, condition data and the pavement policy.

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721
01:47:55.850 --> 01:48:03.120
Boardroom: On condition data, the city inspects the entire network every other year, and each street receives a PCA score from 0 to 100.

722
01:48:03.780 --> 01:48:09.920
Boardroom: That data is fed into Street Saver, the pavement management software developed by the Metropolitan Transportation Commission.

723
01:48:10.050 --> 01:48:20.060
Boardroom: And with Street Saver staff input, the dollar amount and the proprietary optimization algorithm, which simulates the critical point management approach, produces an initial list of streets.

724
01:48:20.500 --> 01:48:26.750
Boardroom: This initial list of streets is shaped by the second input, the paving policy, which Council adopted in January 2022.

725
01:48:27.040 --> 01:48:45.990
Boardroom: The policy directs how staff refine our list to align with City's broader goals, including prioritizing streets that overlap with the equity zone, the bikeway network bus routes, while also maximizing efficiency through continuity, which means keeping adjacent street segments together where possible, and ensuring compliance with Dig Once.

726
01:48:46.440 --> 01:48:49.069
Boardroom: Through coordination with utility and capital projects.

727
01:48:49.770 --> 01:48:53.559
Boardroom: The resulting list of streets is what makes up the plan we're presenting to you tonight.

728
01:48:58.170 --> 01:49:01.880
Boardroom: Before turning to the new plan, a brief word on what the prior plan delivered.

729
01:49:02.650 --> 01:49:08.989
Boardroom: Between fiscal years 2019 and 2023, the program averaged roughly 2-3 centerline miles per year.

730
01:49:09.730 --> 01:49:24.950
Boardroom: Once the current FY26 project is complete, the FY24-28 plan will have delivered 29.2 centerline miles over three fiscal years,

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roughly a four-fold increase. Thanks in large part to the additional general fund support Council provided through its 2022 referral.

731
01:49:25.740 --> 01:49:35.070
Boardroom: After completion of this year's FY26 paving project, the projected PCI will be 61.6 in the equity zone, and 59.3 for the rest of the city.

732
01:49:35.180 --> 01:49:40.619
Boardroom: Both improvements, with the equity zone tracking ahead of the citywide average, consistent with the policy's direction.

733
01:49:41.630 --> 01:49:54.429
Boardroom: Approximately 43% of that mileage was on bikeways, 39% in the equity zone, 39% on bus routes, and 21% on high-injury streets, delivered alongside 3388 curb ramp upgrades.

734
01:49:56.850 --> 01:50:03.179
Boardroom: Turning to the fiscal year 27-31 street rehab Plan, this map shows the plan color-coded by fiscal year.

735
01:50:03.610 --> 01:50:16.790
Boardroom: It covers over 350 street segments and approximately 55 centerline miles, representing $88.6 million over 5 years, distributed across the entire city and funded through the city's ongoing revenue sources, independent of Measure FF.

736
01:50:19.570 --> 01:50:25.010
Boardroom: For this fiscal year 27-31 plan, here's a snapshot of what we're delivering by category.

737
01:50:25.390 --> 01:50:30.409
Boardroom: Bikeway streets account for 44% of the plan's mileage and 51% of its cost.

738
01:50:30.760 --> 01:50:34.710
Boardroom: Bus routes account for roughly a quarter of the mileage and 30% of the cost.

739
01:50:35.240 --> 01:50:40.110
Boardroom: High-injury streets represent 23% of mileage and 26% of cost.

740
01:50:40.380 --> 01:50:51.500

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Boardroom: And the equity zone, which the policy directs to reach a PCI of 70 sooner than the rest of the city, accounts for about a fifth of the mileage and nearly a third of the cost, a concentrated investment relative to equity zone's share of mileage in the network.

741
01:50:52.040 --> 01:51:01.559
Boardroom: Taken together, the Street Rehab Plan advances the City's other adopted plans, including the Vision Zero Action Plan, the Bike Plan, and the Pedestrian Plan, consistent with the paving policy goals.

742
01:51:04.660 --> 01:51:23.929
Boardroom: In terms of budget, the city will have $96.3 million in total available funds over the next 5 years. $5 million of that is set aside for storm drain improvements necessitated by paving projects, typically old, shallow pipes, also known as cross culverts, that must be replaced during paving, which leaves $91.3 million available for paving.

743
01:51:24.410 --> 01:51:44.089
Boardroom: The largest contribution is the CIP fund per the 2022 Council referral, which provides $8.5 million in fiscal year 2027 and escalates with inflation each year thereafter. The plan programs $88.6 million worth of paving, which maintains a roughly 2-3% reserve to ensure against volatility in global oil markets.

744
01:51:44.210 --> 01:51:46.749
Boardroom: As asphalt is a petroleum byproduct.

745
01:51:49.730 --> 01:51:55.440
Boardroom: Next, I want to spend some time on several major corridors, each of which staff considered carefully when developing this plan.

746
01:51:55.670 --> 01:52:10.019
Boardroom: And each of which involves coordination with a separate city process. I'll also note up front that deferral from this 5-year plan does not remove a street from consideration entirely. The plan is updated on a 2-year cycle, and each of these corridors will be re-evaluated as part of the next update.

747
01:52:10.740 --> 01:52:15.740
Boardroom: Claremont Avenue was programmed for 2027 in the prior plan and is deferred in this one.

748
01:52:16.250 --> 01:52:28.240
Boardroom: A fatal collision on the corridor in 2025 prompted the City to pause the repave and consider Vision Zero safety elements, and interim

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measures are underway through a quick build project with rapid flashing beacons and procurement at Claremont and Eaton.

749
01:52:28.420 --> 01:52:44.219
Boardroom: The city is also coordinating closely with the Alameda County Flood Control District on its stormwater bypass project. Projected to begin by the end of 2026, the project will trench the Claremont Roadway to install over 4,000 linear feet of large diameter storm drain pipe between Tanglewood and Mystic Street.

750
01:52:44.450 --> 01:52:46.640
Boardroom: With completion estimated in 2031.

751
01:52:47.320 --> 01:53:06.839
Boardroom: Paving ahead of that work would conflict with the City's Dig 1s policy. Pausing pavement would also allow staff to evaluate the efficacy of the newly installed Vision Zero safety elements and complete the Measure FF-funded corridor study, currently programmed at $350K in fiscal year 2027, which will set the street's long-term direction.

752
01:53:07.030 --> 01:53:12.940
Boardroom: Telegraph Avenue between Bancroft and Dwight was a 2023 holdover in the prior plan. It's deferred in this current plan?

753
01:53:13.610 --> 01:53:22.480
Boardroom: The corridor has been the subject of pedestrianization proposals for years. Most recently, the $1.325 million referral Council approved in January for a car-free telegraph.

754
01:53:22.740 --> 01:53:33.250
Boardroom: Additionally, the Telegraph Multi-Modal Corridor Study, funded at $1.349 million, is underway on the corridor south of Dwight, with staff pursuing grants towards construction.

755
01:53:33.300 --> 01:53:43.669
Boardroom: A standard repave would be premature until the city settles the corridor's future configuration, as a car-limited configuration would carry substantially less heavy vehicle traffic.

756
01:53:43.770 --> 01:53:45.830
Boardroom: Calling for a lighter pavement design.

757
01:53:46.120 --> 01:53:52.680

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Boardroom: Additionally, at a PCI of 33, Telegraph already requires a heavy treatment, so deferral would not add meaningful cost.

758
01:53:53.280 --> 01:53:59.919
Boardroom: Oxford Street and its contiguous Fulton segment were programmed for 2028 in the prior plan and are deferred here.

759
01:54:00.490 --> 01:54:06.959
Boardroom: Council initially approved a $400K budget referral for Oxford for All in June 2025, and amended it to

760
01:54:07.050 --> 01:54:23.649
Boardroom: amended it in December 2035 to $2.5 million in SOCIP funding for design and construction. The fiscal year 27-31 CIP also allocates $900K in UC settlement funds, and $1 million in Measure FF to advance the Oxford for All project.

761
01:54:23.750 --> 01:54:31.250
Boardroom: Staff are deferring the repave until the project's construction timeline is clear, at which point it will be re-evaluated for a future plan.

762
01:54:31.910 --> 01:54:38.260
Boardroom: Additionally, with pavement condition in the 60s and 70s, deferral will not drop the corridor into a more expensive treatment tier.

763
01:54:40.580 --> 01:54:46.639
Boardroom: Hopkins Street was a 2023 holdover from the prior plan, and is programmed in this plan for fiscal year 2028.

764
01:54:46.910 --> 01:54:57.180
Boardroom: The corridors I just described are deferred because funded studies and projects are actively reshaping those streets. Hopkins has no such separately funded project, and its pavement condition is what drives its inclusion.

765
01:54:57.410 --> 01:55:09.659
Boardroom: The plan carries Hopkins and standard paving costs at $6.8 million, which fund the rehab the corridor needs regardless of any additional improvements Council may direct, and it is structured to accommodate whatever direction Council sets.

766
01:55:11.340 --> 01:55:16.930

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Boardroom: Hurst Street between California and MLK Way is new to the plan program for fiscal year 2027.

767
01:55:17.050 --> 01:55:22.770
Boardroom: I want to address it directly because staff have received requests to hold the repave until a cycle track study can be completed.

768
01:55:23.690 --> 01:55:29.149
Boardroom: The 2026 bike plan includes a cycle track study for Hearst as a Tier 2 lower priority recommendation.

769
01:55:29.320 --> 01:55:31.399
Boardroom: Currently, that study is neither funded

770
01:55:31.530 --> 01:55:33.979
Boardroom: Nor is it in the Public Works work plan.

771
01:55:34.510 --> 01:55:39.650
Boardroom: Hearst measured a PCI of 58 in 2024, which is near the bottom of its condition tier.

772
01:55:39.950 --> 01:55:45.769
Boardroom: Today, the street qualifies for heavy maintenance treatment for an estimated $500,000.

773
01:55:46.260 --> 01:55:55.409
Boardroom: If paving is deferred for the several years the study and construction would require, the paving cost alone escalates to an estimated $1.3 million, nearly three times today's cost.

774
01:55:56.470 --> 01:56:04.210
Boardroom: Programming the paving fiscal year 2027 protects the city's investment, and it does not preclude future bikeway improvements. Should cancel, direct, and fund them.

775
01:56:07.460 --> 01:56:10.989
Boardroom: So how does the Streams program and the Measure FF program complement each other?

776
01:56:11.480 --> 01:56:27.860
Boardroom: On the left is the 5-year street rehabilitation plan, which amounts to approximately $88.6 million over 5 years from ongoing revenues, selected through Street Saver's weighted effectiveness ratio,

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which buys the most pavement life per dollar across the network. It's the right treatment, right time approach I described earlier.

777
01:56:27.880 --> 01:56:35.259
Boardroom: prioritizing streets at the optimal point on the deterioration curve, and it is the… it is governed by the paving policy Council adopted in 2022.

778
01:56:35.380 --> 01:56:41.009
Boardroom: Because that optimization favors streets at the optimal point of the curve, it tends to deprioritize streets that have already failed.

779
01:56:41.590 --> 01:56:46.720
Boardroom: Those long-deferred streets are where Measure FF comes in, and for that side of the slide, I will hand it to Manosh.

780
01:56:49.490 --> 01:56:54.110
Manoj Madhavan: Thank you so much, Herons. Respected Madam Mayor and Council Members.

781
01:56:54.430 --> 01:56:59.530
Manoj Madhavan: My name is Manoj Madhuin, and I am the Principal Program Manager for Measure FSS.

782
01:56:59.900 --> 01:57:14.760
Manoj Madhavan: In the next 10 minutes, you will hear about how Measure FF complements the 5-year street rehab program. I will also brief you about some of the projects in the full project list that has been provided as an attachment to the staff report.

783
01:57:15.060 --> 01:57:21.309
Manoj Madhavan: This should help demonstrate how we are working as a team between different divisions within Public Works.

784
01:57:21.680 --> 01:57:26.169
Manoj Madhavan: To implement design and construction-ready projects along with street pooling.

785
01:57:26.940 --> 01:57:36.000
Manoj Madhavan: To start with, Measure FF represents approximately $40 million in street investments over the next 5 years from the voter-approved parcel tax.

786

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01:57:36.210 --> 01:57:39.710
Manoj Madhavan: And it's directed at a different part of the network by design.

787
01:57:39.890 --> 01:57:49.490
Manoj Madhavan: The ballot language is explicit that the intent of the measure is to allow long-deferred repairs to be made so that streets are acceptable and safe within 13 years.

788
01:57:49.610 --> 01:57:53.030
Manoj Madhavan: Ideally with no streets below a PCI of 15.

789
01:57:53.650 --> 01:57:59.930
Manoj Madhavan: Those are precisely the streets that a cost-effectiveness optimization tends to deprioritize.

790
01:58:00.470 --> 01:58:05.140
Manoj Madhavan: Because the cost-to-benefit ratio is highest on pavement, that has already failed.

791
01:58:05.300 --> 01:58:14.790
Manoj Madhavan: They are also the streets where community members experience the conditions most directly through rough rides, vehicle damage, and accessibility barriers.

792
01:58:15.070 --> 01:58:25.799
Manoj Madhavan: Measure FF is additive to baseline spending, with its own candidate list and its own oversight through the Safe Streets Citizens Oversight Committee, or SSCOC.

793
01:58:26.560 --> 01:58:43.910
Manoj Madhavan: Measure FF, as you know, includes 3 other project types besides the streets projects. They are categorized as sidewalks, safety, and environmental enhancements. Before we move into presenting some of the projects selected, I thought it was important to remind all of us of the exact ballot measure language

794
01:58:44.010 --> 01:58:48.519
Manoj Madhavan: Based on which this program is being administered. Next slide, please.

795
01:58:50.430 --> 01:59:03.949
Manoj Madhavan: First off, let's talk about the four goals for Measure FF, which are presented on this slide, and are to raise citywide PCI to

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70, which is rated as good, ideally with no streets having a PCI under 50.

796
01:59:04.160 --> 01:59:08.289
Manoj Madhavan: Eliminate backlog of damaged sidewalks and pedestrian paths.

797
01:59:08.450 --> 01:59:25.619
Manoj Madhavan: significantly reduce or eliminate fatal or severe traffic crashes, and achieve goals in line with current REST practices ensuring accessibility, sustainability, and resiliency towards benefits for the entire Berkeley community. Next slide, please.

798
01:59:27.730 --> 01:59:43.120
Manoj Madhavan: The measure states that the approximate $15 million per year proceeds should be allocated as follows. 60% for streets and sidewalks offers roughly one quarter will be for sidewalks and pedestrian paths until the backlog is eliminated.

799
01:59:43.540 --> 01:59:58.869
Manoj Madhavan: 30% will be for safety improvements, and 10% shall include environmental enhancements, any required fees to the county, and any permitted uses as per Section 7-11-10, which we will discuss in the next slide. Next slide, please.

800
02:00:00.450 --> 02:00:13.009
Manoj Madhavan: The funding limitations listed in the ballot measure are proceeds of the tax may be used to pay or reimburse the city for actual verifiable costs to city staff when they're performing work, including city auditor staff time.

801
02:00:13.520 --> 02:00:25.469
Manoj Madhavan: Proceeds of the tax may be used to pay or reimburse the city for the cost of updating the transportation element of the general plan and the public works project delivery process once every 10 years.

802
02:00:25.950 --> 02:00:32.279
Manoj Madhavan: Proceeds of the tax may be used for public art consistent with the section governing these expenditures.

803
02:00:32.480 --> 02:00:41.860
Manoj Madhavan: And proceeds of the tax may not be used to fund bicycle-specific safety improvements on Hopkins Street between McGee and Gilman.

804

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02:00:42.230 --> 02:00:43.600
Manoj Madhavan: Next slide, please.

805
02:00:44.820 --> 02:01:02.350
Manoj Madhavan: Now let's talk about how we evaluated projects for the selection based on language from the measure. City staff ensured that every project that was selected was consistent with at least one of the City of Berkeley plans and policies. And usually, each project complied with more than one of these policies.

806
02:01:02.770 --> 02:01:21.839
Manoj Madhavan: Every project, which includes street repair, repaving, or reconstruction, will be implementing safety improvements concurrently through sidewalk improvements to remediate identified accessibility violations in compliance with public right-of-way guidelines, as well as include any feasible transportation safety projects.

807
02:01:22.670 --> 02:01:38.679
Manoj Madhavan: Every project that includes safety improvements are consistent with at least one, if not several, of these five City of Berkeley plans and priorities, which are Vision Zero, Medestrian Plan, Bicycle Plan, Complete Streets, and the Safe Routes to School.

808
02:01:38.680 --> 02:01:46.649
Manoj Madhavan: In addition, the measure also asks us to consider 17 additional plans and policies in identifying and evaluating projects.

809
02:01:46.650 --> 02:01:58.590
Manoj Madhavan: In short, this measure is extremely complicated and too… complicated to implement, and city staff evaluated all selected projects extensively to meet these requirements.

810
02:01:58.910 --> 02:02:08.520
Manoj Madhavan: The next few slides will talk about what kind of projects can be identified into the four distinct funding measure… funding buckets for this measure. Next slide, please.

811
02:02:09.460 --> 02:02:20.390
Manoj Madhavan: Starting with street and sidewalk projects that are designed to restore and upgrade the physical integrity and functionality, including all features, as required by applicable law.

812
02:02:20.540 --> 02:02:30.310

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Manoj Madhavan: This language is specifically important as we use some of these funds in order to implement green infrastructure requirements to comply with federal and state water quality laws.

813
02:02:30.820 --> 02:02:43.830
Manoj Madhavan: Safety improvements is by far the most extensively defined set of projects within this measure. Safety improvements shall mean improvements to sidewalks, streets, and highways designed to reduce collisions, injuries, and fatalities.

814
02:02:43.850 --> 02:02:51.100
Manoj Madhavan: They can include measures recommended by manuals published by the National Association of City Transportation Officials.

815
02:02:51.290 --> 02:02:55.289
Manoj Madhavan: the Federal Highway Administration, or similar. Next slide, please.

816
02:02:56.670 --> 02:03:04.459
Manoj Madhavan: Safety improvements shall also include improvements to emergency vehicle access, which may be traffic signal controls.

817
02:03:04.650 --> 02:03:11.659
Manoj Madhavan: These improvements can also be traffic calming measures designed to reduce vehicle speeds. Next slide, please.

818
02:03:12.910 --> 02:03:25.229
Manoj Madhavan: Environmental enhancement projects are the last bucket of project types and may include green infrastructure, permeable surfaces, use of native plants and tree plantings, as well as community spaces, benches, and bus shelters.

819
02:03:25.570 --> 02:03:33.509
Manoj Madhavan: Now that we've seen what kind of projects may fall within the four project types, let's start looking at the selected projects for Measure FF. Next slide, please.

820
02:03:35.580 --> 02:03:50.139
Manoj Madhavan: Next, click… thank you, Terrence. Terrence already showed you this map of 5-year paving plan projects. This next one, if you click again, will show you the selected measure FF projects, which are over 50 street segments.

821
02:03:50.200 --> 02:03:58.640

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Manoj Madhavan: And over 9 centerline miles of anticipated heavy rehab at 6 proposed project areas, which are based heavily on community input.

822
02:03:59.070 --> 02:04:10.159
Manoj Madhavan: Next click, please. Combined, that is over 400 street segments and nearly 65 centerline miles of paving over the next 5 years, covering all council districts of Berkeley.

823
02:04:10.560 --> 02:04:11.850
Manoj Madhavan: Next slide, please.

824
02:04:13.180 --> 02:04:36.159
Manoj Madhavan: In addition, Measure FF also has selected over 20 transportation safety projects, as well as green infrastructure compliance projects, keeping in mind the goals established by the ballot measure. The table here shows the funding allocations towards each category across each year, and as you can see, the totals fall in line with the compliance targets of 60, 30, and 10% that are to be met by the end of the measure's life cycle.

825
02:04:36.440 --> 02:04:48.759
Manoj Madhavan: The next couple slides will demonstrate how the projects are ensuring we're being efficient with cost and mobilization, while also meeting the requirements to implement safety projects concurrently with street saving projects. Next slide, please.

826
02:04:50.070 --> 02:05:02.279
Manoj Madhavan: One of the proposed projects is the Cedar-McGee Rehab project, which includes approximately 1.4 miles of street segments along Cedar, McGee, Wine, Josephine, Yola, and Buena.

827
02:05:02.600 --> 02:05:21.740
Manoj Madhavan: This project will be started in FY2027 with a budget of about $4.7 million and result in repave surfaces in the identified project area. We will also be concurrently addressing safety with constructed sidewalk improvements that will address identified public right-of-way related ADA violations.

828
02:05:21.890 --> 02:05:23.160
Manoj Madhavan: Next slide, please.

829
02:05:24.950 --> 02:05:42.140
Manoj Madhavan: Another proposed project is the Shaddock Ward Street Rehab Project, which complies with several city plans and policies, as you can see on the slide, and will be taking into account some proximal

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projects, as well as implementing the Shattuck Ward Pedestrian Crossing Refuge Transportation Safety Project.

830
02:05:42.140 --> 02:05:52.380
Manoj Madhavan: to deliver a comprehensive project that repaves 1.5 miles while addressing over 700 reported ADA violations.

831
02:05:52.630 --> 02:05:53.940
Manoj Madhavan: Next slide, please.

832
02:05:55.440 --> 02:06:08.799
Manoj Madhavan: To really illustrate what we're hearing from community members, I want to share two examples of these long-deferred streets that FF is targeting. You'll see comments from communications to staff. On the left is McGee Avenue between Cedar and Rose.

833
02:06:08.800 --> 02:06:16.070
Manoj Madhavan: Mickey had a measured PCI of 10 in 2024, likely in the single digits today, last paved in 1992.

834
02:06:16.160 --> 02:06:28.390
Manoj Madhavan: On the right is Ward Street, which means Built-in and elsewhere. Ward had a measured PCI of 12 in 2024, again, likely in the single digits today. Also last paved in 1992.

835
02:06:28.550 --> 02:06:38.419
Manoj Madhavan: Both of these streets have been selected for paving in the next 5 years under Measure FF program. They're exactly the long-deferred repairs the ballot measure describes.

836
02:06:40.210 --> 02:06:47.959
Manoj Madhavan: We presented the entire project list to SSCOC last month, and I've heard and addressed every concern raised so far.

837
02:06:48.020 --> 02:07:01.339
Manoj Madhavan: When Council passed the budget last month, all these projects were included. Council also took action to move four of the transportation safety projects to an unfunded list, pending further action, which we will discuss in the next slide.

838
02:07:02.450 --> 02:07:03.719
Manoj Madhavan: Next slide, please.

839

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02:07:04.020 --> 02:07:12.780
Manoj Madhavan: These are those four projects and the next steps towards how we're proceeding, which includes staff working with the City Attorney's Office for legal interpretation.

840
02:07:12.950 --> 02:07:19.539
Manoj Madhavan: Per the Council direction, staff will also bring these projects back to SSCOC, along with the City Attorney's feedback.

841
02:07:19.790 --> 02:07:25.130
Manoj Madhavan: After these steps, we will return to Council for consideration of feedback and recommendations.

842
02:07:25.510 --> 02:07:33.299
Manoj Madhavan: Now we'll hand the mic back to Terrence to take us through how both these programs affect the overall Cleveland Condition Index for Brooklyn.

843
02:07:37.630 --> 02:07:52.339
Boardroom: During plan development, staff examined whether directing all of the funding, including Measure F, through the same critical point management method as a 5-year street rehab plan would produce a substantially better citywide outcome than street selection based on targeting long-deferred streets.

844
02:07:52.960 --> 02:07:58.980
Boardroom: This graph compares both approaches by projecting PCI over a 12-year period through 2038.

845
02:07:59.430 --> 02:08:04.699
Boardroom: Both lines assume the same total funding, the only difference is how the Measure FF streets are chosen.

846
02:08:05.300 --> 02:08:15.540
Boardroom: Selected by the same method as the street rehab plan, citywide PCI reaches 63 by 2038. Directed at long-deferred streets, consistent with a ballot measure, it reaches 62.

847
02:08:15.930 --> 02:08:20.179
Boardroom: The citywide outcome is not materially different, which means the city can deliver

848
02:08:20.840 --> 02:08:32.740

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Boardroom: sorry, can deliver on the ballot measures stated intent at essentially no cost to the citywide trajectory. Neither line reaches a PCI of 70, and the next slide addresses what reaching 70 would require.

849
02:08:33.870 --> 02:08:43.139
Boardroom: This graph also shows, 12-year projections of PCI through 2038. Citywide PCI is projected at 59 after this summer's paving.

850
02:08:43.260 --> 02:08:45.230
Boardroom: Which is the starting point for each line.

851
02:08:45.520 --> 02:08:52.790
Boardroom: The bottom purple line is the baseline plan alone. Citywide PCI declines modestly to approximately 56 by 2038.

852
02:08:52.970 --> 02:09:01.149
Boardroom: Largely due to construction costs escalating at an estimated 3% per year, while revenues grow at only an estimated 2%.

853
02:09:01.260 --> 02:09:06.110
Boardroom: A gap that compounds to an over 11% loss in buying power over that period.

854
02:09:06.310 --> 02:09:15.479
Boardroom: The middle blue line adds Measure FF, and together the programs improve citywide PCI to approximately 62 by 2038, as shown in the previous slide.

855
02:09:16.330 --> 02:09:22.770
Boardroom: The top red line shows what reaching a PCI of 70, the level the industry characterizes as good, would require.

856
02:09:23.140 --> 02:09:32.590
Boardroom: An additional $8 million per year on average, approximately $37.6 million through year 12, and roughly $25 million per year thereafter to maintain a PCI of 70.

857
02:09:33.290 --> 02:09:39.499
Boardroom: The combined programs do not reach 70, but they are the difference between a declining trajectory and an improving one.

858
02:09:41.830 --> 02:09:51.759

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Boardroom: And to close, staff requests that the City Council adopt a resolution adopting the 5-year street rehabilitation Plan and Measure FF Plan for fiscal years 2027 through 2031.

859
02:09:52.050 --> 02:09:58.289
Boardroom: Thank you. Happy to take questions. Thank you all so much. Are there any questions from my Council colleagues?

860
02:09:59.080 --> 02:10:02.400
Boardroom: Oh, starting with, Councilmember Taplin.

861
02:10:03.460 --> 02:10:21.350
Terry Taplin: Thank you very much. We've received this presentation a number of times at fights, and I appreciate the opportunity to see it again and ask more questions. I'm wondering if we can… as I understand, the TIC made a recommendation that staff did not recommend. I'm wondering if staff can speak to their rationale.

862
02:10:23.360 --> 02:10:29.040
Boardroom: Yeah, the TIC recommended that we include Claremont, Oxford, and Telegraph.

863
02:10:29.220 --> 02:10:35.949
Boardroom: And I believe we addressed that during the presentation, but to recap, each of those are…

864
02:10:36.300 --> 02:10:41.440
Boardroom: are going along their separate CD processes. There are,

865
02:10:41.640 --> 02:10:46.409
Boardroom: They are budgeted for, design and construction for…

866
02:10:46.670 --> 02:10:55.069
Boardroom: Oxford for All, Telegraph is… is budgeted for, design for… yeah. Long-range development. Long-range development.

867
02:10:55.310 --> 02:11:05.450
Boardroom: And I believe Claremont, we're complying with the D1s policy there, because of the conflict with the Alameda County Flood Control District project, which starts by the end of the year.

868
02:11:05.650 --> 02:11:17.669

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Boardroom: In parallel to that, we are, we have just installed quick-build safety elements, which we are evaluating currently, and there's gonna be a, complete Streams study done.

869
02:11:17.670 --> 02:11:25.669
Boardroom: In the next few years. And I can add, for Claremont Councilmember, it's also part of the proposal for Measure FF under fiscal year 27.

870
02:11:25.930 --> 02:11:38.050
Boardroom: As we met with the community members regarding the flood control project, we were very clear that although we are following our policy, coordinating closely, we're not going to wait till the flood control project is done.

871
02:11:38.480 --> 02:11:44.279
Boardroom: We are initiating, our assessment as of fiscal year 27, once it gets adopted.

872
02:11:44.470 --> 02:11:51.710
Boardroom: They'll also give us an opportunity to be able to study the quick bill that's already gone in there, that I've been communicating with Councilmember Humbert

873
02:11:52.300 --> 02:12:04.100
Boardroom: A few weeks here and there, and it's taking shape, so it gives us a good opportunity to study what we've implemented, to be able to fine-tune the design for permitted infrastructure, and that's part of the fiscal year 27.

874
02:12:05.110 --> 02:12:17.980
Terry Taplin: Thank you very much. So you mentioned that these streets are on a separate parallel city process. Can you illuminate, or rather, re-illuminate for the public and the council what that process is, and walk us through

875
02:12:18.450 --> 02:12:20.529
Terry Taplin: What that process looks like.

876
02:12:21.660 --> 02:12:23.660
Boardroom: Well, typically, you have…

877
02:12:23.670 --> 02:12:39.619

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Boardroom: streets that get a street repave. And you have these other streets that call for more of a complete street-style project, which is more involved. It typically takes a more involved public input process.

878
02:12:39.620 --> 02:12:49.399
Boardroom: the delivery timeline for a complete street project is a minimum 3, 3 years, 3 to 5 years. I think, for example, Southside was 10 years.

879
02:12:49.600 --> 02:12:51.950
Boardroom: At the extreme end.

880
02:12:52.240 --> 02:12:56.670
Boardroom: For a standard repave, I mean, we can kick off a design

881
02:12:57.070 --> 02:13:05.290
Boardroom: in June of one year, and have it in construction during the next year. So it's a very short timeline.

882
02:13:06.010 --> 02:13:21.019
Boardroom: That's why the paving plan typically only programs streets that we know we're gonna pave in the next 1 to 2 years. Anything beyond that, we want to make sure that we have re-evaluate it in the next 5-year plan cycle.

883
02:13:21.290 --> 02:13:30.110
Boardroom: That's kind of why these are floating out there. And for these three streets, like I said, deferring them now doesn't mean we…

884
02:13:30.300 --> 02:13:35.499
Boardroom: are never gonna pay them. We'll reevaluate them in the next 5-year plan cycle in 2 years.

885
02:13:36.100 --> 02:13:41.149
Terry Taplin: Thank you very much. And so, if these streets require, a level of treatment that is,

886
02:13:42.380 --> 02:13:52.809
Terry Taplin: So extensive as to require any public engagement process and additional infrastructural resources. I'm just wondering…

887
02:13:53.090 --> 02:13:59.460

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Terry Taplin: Can we see the… can we see the draft map again? Sorry, I should've… I should've pulled… requested that that be pulled up earlier.

888
02:14:00.470 --> 02:14:01.170
Boardroom: This one?

889
02:14:01.690 --> 02:14:04.029
Terry Taplin: And this is… no, the, the fighter.

890
02:14:04.230 --> 02:14:06.189
Terry Taplin: Let's see, what shop is this?

891
02:14:10.640 --> 02:14:12.419
Terry Taplin: I believe that may have been the…

892
02:14:12.910 --> 02:14:17.400
Boardroom: Was it on the slide 21 that has… More information?

893
02:14:18.070 --> 02:14:22.500
Terry Taplin: But it's this one, thank you very much. Yeah, I mean, I'm just wondering…

894
02:14:23.080 --> 02:14:37.619
Terry Taplin: Because this is a very long, extensive segment of Hopkins, and I imagine that's more than just a surface, a resurfacing. So I'm wondering why that's on the schedule, whereas the previous streets we mentioned are not.

895
02:14:38.550 --> 02:14:42.790
Boardroom: Sure, I can take that question, Councilmember. As we presented in fights and many other.

896
02:14:43.110 --> 02:15:01.319
Boardroom: opportunities to explain this, that the whole, intent of carrying Hopkins on this is to carry over the funds, as I've explained in previous presentations, that we know Hopkins is not just gonna get asphalt, that, Council is reviewing.

897
02:15:01.770 --> 02:15:09.010
Boardroom: And once, staff gets direction as far as what infrastructure, what multimodal features will go into that corridor.

898

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02:15:09.290 --> 02:15:14.099
Boardroom: then that's what we'll activate. And we didn't want to put in…

899
02:15:14.310 --> 02:15:19.689
Boardroom: Other corridors, other streets, that would not really move forward to…

900
02:15:19.900 --> 02:15:37.120
Boardroom: again, be transparent with the community, but as we discussed during the fights, the plan is to even, once this goes to solicitation, is to be able to advertise it to the contractors to indicate that this is a hold. So once we get clear direction from Council as far as

901
02:15:37.160 --> 02:15:40.980
Boardroom: what features will go with the Hopkins design.

902
02:15:41.060 --> 02:15:53.219
Boardroom: We will pull that, and it'll be in a separate, standalone contract that will be more appropriate to the Complete Streets Corridor projects that we have aligned under Measure FF.

903
02:15:54.260 --> 02:15:59.030
Terry Taplin: Thank you. That's a little, I aim…

904
02:16:00.300 --> 02:16:07.640
Terry Taplin: I think I understand what you're saying. I think it's challenging for the community and the public.

905
02:16:08.050 --> 02:16:10.979
Terry Taplin: It's… it's… it is a little opaque to have…

906
02:16:11.380 --> 02:16:22.360
Terry Taplin: One set of criteria and processes, another set of criteria and processes, be evaluating a draft document that includes a street that is

907
02:16:23.110 --> 02:16:33.079
Terry Taplin: Being included as a placeholder, and then maybe if things go a certain way, it will then be put into a separate track.

908
02:16:33.799 --> 02:16:40.639
Terry Taplin: even though we would be adopting a 5-year plan that included That Street on this track.

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909
02:16:41.230 --> 02:16:43.770
Terry Taplin: I am just having a lot of trouble…

910
02:16:44.790 --> 02:16:52.799
Terry Taplin: thinking through how I'm going to communicate that to the public,

911
02:16:53.170 --> 02:17:12.870
Terry Taplin: I think if we… if we adopt a draft plan, people are going to assume that the streets on that plan are the streets that we've… will be moving forward with, and then I imagine there would be some confusion and frustration where that list of streets or those, that schedule of projects be changed after adoption,

912
02:17:15.209 --> 02:17:29.269
Boardroom: Yes, Councilmember, you're absolutely correct, and that's why we didn't want to substitute a number of streets under the $6 million allocation for Hopkins, and then that does not occur. So, and to your point.

913
02:17:29.350 --> 02:17:37.799
Boardroom: That's the whole intent, is to be able to identify that this is for Hopkins, but be very clear up front that this is not just for pavement and asphalt.

914
02:17:38.049 --> 02:17:42.940
Boardroom: It's a carryover of the funds, and then it'll be separated into a more

915
02:17:42.940 --> 02:18:00.520
Boardroom: complete streets or multimodal corridor approach initiative, whatever the direction is from Council. So I agree with you, yes, that's the main reason why we didn't want to put a handful of other streets that would occupy the 6 million, and it would never occur, because that would be, again, to your point.

916
02:18:00.549 --> 02:18:06.420
Boardroom: A frustrating, Event for the community members who actually live on that street.

917
02:18:12.440 --> 02:18:17.930
Terry Taplin: Thank you for that. Those are my questions. I'll have more to say in the second round, but, I appreciate…

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918
02:18:18.520 --> 02:18:21.750
Terry Taplin: Having the chance, to question this.

919
02:18:22.129 --> 02:18:30.539
Boardroom: Absolutely, and again, if you have any community engagement sessions, we'll be happy to support you and be able to explain our rationale and take feedback.

920
02:18:32.399 --> 02:18:40.519
Boardroom: Thank you. I'm gonna go Councilmember Bartlett, and then Trey Gov, and then Blackaby is online.

921
02:18:40.799 --> 02:18:50.839
Boardroom: Thank you for, for this diligent work. We've met numerous times about this, and I'm really impressed with, how you've woven together, all these disparate.

922
02:18:50.959 --> 02:18:54.079
Boardroom: interests here, and so I'm curious, though,

923
02:18:54.239 --> 02:18:58.639
Boardroom: Because it appears as if the plan is…

924
02:18:58.639 --> 02:19:13.999
Boardroom: It's a 5-year plan, but really, it's good for 2 years, honestly, right? Yes. And so, and so, you know, one of my, one of my streets, Stewart, between McGee, between MLK and Sacramento, they're incredibly non-plussed.

925
02:19:13.999 --> 02:19:20.879
Boardroom: Because they were on the list, and now they're not, and their street, is a gravel road.

926
02:19:21.179 --> 02:19:25.889
Boardroom: Right. And so, I guess I'm curious,

927
02:19:26.169 --> 02:19:45.949
Boardroom: you know, what can I communicate to them, as to, you know, they're on their list for years, right? We did this years ago. Right. And, so what can I tell them, about relief for their street that's damaging their cars and their bikes and causing accidents and whatnot? And then, I guess the second question would be,

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928
02:19:46.649 --> 02:19:59.809
Boardroom: The other neighbors, too, are fearful now, that they'll be removed. The ones that made it onto the list are fearful they'll be removed as well. Is there anything I can communicate to them as well, that they'll stay on this list past 2028?

929
02:19:59.999 --> 02:20:16.379
Boardroom: Sure, and we understand the frustration, Councilmember, and as you mentioned, I've been in community meetings with those residents, community members, that have a valid point. They pay their taxes, but their streets get kicked out, you know, and some streets, as to Terrence's presentation.

930
02:20:16.469 --> 02:20:23.199
Boardroom: you know, has PCI of single digits. We understand. And as I've communicated some of,

931
02:20:23.569 --> 02:20:37.389
Boardroom: as I've emailed some of our community members, the good news is, this is why I think, as Manuj and our team members mentioned, that Measure FF complements our baseline, Public Works 5-year paving rehabilitation.

932
02:20:37.779 --> 02:20:50.439
Boardroom: What that means in the perspective I've used in the language is a 360 lens, where it complements where originally, if we kept the baseline policy, those streets would

933
02:20:50.679 --> 02:20:52.669
Boardroom: Very likely get kicked out.

934
02:20:52.789 --> 02:20:58.419
Boardroom: But the way Measure FF has been written, and I appreciate Manuj going through the verbatim

935
02:20:58.669 --> 02:21:09.169
Boardroom: you know, black and white letter by letter that the ballot measure says. We have programmed it where those streets who… which have been deferred and deferred and deferred.

936
02:21:09.779 --> 02:21:27.859
Boardroom: real fighting chance to actually get repaved. So, although it's unfortunate for Stewart, I do feel it is positive that Measure FF is

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in place, and whether Stewart or other segments or Ward Avenue that also have, you know, low PCI and would not meet the criteria.

937
02:21:27.999 --> 02:21:45.859
Boardroom: really have a good opportunity now to be able to be carried on with Measure FF. If it's not through this round, it could be very real through the next opportunity. So again, that's what I would recommend you share, that this is the best of both worlds. So… and that's how staff diligently has

938
02:21:46.049 --> 02:22:03.479
Boardroom: programmed and drafted it, so that way, we're not looking at just specific aspects of our network. This gives us an opportunity to be able to implement benefits, reconstruct, improvement, safety, throughout the city's network as a whole.

939
02:22:03.519 --> 02:22:09.269
Boardroom: and not just target it. And again, as I've offered to Councilmember Taplin, and you know this very well.

940
02:22:09.679 --> 02:22:24.439
Boardroom: You and I have been in many of these meetings. We'll be happy to support you if there are community meetings. I would love for our team to show up, express, and go into details as far as those opportunities, because we hear them. I'm the first advocate, as you know.

941
02:22:24.559 --> 02:22:31.789
Boardroom: If you're paying your taxes, this gives an opportunity for everyone to be able to benefit and not get skipped for decades and decades.

942
02:22:31.829 --> 02:22:50.129
Boardroom: Thank you, and some neighbors are interested in pursuing self-help, and so, is there any guidance on that front you could offer? Can you go a little bit deeper as far as self-help? Are they gonna pave it themselves? They're prepared to hire a paver and pave it themselves.

943
02:22:50.179 --> 02:23:06.079
Boardroom: We'll be happy to work with them through the city attorney's office and the City Manager's office to see what that looks like. I know that we have a long list of unincorporated streets that our city engineer behind me, and I have met with Councilmember,

944
02:23:06.109 --> 02:23:24.019

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Boardroom: Blackaby, that we're incorporating a framework and a policy. And again, we'll be more than happy to look at what that looks like, but again, we can do that from a technical perspective. I'll look on my colleagues from the City Attorney's Office, City Managers, for direction and guidance. Great, thank you.

945
02:23:26.249 --> 02:23:28.309
Boardroom: Thank you. Councilmember Treykov?

946
02:23:29.049 --> 02:23:38.409
Boardroom: Thank you so much. So, advance warning, I do have a number of questions, hold on, let me get the reporter out.

947
02:23:38.839 --> 02:23:43.089
Boardroom: I'll… I'll cover as many as I can in my time.

948
02:23:43.839 --> 02:23:54.959
Boardroom: I, I note that the majority of FF streets, tend to be, east-west travel. Can you speak to whether that was intentional?

949
02:23:58.129 --> 02:23:59.959
Boardroom: I don't believe it was intentional.

950
02:24:03.579 --> 02:24:13.199
Boardroom: Can you speak to, if or how, schools or other, sensitive,

951
02:24:13.329 --> 02:24:17.789
Boardroom: Areas of interest were considered in developing these two plants.

952
02:24:20.139 --> 02:24:25.869
Boardroom: Yeah, when we select our streets, one of the things we look at is the equity zone.

953
02:24:26.469 --> 02:24:30.879
Boardroom: We prioritize streets within that equity zone by adding a score.

954
02:24:31.529 --> 02:24:48.489
Boardroom: So what we're seeing is that our street selection reflects that. Our mileage and our paving dollars as a comparison to their actual share of total mileage is essentially a concentrated investment in those areas.

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955
02:24:51.149 --> 02:25:08.439
Boardroom: On Table 1C of the report, it seems that there is kind of a lumpiness in, the allocation for each year between streets and sidewalks. It's about $10 million one year, $8 million the next.

956
02:25:08.619 --> 02:25:23.009
Boardroom: Can you just, in general, talk about how you're thinking through the funding allocation projections? You see, for some other categories, there's a drop-off in… within different categories? That's the measure FF?

957
02:25:23.649 --> 02:25:34.499
Boardroom: Table? I'm sorry. I don't have it in front of me. It's the Measure FF table. Okay. Yeah. So I'll start, and I'll hand it over to Manuj. So, Measure FF is a bit unique as far as our revenue.

958
02:25:34.949 --> 02:25:46.269
Boardroom: As you might know, the cash flow varies. For fiscal year 26, it includes about 18 months' worth of revenue that's been collected since January of 2025.

959
02:25:46.419 --> 02:25:51.469
Boardroom: So that gives us approximately $22.5 million to kick things off.

960
02:25:52.859 --> 02:25:57.429
Boardroom: With that, I'm gonna hand over to Manuj, if you want to go into the details as far as the table.

961
02:25:58.660 --> 02:26:14.950
Manoj Madhavan: Yeah, I think that basically explains it, Wahit. I think, you know, we also talked about some of the complications that we have to take into account when we're administering Measure FF. The funding buckets, specifically of the 60, 30, and 10, 60% being for streets and sidewalks.

962
02:26:14.950 --> 02:26:27.210
Manoj Madhavan: And then that, again, is split up into a 45 and 15, bucket. So we're taking all of that into account as well in the math, when we're actually, like, calculating, all these numbers across the 5 years.

963
02:26:27.430 --> 02:26:45.319

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Manoj Madhavan: And it is very complicated to actually get a project complete, like, when we select streets or sidewalks, to actually ensure that we are going and mobilizing at the exact same locations, and also meet these funding requirements. That's basically why you're seeing some

964
02:26:45.460 --> 02:26:52.759
Manoj Madhavan: what you call lumpiness, but it's actually really well thought out in terms of, like, trying to meet these… all these requirements on Azure FF.

965
02:26:52.870 --> 02:26:56.270
Manoj Madhavan: and the cash flow. We don't want to spend more than what we actually get.

966
02:26:56.650 --> 02:26:57.690
Manoj Madhavan: Yearly.

967
02:26:58.590 --> 02:27:10.420
Boardroom: Sounds very reasonable, thank you. My next two questions cover points raised in, the letter, we received on this past Thursday from Walk By Berkeley.

968
02:27:11.020 --> 02:27:26.950
Boardroom: First question is, what would be the implications of combining FF funding with other paving funds to align paving efforts and allow for an integrated citywide paving plan in the manner suggested by Walk Bike Barclay in their letter?

969
02:27:28.660 --> 02:27:40.910
Boardroom: Yeah, I believe when we… in our second-to-last slide, or it might have been third-to-last slide, we cover what the trajectories might look like if we use Measure FF funds as basically an extension of the street rehab Plan.

970
02:27:41.160 --> 02:27:54.680
Boardroom: We reach a PCI of 63 by 2038 versus 62 if we were to go with our current approach, which is along deferred streets. And, to reiterate, we don't believe that's a material difference.

971
02:27:55.270 --> 02:28:06.730
Boardroom: We believe the benefit that we see from alleviating the impacts to some of these community members that live on these streets, or travel on these streets is worth it as a trade-off.

972

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02:28:07.480 --> 02:28:13.810
Boardroom: And this gives us an opportunity to be able to service streets like Stewart, and other…

973
02:28:14.020 --> 02:28:18.750
Boardroom: Corridors and segments that have been skipped for 20, 30 years.

974
02:28:20.230 --> 02:28:27.640
Boardroom: Thank you. What coordination is this plan making, with the newly adopted bike plan?

975
02:28:28.720 --> 02:28:29.700
Boardroom: So…

976
02:28:30.000 --> 02:28:43.419
Boardroom: Whenever we select streets, we are looking at how it overlaps with our bike network, and specifically with the proposed and existing bike networks in the bike plan.

977
02:28:44.100 --> 02:28:51.679
Boardroom: And similar to the equity zone, we're prioritizing those streets when we select them. We're giving them a boost in its prioritization.

978
02:28:51.920 --> 02:29:03.530
Boardroom: And then, to add to that, once we move forward with the design of those projects, we're coordinating with our transportation colleagues to implement some of these safety measures that are, recommended in the bike plan.

979
02:29:03.810 --> 02:29:10.069
Boardroom: Things like traffic calming, traffic circles, things that improve things for bike users.

980
02:29:12.100 --> 02:29:15.210
Boardroom: Thank you,

981
02:29:15.340 --> 02:29:27.870
Boardroom: Are there any corridors? I mean, you've touched on a few, so, are there any other corridors where, resurfacing is intentionally being paired with Vision Zero improvements?

982

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02:29:31.390 --> 02:29:37.730
Boardroom: Not intentionally. We do overweight our trails and collectors. That's where we see most of our…

983
02:29:37.950 --> 02:29:40.490
Boardroom: High injury streets.

984
02:29:40.750 --> 02:29:46.759
Boardroom: So we don't necessarily prioritize based on, on Vision Zero, but we do implement.

985
02:29:47.080 --> 02:29:50.199
Boardroom: recommendations made through the Vision Zero Action Plan.

986
02:29:50.550 --> 02:29:54.559
Boardroom: That is… that is our goal, to act as an implementation vehicle.

987
02:29:55.580 --> 02:30:08.650
Boardroom: Okay, thank you. Actually, I'm almost done with my questions. If a street deteriorates significantly during the 5-year period, but is not currently scheduled for rehabilitation.

988
02:30:09.180 --> 02:30:20.730
Boardroom: My district has a few of them. I think that's true for every district. What process exists to, get it on the program and or move it up?

989
02:30:21.740 --> 02:30:32.470
Boardroom: And actually, specifically, would the ends for change if utility work or nearby construction activity causes unexpected damage to adjacent asphalt?

990
02:30:34.780 --> 02:30:45.179
Boardroom: I would say two things. I would say, first off, if possible, I would call 311 to ensure that the road is made safe immediately, in terms of trying to get it on the paving plan.

991
02:30:45.430 --> 02:30:50.810
Boardroom: I would recommend that they reach out to their council members and advocate for their street.

992
02:30:51.010 --> 02:31:02.299

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Boardroom: That was something we would consider as part of the Measure FF process. The street rehab program is kind of independent of the input we receive from community, it's based on our paving policy, it's based on condition.

993
02:31:02.450 --> 02:31:07.190
Boardroom: So it's not as sensitive to the community input as Measure FF is currently.

994
02:31:07.960 --> 02:31:26.930
Manoj Madhavan: Additionally, if I can add one more thing for Measure FF, is we are supposed to go and do outreach with the community once every three years, which will start next year. So, we're supposed to go to three different parts of Berkeley and talk about the next set of projects that are actually being evaluated and selected and, you know, get input as well.

995
02:31:28.290 --> 02:31:39.209
Boardroom: Thank you, and I, I look forward to, just get… receiving more information at the appropriate time about the next outreach process.

996
02:31:40.530 --> 02:31:42.680
Boardroom: Okay…

997
02:31:42.830 --> 02:31:59.230
Boardroom: Do we have established processes for two-way communication with agencies and utilities, such as East Bay Mud and PG&E, to ensure that planned street work, infrastructure projects, and multi-year plans are shared with us well in advance?

998
02:31:59.800 --> 02:32:17.239
Boardroom: Yeah, we have a quarterly coordination meeting with PG&E, AT&T, all of the telecom. Separately, we have a quarterly meeting with EBMUD, where we share our projects. We've recently gained access to PG&E's GIS maps that show their capital projects, so we get a live update whenever they shift schedules.

999
02:32:17.300 --> 02:32:23.190
Boardroom: So it is something we are actively coordinating with, and we're also getting that information through GIS.

1000
02:32:25.400 --> 02:32:35.100
Boardroom: Thank you. What, if anything, has caused delays to plan implementation in the past, and what can be done to minimize those delays in the future?

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1001
02:32:37.290 --> 02:32:42.780
Boardroom: I'd say the major delay is in the procurement process, either contract execution.

1002
02:32:43.340 --> 02:32:48.320
Boardroom: And, we often see bid protests holding up the process, the process.

1003
02:32:48.680 --> 02:33:04.130
Boardroom: Typically, you'll have a low bidder, and then the second low bidder, who just misses out on winning the project, will try to intervene and win that project by filing a bid protest. That can set the project back, I mean, the contract back, anywhere from 4 to 6 weeks, even longer.

1004
02:33:04.260 --> 02:33:08.140
Boardroom: That potentially delays it into the wet weather season.

1005
02:33:08.470 --> 02:33:15.140
Boardroom: I mean, we want to target anywhere from late summer to early fall in order to get the best optimal weather for paving.

1006
02:33:15.380 --> 02:33:18.619
Boardroom: So right now, those are… that's the main risk I see now.

1007
02:33:19.690 --> 02:33:31.119
Boardroom: Just procurement. And for reference, we just had a recent, for fiscal year 26 contract. We experienced exactly what Terrence was mentioning, and thanks to our city attorney's office, we're working through those logistics.

1008
02:33:33.390 --> 02:33:36.280
Boardroom: Thank you, can… sorry, can you repeat that last part?

1009
02:33:37.250 --> 02:33:55.060
Boardroom: I mentioned that, per Terrence's feedback, we're actually going through the same bid protest issue with the fiscal year 26 package that we're working with the city attorney's Office to be able to resolve and move forward. So again, it happens more than we'd like, but it's a process that has to be played out in

1010
02:33:55.910 --> 02:34:00.010

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Boardroom: Thanks to our city attorney's office, we try to maneuver it as swiftly as we can.

1011
02:34:00.560 --> 02:34:13.729
Boardroom: Thank you so much, and my final question, so I do understand, and appreciate the thought that has, well, gone into this whole presentation, and,

1012
02:34:13.800 --> 02:34:25.099
Boardroom: It's no secret I have been, advocating for Oxford for all. I understand why it's currently not in the plan, because it's on a parallel track.

1013
02:34:25.240 --> 02:34:38.830
Boardroom: No pun intended. If, for whatever reason, there is a delay in, implementation of, that separate process.

1014
02:34:39.040 --> 02:34:58.190
Boardroom: Can you speak to, what consideration can be given to, at a future point, putting Oxford back on the plan? And I think that's probably… I will ask the same question for the other two.

1015
02:34:58.610 --> 02:35:03.749
Boardroom: Initiatives that were mentioned as moving on a separate trajectory.

1016
02:35:04.800 --> 02:35:21.910
Boardroom: Sure, I can start. I think we already have, Oxford for All, not, under… oh, I'm sorry, Oxford Complete Streets under Measure FF for fiscal year 2030 or 31? Manoush, which one is it? 30 or 31?

1017
02:35:22.340 --> 02:35:25.200
Manoj Madhavan: 30, I believe, but I am checking, sorry.

1018
02:35:26.550 --> 02:35:41.490
Boardroom: So, to your point, Councilmember, if SOSAP doesn't come through for, Oxford for All, that would be the next opportunity for staff to grab it and hopefully move into design in a more comprehensive, corridor-complete Streams approach.

1019
02:35:42.010 --> 02:35:43.400
Boardroom: Does that answer your question?

1020

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02:35:43.980 --> 02:35:45.539
Boardroom: Yes, thank you so much.

1021
02:35:48.090 --> 02:35:51.989
Boardroom: Thank you. Councilmember Brockaby, and then Councilmember Kesarwani.

1022
02:35:51.990 --> 02:35:53.560
Brent Blackaby: Great.

1023
02:35:53.660 --> 02:35:56.869
Brent Blackaby: I mean, you're still on.

1024
02:35:56.870 --> 02:36:00.349
Boardroom: Councilmember Buckabee, we can't cure you very well.

1025
02:36:01.440 --> 02:36:02.819
Brent Blackaby: Hello, can you hear me now?

1026
02:36:02.820 --> 02:36:04.490
Boardroom: Yes, we can hear you better.

1027
02:36:04.490 --> 02:36:14.650
Brent Blackaby: Sorry, okay. Thanks, Madam Mayor. I wanted to thank, Interim Director Amiri, Mr. Salonga, and Mr. Madhavan for all their work, and

1028
02:36:14.650 --> 02:36:33.679
Brent Blackaby: as much dealing with all of us as we advocate for the projects in our districts. I know that there's a lot to balance here, and later in my remarks, I will be doing more of that advocacy, so fair warning, but I really appreciate all the effort that's gotten us to that point. Just a few questions for clarification purposes.

1029
02:36:33.870 --> 02:36:52.019
Brent Blackaby: the criteria for prioritizing, kind of, what gets resources first, second, and third, that's really something that's set… that's a policy decision that's set by Council, right? You're pretty much just… you're carrying out and fulfilling that vision, but the prioritization and kind of the, you know, the order and the criteria

1030
02:36:52.020 --> 02:36:57.820

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Brent Blackaby: you're really kind of taking that direction from Council and making the best plan, given that input, is that fair to say?

1031
02:36:57.820 --> 02:36:59.840
Boardroom: Correct. Correct. Oh, thank you.

1032
02:36:59.840 --> 02:37:14.250
Brent Blackaby: Okay. Is it possible offline, not now, but could you share, you know, over the next, kind of, period of months, and as we head into this cycle, I'd love to sort of just go deeper into how the criteria work, and is it possible just to sort of

1033
02:37:14.330 --> 02:37:19.739
Brent Blackaby: get, like, the, you know, how that process works and all the criteria. I know there's a lot, there's…

1034
02:37:19.740 --> 02:37:38.109
Brent Blackaby: kind of all the various plans that you talked about, there's the, there's the equity zone piece of this, but to the extent that if we want to reprioritize or bump something up or something down, would it be possible for us to just see that so we could spend a little time as a body looking at that and then making refinements as needed?

1035
02:37:39.210 --> 02:37:39.960
Boardroom: No problem.

1036
02:37:40.290 --> 02:37:54.699
Brent Blackaby: Okay, great. Appreciate also the thought that you went into with kind of the core rehabilitation plan as separate from Measure FF, and kind of applying two different lenses to it. I thought that's a really smart way of

1037
02:37:54.700 --> 02:38:11.930
Brent Blackaby: kind of doing the, you know, how do you maximize pavement life per dollar by focusing at that optimal point in the deterioration curve, doing that with the core budget? And then with Measure FF, you're focusing dollars on streets at the bottom of the curve.

1038
02:38:11.950 --> 02:38:21.779
Brent Blackaby: And trying to sort of lift everything back up. Is it possible to flip back a couple of charts where you just look at the Measure FF kind of map? Is that possible in the presentation?

1039
02:38:24.200 --> 02:38:25.170

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Brent Blackaby: P got it.

1040
02:38:25.170 --> 02:38:26.589
Boardroom: We're pulling it up now.

1041
02:38:26.590 --> 02:38:27.590
Brent Blackaby: Okay, thanks.

1042
02:38:28.770 --> 02:38:33.770
Brent Blackaby: My question here is…

1043
02:38:37.750 --> 02:38:39.229
Brent Blackaby: Just the FF chart.

1044
02:38:39.230 --> 02:38:39.740
Boardroom: Oh, I'm sorry.

1045
02:38:39.740 --> 02:38:42.410
Brent Blackaby: Yeah, sorry about that. Yeah, just the FF chart.

1046
02:38:42.410 --> 02:38:43.789
Boardroom: Just the FFF short, okay.

1047
02:38:43.790 --> 02:38:44.390
Brent Blackaby: Yep.

1048
02:38:44.830 --> 02:38:47.820
Brent Blackaby: This is now coming back into my,

1049
02:38:48.670 --> 02:39:07.330
Brent Blackaby: District 6. Okay, so District 6 advocacy. So my question on FF, so, you know, we have, like other districts, we have a lot of streets with sub-PCI 50, and in my remarks later, I've been kind of crunching some data. I know that we don't have any streets currently in the 5-year plan that are scheduled to be funded by FF,

1050
02:39:07.330 --> 02:39:11.079
Brent Blackaby: Is that because our streets aren't also part of…

1051
02:39:11.140 --> 02:39:22.039

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Brent Blackaby: another one of those citywide plans, like the bike plan, or like the Vision Zero plan, because I think there was, like, multiple things happening here that gets a project onto the FF list. It's not just…

1052
02:39:22.040 --> 02:39:33.870
Brent Blackaby: PCI below 50, but it's PCI 50, or below, plus some other factor. So my question is, you know, and I think, you know, District 7's in this boat, District 8 is in this boat, District 4 is even in this boat.

1053
02:39:33.900 --> 02:39:43.520
Brent Blackaby: of how do we get more of those sub-50 PCI streets onto the Measure FF plan if the intent is to pave streets sub… of sub-PCI 50?

1054
02:39:46.520 --> 02:39:57.859
Boardroom: I'll start, Manoj. I know this is a Measure FF question, but, currently there is no paving policy for Measure FF, which states we have to, you know, advance these other city plans.

1055
02:39:58.030 --> 02:40:04.559
Boardroom: Like Minot stated in his, in his presentation, it's, relying upon community input.

1056
02:40:05.170 --> 02:40:14.099
Boardroom: And in subsequent years, we plan to hold community meetings to gather more community input and boost some of these long-deferred streets up in our plan.

1057
02:40:16.900 --> 02:40:29.190
Brent Blackaby: Okay, that sounds good. I'm gonna come back to some of my remarks later, but again, this is all not to take away at all from the great work that you've done, and I am super excited, just, I think the public should also know, we're talking about

1058
02:40:29.300 --> 02:40:33.680
Brent Blackaby: Paving 65 miles of streets over the next 5 years, which is double

1059
02:40:33.720 --> 02:40:37.949
Brent Blackaby: what we did over the previous 5 years. So we're gonna be paving twice as many streets.

1060
02:40:37.980 --> 02:40:46.920

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Brent Blackaby: Over the next 5 years, as we did the previous 5, which is a huge accomplishment, a lot of the discussion debate is just about how we prioritize those scarce dollars.

1061
02:40:46.920 --> 02:40:58.320
Brent Blackaby: But there's no question this is going to make a huge impact, a huge positive impact, quality transportation, quality of life, safety, in the city, and so I just wanted to thank you for doing all this work, even while we continue to,

1062
02:40:58.730 --> 02:41:02.150
Brent Blackaby: harass you about the particular prioritization details, so thank you.

1063
02:41:02.990 --> 02:41:03.660
Boardroom: Thank you.

1064
02:41:04.720 --> 02:41:06.679
Boardroom: Thank you, Councilmember Kasarwani.

1065
02:41:11.580 --> 02:41:21.630
Rashi Kesarwani: Thank you very much, Madam Mayor, and I want to thank, Interim Director Amiri, Mr. Salonga, and Mr. Madhavan for…

1066
02:41:22.020 --> 02:41:24.200
Rashi Kesarwani: for the presentation.

1067
02:41:24.290 --> 02:41:35.899
Rashi Kesarwani: And, this is just such a tremendous improvement. I know I talk a lot about where we were, you know, at the start of my council tenure, where we had

1068
02:41:36.930 --> 02:41:56.090
Rashi Kesarwani: a budget that was requiring us to not invest enough in our street paving, and it would lead us to a pavement condition on average that was lower at the end of the five-year period than higher. And so to see where we are now with the baseline funding

1069
02:41:56.360 --> 02:42:12.810
Rashi Kesarwani: that's over $80 million, and then the Measure FF funding that adds over 40, I think it's $42.1 million. You know, this is just really exciting, and I do want to say, as I am moving around our city already, I'm seeing the,

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1070
02:42:13.060 --> 02:42:14.890
Rashi Kesarwani: result of…

1071
02:42:15.080 --> 02:42:28.929
Rashi Kesarwani: Council's action previously to add in the $8.5 million more from general fund, you know, the capital improvement plan funding for streets. I'm seeing, streets in

1072
02:42:29.040 --> 02:42:44.810
Rashi Kesarwani: in… all over the city, in District 6, and District 1, and elsewhere, that… that are getting the treatment that they need. So I just want to appreciate that. And, I… I think Councilmember Blackaby already talked about what I wanted to highlight, which is

1073
02:42:44.890 --> 02:42:52.879
Rashi Kesarwani: This use of what you call in the report the weighted effectiveness ratio, to rank streets

1074
02:42:53.250 --> 02:42:57.580
Rashi Kesarwani: by the… I believe it's the pavement Life Gained

1075
02:42:57.620 --> 02:43:15.059
Rashi Kesarwani: per dollar spend, and using this, you know, quote-unquote, critical point management strategy to target streets right before they drop into a more expensive treatment tier. So I think that's really great, because I think you showed that, that cost curve, that when we

1076
02:43:15.200 --> 02:43:18.550
Rashi Kesarwani: wait, and we prolong the treatment, it can cost…

1077
02:43:18.550 --> 02:43:35.730
Rashi Kesarwani: I think it's 8X than what it would otherwise cost if we do the treatment earlier. So, I want to express support for that. I think that makes a lot of sense. And then, to have Measure FF come in and address the deferred maintenance, address the streets that need the full…

1078
02:43:35.730 --> 02:43:41.120
Rashi Kesarwani: Reconstruction. I think that makes a lot of sense, and I… I do, think that…

1079
02:43:41.580 --> 02:43:56.040

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Rashi Kesarwani: You know, in looking at the map of what is going to be done by 6, you know, I… or not by 6, by Measure FF, I do see, Councilmember Blackaby's point, you know, certain districts are not receiving the benefit with what we're proposing here, and so…

1080
02:43:56.040 --> 02:44:03.410
Rashi Kesarwani: I know we have more time with FF, and so… and I know there are other streets in need, so I think hopefully we can…

1081
02:44:03.590 --> 02:44:19.469
Rashi Kesarwani: sort of spread the love there and get to more streets that are below 50 pavement conditions as that measure continues to provide us resources. And I do want to thank the public for supporting that item, and thank the advocates who

1082
02:44:19.500 --> 02:44:24.009
Rashi Kesarwani: You know, collected signatures for that, so we can actually

1083
02:44:24.900 --> 02:44:33.599
Rashi Kesarwani: get to a place, as our… as Director Amiri was explaining, you know, where we can see a citywide average pavement condition that's in the…

1084
02:44:34.150 --> 02:44:35.910
Rashi Kesarwani: 60s, so…

1085
02:44:36.700 --> 02:44:49.869
Rashi Kesarwani: So I'm just really pleased to see where we are. I also wanted to, you know, because I was here when we developed the policies that you're now implementing around the equity zone, and I just want to say that I think that that's really important, because before…

1086
02:44:50.730 --> 02:44:57.420
Rashi Kesarwani: When we had this equity zone, we were doing the exact same street miles in each district.

1087
02:44:57.420 --> 02:45:14.109
Rashi Kesarwani: And as we know, you know, when you are exactly equal, you end up not being equitable. And so, you know, we had our auditor put out our rocky road streets audit that showed, in fact, when we do an equal number of streets in each district, and we underinvest overall.

1088
02:45:14.110 --> 02:45:24.850

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Rashi Kesarwani: We were seeing the pavement condition going down by a greater number in the equity zone than in other zones, because the equity zone does get heavier trough

1089
02:45:24.910 --> 02:45:42.070
Rashi Kesarwani: truck traffic and greater use. So I think it, you know, I, I, you know, it's really satisfying to see, to see us effectuate that, that concept of trying to allocate these dollars equitably. And so, so I, I wanted to…

1090
02:45:42.400 --> 02:45:57.210
Rashi Kesarwani: express my appreciation for that. I hear from my colleagues, I know not everyone… I know not every street is getting what it deserves, and I see those emails as well, you know, the frustration of people, and so I just want to reassure the public that

1091
02:45:57.250 --> 02:46:08.989
Rashi Kesarwani: We do have these resources now, and so I do hope and expect that streets that need to get the reconstruction will be able to get it over the…

1092
02:46:08.990 --> 02:46:19.129
Rashi Kesarwani: the 14 years that we have Measure FF in place. So thank you again for this presentation, and, looking forward to seeing us spend these dollars.

1093
02:46:20.480 --> 02:46:23.970
Boardroom: Thank you. Councilmember Humber, did you have a question?

1094
02:46:24.940 --> 02:46:29.060
Boardroom: No, Madam Mayor, I really just have comments, so I'll wait.

1095
02:46:29.640 --> 02:46:35.069
Boardroom: Sure. So… I think there are a couple things that I'm trying to understand.

1096
02:46:35.350 --> 02:46:51.260
Boardroom: now that we've passed the budget, on the major corridor status slide, which is slide 11, I'm sorry, I know we keep coming back to this. So I hear what you're saying about that they're deferred.

1097
02:46:53.290 --> 02:46:56.390
Boardroom: But I think what I'm struggling with is that…

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1098
02:46:56.750 --> 02:46:59.259
Boardroom: a couple of things. It says that…

1099
02:47:01.850 --> 02:47:06.420
Boardroom: This… the Telegraph Multimodal Corridor Study is underway.

1100
02:47:06.600 --> 02:47:12.999
Boardroom: And that $1.349 million, that's funding that already is towards that?

1101
02:47:15.920 --> 02:47:32.399
Boardroom: The 1.325 is from the long-range development plan that was part of the adopted, plan. The 1.349, that's below it, that's the next bullet point. That's a multimodal corridor study, south of Dwight. That's the telegraph multimodal

1102
02:47:33.620 --> 02:47:35.520
Boardroom: Doined to South City.

1103
02:47:35.650 --> 02:47:52.789
Boardroom: Yeah, that one is a separate project from the segment we're looking at for paving. That's just in there to show how much of the corridor is going to change in the next few years. Okay. The Telegraph Multi-Mobile is from Dwight going towards the Oakland border. Right. So we're getting into final design that's fully funded.

1104
02:47:52.880 --> 02:47:57.889
Boardroom: And then the Carfe Telegraph is, again, going towards, Bancroft.

1105
02:47:58.160 --> 02:48:12.880
Boardroom: And this second… this 1.325, though, for a car-free telegraph budget referral in January 27 was the referral, but then at Council, we approved funding from the LRDP. Correct.

1106
02:48:14.720 --> 02:48:18.770
Boardroom: It's just… it's not… it's just not listed on here, is that right?

1107
02:48:18.940 --> 02:48:31.499
Boardroom: Yeah, maybe we forgot to update that. Yeah. My apologies. Okay, no, that's okay. I just want to make sure that somewhere it's

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confirmed that that exists. And I guess what I'm also trying to understand is.

1108
02:48:33.200 --> 02:48:42.089
Boardroom: you know, why this… why Telegraph and Oxford are being deferred if we set aside funding for them in the LRDP and SOCIP?

1109
02:48:43.360 --> 02:49:03.199
Boardroom: I believe that funding is for the preliminary phases of the projects. It doesn't fund paving. Like I said, for projects like this, complete street studies, we're looking at a 3-5 year horizon. Yeah, I guess it's… I mean, in 2 years, when we know more about the direction where these projects are gonna take.

1110
02:49:03.360 --> 02:49:09.479
Boardroom: We can re-evaluate them for inclusion in the 5-year plan, but at the current state, it seems like it's too far out to include.

1111
02:49:09.590 --> 02:49:21.599
Boardroom: I see. I guess… I guess I'm just confused by the slide, and I think maybe in future years… it would just be helpful in future presentations, I think, to…

1112
02:49:21.600 --> 02:49:36.979
Boardroom: to state, like, where it's at, because I think one of the things that gets very confusing to folks is, like, okay, it's… alright, I get it, it's not being actually paved in the current 5-year plan, and also, I think somewhere it would be helpful to show that

1113
02:49:37.120 --> 02:49:44.080
Boardroom: it's sort of in process with this, you know, the study that's being done, just so we can understand that better.

1114
02:49:44.190 --> 02:49:45.970
Boardroom: Got it. Good feedback, thank you.

1115
02:49:46.240 --> 02:49:47.540
Boardroom: Okay.

1116
02:49:48.530 --> 02:49:53.600
Boardroom: Alright, I think that was my only question. Is there public comment on this? We are on…

1117

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02:49:54.020 --> 02:50:00.789
Boardroom: Item number 10, which is the 5-year street rehabilitation and Measure FF plans for fiscal years 2027 through 2031.

1118
02:50:02.260 --> 02:50:04.530
Boardroom: I think there's a couple of folks that are online.

1119
02:50:19.540 --> 02:50:22.190
Boardroom: First is Charles Siegel.

1120
02:50:27.610 --> 02:50:37.139
Charles Siegel: I'd like to see whether I have 2 minutes or 1, 2 minutes. So I'm speaking on behalf of Walk Berkeley, and I'd like to ask you to add funding for…

1121
02:50:37.440 --> 02:50:41.160
Charles Siegel: a, Hearst Avenue Complete Street Study.

1122
02:50:41.910 --> 02:50:45.210
Charles Siegel: And, you know, her staff is between…

1123
02:50:45.850 --> 02:50:54.259
Charles Siegel: Between California and Millville is a complete street study… Complete Street Study Corridor and the bike plan.

1124
02:50:54.480 --> 02:50:59.349
Charles Siegel: Normally, when the street is paved, the complete street study is done first.

1125
02:50:59.500 --> 02:51:09.719
Charles Siegel: But in this case, as we've seen, it's deteriorating quickly, and we have to pave it in 2027, or else the cost of paving will go way up.

1126
02:51:09.910 --> 02:51:14.309
Charles Siegel: But it's also possible to do the complete street study afterwards.

1127
02:51:14.680 --> 02:51:21.559
Charles Siegel: And whatever improvements in safety we can make, we could do it as retrofits after the paving.

1128

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02:51:22.520 --> 02:51:28.290
Charles Siegel: And I picked the way to do that My specific ask is that…

1129
02:51:29.030 --> 02:51:35.079
Charles Siegel: You know, staff's gonna have to come back with four issues for aircraft spending, which are…

1130
02:51:35.230 --> 02:51:39.439
Charles Siegel: Of dubious legality, and that they have to get legal opinion.

1131
02:51:39.690 --> 02:51:47.059
Charles Siegel: And I'd like to ask the Council that when we come back with those four items, ask them also to come back.

1132
02:51:47.170 --> 02:51:50.690
Charles Siegel: With an estimate of the cost of a Hearst Avenue.

1133
02:51:51.160 --> 02:51:53.469
Charles Siegel: Complete Strength Study.

1134
02:51:53.690 --> 02:52:07.889
Charles Siegel: And the reason Hearst Avenue is important is because it's the final link in the Oldie Greenway. We've improved the oldie Greenway in northwest of the BART station. We're going to improve it to the BART station.

1135
02:52:07.960 --> 02:52:14.620
Charles Siegel: But that doesn't do much good if you get through the BART station, and you just have a dangerous threat to her street.

1136
02:52:14.950 --> 02:52:26.760
Charles Siegel: And this would actually complete the Ohlone Greenway as a major regional facility leading all the way from cities to the north to downtown Berkeley and to the campus.

1137
02:52:27.000 --> 02:52:30.110
Charles Siegel: So please do include that. Thank you.

1138
02:52:30.110 --> 02:52:31.590
Boardroom: Thank you.

1139

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02:52:32.590 --> 02:52:34.459
Boardroom: Next is Kelly.

1140
02:52:41.870 --> 02:52:43.250
Kelly's iPad: Can you hear me okay?

1141
02:52:44.150 --> 02:52:45.770
Boardroom: Yes. Yes.

1142
02:52:45.770 --> 02:52:46.600
Kelly's iPad: Alright.

1143
02:52:48.010 --> 02:53:00.920
Kelly's iPad: So I've been listening all night, and of course listening to this, and spending my day immersed in looking at Hopkins and the bicycle plans since 2017.

1144
02:53:01.880 --> 02:53:05.520
Kelly's iPad: And when I walk around this city.

1145
02:53:05.870 --> 02:53:10.840
Kelly's iPad: I don't see people using the bicycle infrastructure to any real degree.

1146
02:53:11.430 --> 02:53:22.180
Kelly's iPad: And we paid… $367,451 for the update of the bicycle plan, and we did not get a bicycle count.

1147
02:53:23.700 --> 02:53:29.939
Kelly's iPad: To show how things are being utilized, how this infrastructure is being utilized.

1148
02:53:30.570 --> 02:53:43.899
Kelly's iPad: And we don't have a baseline for the next infrastructure of how all this spending on bicycle infrastructure is being utilized from 2026 forward.

1149
02:53:44.880 --> 02:53:50.580
Kelly's iPad: And it just seems like Walk Bike Berkeley is running the city, and…

1150
02:53:51.020 --> 02:53:54.859

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Kelly’s iPad: South Berkeley is getting screwed again.

1151
02:53:55.480 --> 02:54:02.159
Kelly’s iPad: With, a street that is gravel, And isn't being fixed.

1152
02:54:02.970 --> 02:54:09.009
Kelly’s iPad: And we're putting all this energy into Hopkins, where there are multiples of problems.

1153
02:54:09.950 --> 02:54:13.170
Kelly’s iPad: So…

1154
02:54:13.880 --> 02:54:24.040
Kelly’s iPad: I would, I appreciate what is being done on trying to put a five-year plan together and recognizing how staff are being pressured.

1155
02:54:24.420 --> 02:54:35.159
Kelly’s iPad: But… I really think that some of this needs to be re-evaluated, especially when it comes to Hopkins.

1156
02:54:35.570 --> 02:54:41.600
Kelly’s iPad: And I understand that's gonna come to us on the 28th, and it's not ready.

1157
02:54:42.950 --> 02:54:46.139
Kelly’s iPad: So I'm running out of time, but I could talk a lot more.

1158
02:54:46.140 --> 02:54:47.620
Boardroom: Thanks, Kelly.

1159
02:54:48.980 --> 02:54:51.840
Boardroom: Councilmember Humber, you have questions… you have comments?

1160
02:54:52.340 --> 02:54:53.370
Boardroom: Yes.

1161
02:54:53.700 --> 02:54:56.189
Boardroom: I do, Madam Mayor.

1162
02:54:57.340 --> 02:55:15.649

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Boardroom: you know, there has been, you know, some amount of discussion about, sort of, siloing the FF paving funds versus the other, you know, the 5-year, general 5-year paving plan. And, you know, I understand, you know, we're dealing here with, sort of.

1163
02:55:16.360 --> 02:55:30.449
Boardroom: not an embarrassment of riches, but many more resources than we had before, and that's a wonderful thing, and I think this was a rational way to handle it. I know there probably are other ways to handle it, but…

1164
02:55:30.450 --> 02:55:38.209
Boardroom: But, I'd echo Councilmember Kassarwani's comments, and I think Councilmember Blackaby's comments, if he said this.

1165
02:55:38.210 --> 02:55:55.089
Boardroom: I hope he did, that, you know, this kind of allocation makes sense, so I wanted to make that point. I want to thank Public Works Interim Director Wahit Amiri for all of his work, and Mr. Solanga, Mr. Madavan, and their staff for

1166
02:55:55.090 --> 02:56:03.590
Boardroom: a huge lift here. It's really hard and complex work that went into the 5-year paving plan and measure FF plan for these fiscal years.

1167
02:56:03.750 --> 02:56:18.260
Boardroom: I'd like to also thank the Transportation Infrastructure Commission for its input. These plans are going to make our city streets and sidewalks and bike and pedestrian facilities much better and much safer.

1168
02:56:18.820 --> 02:56:29.289
Boardroom: And, you know, and so I'm really happy about all this, and I'm really happy that, you know, hopefully we're gonna move forward, with, with this, with this program.

1169
02:56:30.860 --> 02:56:48.779
Boardroom: I appreciate the confirmation, by Mr. Solonga, I think it was, that the traffic signal study and certain technology-related infrastructure items and the transportation nexus study, which Council directed be moved to the unfunded need category, are removed in this item.

1170
02:56:49.040 --> 02:57:08.869

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Boardroom: from the spending plan, pending further review by staff, city attorney's office, the FF Oversight Commission, and then, then ultimately back to Council. And, you know, for a belt and suspenders approach, I'm gonna maybe later, add, some language

1171
02:57:08.970 --> 02:57:14.049
Boardroom: To the, to the, the resolution that kind of nails those things down.

1172
02:57:14.150 --> 02:57:20.159
Boardroom: But… but I really do want to thank… I want to thank staff for all this really good work. Thank you.

1173
02:57:21.220 --> 02:57:24.989
Boardroom: Thank you. Comments from Councilmember Taplin?

1174
02:57:26.230 --> 02:57:39.269
Terry Taplin: Thank you. I would like to also thank Public Works and everyone, and I'm really proud of our equity zone policy, and very proud of Council's

1175
02:57:39.760 --> 02:57:44.260
Terry Taplin: general fund commitment to paving, and I want to thank Councilmember Cassarani for her leadership on that.

1176
02:57:44.550 --> 02:57:57.979
Terry Taplin: There are a lot… there are a lot of things in this draft plan that I really appreciate. I… I continue to grapple with the concept of adopting a 5-year plan that we know.

1177
02:57:58.180 --> 02:57:59.040
Boardroom: Well…

1178
02:57:59.040 --> 02:58:00.979
Terry Taplin: Change really soon.

1179
02:58:01.630 --> 02:58:04.440
Terry Taplin: it feels…

1180
02:58:07.860 --> 02:58:11.570
Terry Taplin: it, it's…

1181

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02:58:13.000 --> 02:58:23.990
Terry Taplin: it feels so… I know that we adopt the 5-year plan in that segment of time, and I know that things can change. I would prefer…

1182
02:58:24.110 --> 02:58:32.930
Terry Taplin: having a clear view of the final product, we would be… ultimately adopting.

1183
02:58:33.140 --> 02:58:39.720
Terry Taplin: And I recognize we don't have that, and I… I am… I do want to be… cognizant of…

1184
02:58:39.820 --> 02:58:44.980
Terry Taplin: Our need to get things out to bid in a manageable timeline for anything to move forward.

1185
02:58:45.110 --> 02:58:52.080
Terry Taplin: I'm, but I… Would be remiss if I didn't acknowledge

1186
02:58:52.930 --> 02:58:55.980
Terry Taplin: My unresolved questions and concerns around

1187
02:58:56.340 --> 02:59:02.560
Terry Taplin: the discrepancy between the way Hopkins and the other Complete Streets are being treated.

1188
02:59:03.050 --> 02:59:11.620
Terry Taplin: That is creating a kind of confusion, I… M… struggling to…

1189
02:59:13.240 --> 02:59:22.760
Terry Taplin: to think through towards potential clarifications for my… for my constituents. But yeah, I just wanted to share that for now.

1190
02:59:24.920 --> 02:59:26.470
Boardroom: Councilmember Blackaby.

1191
02:59:27.390 --> 02:59:37.009
Brent Blackaby: Thanks, Madam Mayor, and again, just to thank the Public Works staff for all their great work, the Transportation Infrastructure Committee, for their review of this as well.

1192
02:59:37.010 --> 02:59:50.180

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Brent Blackaby: I… and I'm proud to support this plan. It's gonna, you know, move the city forward measurably. I do want to share a couple of things just for consideration for next time, just as we're kind of coming back, in the next two years.

1193
02:59:50.180 --> 02:59:52.450
Brent Blackaby: This is based on my own, kind of.

1194
02:59:52.490 --> 03:00:09.809
Brent Blackaby: number crunching from the plan, and just to kind of put this all in context about how this is going to kind of play out across the city. Again, we… there's 213 miles of pavement, as we've talked about, across the city, centerline miles. We're going to touch 65 miles.

1195
03:00:09.860 --> 03:00:15.939
Brent Blackaby: Which is amazing, over the next 5 years, which leaves about 138 miles untreated.

1196
03:00:16.150 --> 03:00:29.989
Brent Blackaby: This is how it sort of breaks out by district, which again, is not the only view, but again, I'm not being a good advocate for District 6 if I don't at least take a look at this. So I just want to at least acknowledge the fact that

1197
03:00:30.210 --> 03:00:35.419
Brent Blackaby: In DCX, we represent about 17% of the total street miles in the city.

1198
03:00:35.460 --> 03:00:50.830
Brent Blackaby: We're getting 12% of the treatment over the next 5 years. It's the biggest disparity in terms of, you know, we're 17% of the miles and 12% of the treatment. In particular, what's left over after the 5-year plan is we have the most

1199
03:00:50.830 --> 03:01:04.419
Brent Blackaby: street miles of sub-50 and sub-30 PCI streets in the city, by a fair margin. So my concern about, again, how we're allocating FF dollars is all from this perspective. Like, my district…

1200
03:01:04.560 --> 03:01:23.959
Brent Blackaby: has a lot of streets in poor condition, like many of us do, but we're going to have the most streets in poor condition relative to other districts in the city. We also are a part of the city where, in many places, we don't have sidewalks, so the quality of the street is the quality of the sidewalk for many residents in District 6.

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1201
03:01:23.960 --> 03:01:43.429
Brent Blackaby: So, again, I'm fully supportive. We're taking and unleashing an enormous amount of paving and safety improvements in the city, and I'm very, very pleased about that. That is really great news. We all use, in District 6, we all use resources and transportation infrastructure in all parts of the city, so we're going to appreciate

1202
03:01:43.430 --> 03:01:50.490
Brent Blackaby: having stuff done that's downtown, we're gonna appreciate things that are done in North Berkeley, we're gonna appreciate all of this investment that's happening all across the city.

1203
03:01:50.490 --> 03:02:09.650
Brent Blackaby: But I do think as we move forward and come back again in a couple of years, I just think we need to narrow a few of these gaps, because I feel like, you know, we… I think we need to see more of these benefits more quickly as we move forward. But again, this is not to minimize staff's work. Staff is following the policy directions of the Council, and they're making the best

1204
03:02:09.660 --> 03:02:25.070
Brent Blackaby: use of those scarce resources, so I totally appreciate that. I just think we may need to look at some policy adjustments just to make sure that we're treating all parts of the city fairly as we move forward. But again, I'm proud to support the overall plan and look forward to the results that come from this. So, thank you.

1205
03:02:25.610 --> 03:02:28.660
Boardroom: Thank you. Okay, Councilmember Trey Gub.

1206
03:02:31.160 --> 03:02:46.409
Boardroom: Thank you, Madam Mayor. I'd like to first thank the Public Works Department for their incredible work on this item. In particular, Acting Director Amiri, Mr. Salonga, and Mr. Madavan.

1207
03:02:47.110 --> 03:03:02.779
Boardroom: The annual increase in miles planned for rehabilitation truly demonstrates the department's commitment to improving conditions citywide and to the long-term maintenance of our street infrastructure,

1208
03:03:03.300 --> 03:03:13.680
Boardroom: Minor fluctuations in, percentage spent per mile in each district, notwithstanding.

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1209
03:03:13.730 --> 03:03:25.540
Boardroom: I'm also glad to see that we're coordinating the 5-year street rehabilitation plan with Measure FF funding, and I really appreciate your, explanation around

1210
03:03:25.540 --> 03:03:39.280
Boardroom: the methodology used for each of this. I think that's going to be very helpful as I, attempt to explain this to my constituents. And together, this truly allows for sidewalk and pedestrian path

1211
03:03:39.340 --> 03:03:45.629
Boardroom: Accessibility improvements, safety projects, and environmental enhancements.

1212
03:03:46.010 --> 03:04:04.360
Boardroom: I am… I'm so proud of the work that has already been done, in my district. These are streets I walk by every day on my way to City Hall, and I know that that will, accelerate, with FF.

1213
03:04:04.960 --> 03:04:08.010
Boardroom: And,

1214
03:04:08.150 --> 03:04:26.020
Boardroom: I appreciate that Public Works is, doing a lot to incorporate utility coordination, Dig Once opportunities, Vision Zero priorities, bicycle and pedestrian improvements, AD and Provac accessibility, and stormwater requirements as they do this work.

1215
03:04:26.110 --> 03:04:43.059
Boardroom: As the city continues to solicit input from all segments of the community, it will be important that due attention is given to soliciting and closely considering the input of differently abled community members, such as those who are blind or deaf.

1216
03:04:43.320 --> 03:04:59.100
Boardroom: As I create the plan, since by the time it's fully scoped out, it is often too late. Just responding to, a few communications that we received and comments that have been made, I…

1217
03:04:59.230 --> 03:05:08.599
Boardroom: I'm very open to continuing to, revisit, or re… to revisiting, the…

1218

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03:05:10.360 --> 03:05:34.069
Boardroom: the ordering of, funding, within the first, corridor between California and MLK, while it is, not in my district, many of my constituents do use, that particular, corridor to be able to bike, and, I think there is an inter…

1219
03:05:34.070 --> 03:05:45.519
Boardroom: And I have used it as well, and there, there is an interest in making sure that, when they do, when we, when I do, that we're able to transit it safely.

1220
03:05:46.800 --> 03:05:58.039
Boardroom: I look forward to continued collaboration with staff, around future community engagement opportunities in general, as well as in my district.

1221
03:05:58.730 --> 03:06:17.430
Boardroom: And I want to note that this process is just the beginning. And as well, I look forward to continuing our long-standing partnership to effectuate our Oxford for All referral, and with that, I am very excited to support this plan.

1222
03:06:17.590 --> 03:06:19.020
Boardroom: Councilmember Lunaparo.

1223
03:06:21.450 --> 03:06:29.320
Boardroom: Thank you, and thank you for being here today. I… I, share a lot of the concerns that

1224
03:06:29.640 --> 03:06:32.150
Boardroom: Councilmember Taplin laid out,

1225
03:06:32.660 --> 03:06:46.690
Boardroom: I really… I really wish that all of these streets were on one list, and they were all in the 5-year paving plan together. I…

1226
03:06:47.090 --> 03:06:52.730
Boardroom: Don't think it makes sense to treat… Hopkins, Complete Street.

1227
03:06:52.900 --> 03:06:59.469
Boardroom: as any different from any of the other complete streets. I think they should all be on the 5-year paving plan together.

1228

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03:06:59.660 --> 03:07:08.969
Boardroom: I've said that it fights, too, and it's also what… I'm disappointed that that's also what TIC recommended, and it was not incorporated into this version.

1229
03:07:09.750 --> 03:07:16.729
Boardroom: So, my… I know that we need to pass this tonight,

1230
03:07:16.920 --> 03:07:20.870
Boardroom: And I'm happy to do that, but I also think that we need to come back

1231
03:07:21.170 --> 03:07:27.180
Boardroom: soon, and revisit it, because I think that it… this system…

1232
03:07:27.180 --> 03:07:45.390
Boardroom: makes it much more complicated, and it's also a new system. The previous complete streets treatments that we've done, including Milvia and the Southside Streets, were on the paving plan, and received paving plan dollars to do the asphalt piece in addition to transportation dollars from other sources.

1233
03:07:45.750 --> 03:07:50.520
Boardroom: And I don't think we should be siloing the…

1234
03:07:51.370 --> 03:07:53.979
Boardroom: pots of money like that,

1235
03:07:54.210 --> 03:08:02.450
Boardroom: as we wrote, and put forward Measure FF, the goal was to

1236
03:08:03.440 --> 03:08:11.739
Boardroom: Was to enhance the amount that the city had to fund these projects and to fund this paving, and to do it in a way that was

1237
03:08:12.380 --> 03:08:17.260
Boardroom: That was aligned with our other plans and aligned with our priorities of Safe Streets.

1238
03:08:17.570 --> 03:08:21.260
Boardroom: And… I…

1239

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03:08:21.630 --> 03:08:29.619
Boardroom: this approach was not what was envisioned, and it's not the way that I think we should do it, and I hope that we can come back and address those issues.

1240
03:08:29.970 --> 03:08:31.040
Boardroom: Thanks.

1241
03:08:31.360 --> 03:08:33.640
Boardroom: Thank you. Vice Mayor O'Keefe.

1242
03:08:35.430 --> 03:08:43.020
Boardroom: That's right, Vice Mayor. I keep forgetting. So,

1243
03:08:43.850 --> 03:08:54.150
Boardroom: Yeah, I just, I want to echo the thanks. I want to give my own thanks to all of you, Acting Director Amiri, Mr. Salonga, Mr. Mund…

1244
03:08:54.280 --> 03:09:07.200
Boardroom: Madhavan, thank you so much, and all of your people you work with. This is so much work, and actually, I want to start by saying that I… as somebody who, spends a lot of time thinking about algorithms.

1245
03:09:07.390 --> 03:09:15.520
Boardroom: I'm just really in awe of what a complicated algorithm you've been implementing. And that's exactly what it is. It's,

1246
03:09:15.670 --> 03:09:23.939
Boardroom: This is a… You're required, due to the nature of the, you know, tax dollars and equity, to…

1247
03:09:23.950 --> 03:09:41.599
Boardroom: be as methodical as possible to create… to be as equitable as possible. And there's just so many factors that go into it, and so much… so many considerations, and I really want to appreciate that, and just, you know, it's not perfect, and obviously not everyone's happy, and I acknowledge the comments of some of my colleagues are valid.

1248
03:09:41.670 --> 03:09:48.899
Boardroom: But that said, you guys did a really good job on a really, really difficult problem, and I just, I really appreciate it.

1249
03:09:49.230 --> 03:10:05.459

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Boardroom: And I specifically want to thank you, just from a District 5 perspective, which is my perspective. I want to really thank you for adding, including McGee and, Shattuck north of Vine are two small segments, that are really, really in desperate need of paving, in my district.

1250
03:10:05.550 --> 03:10:16.750
Boardroom: And those are, I believe, covered by FF. And then, of course, I have to mention, thank you very much. I'm very grateful that Hopkins is, being identified as,

1251
03:10:17.050 --> 03:10:35.539
Boardroom: a street that will be paved in 28. It's, you know, been off and on the paving plan for quite some time. It is in terrible shape. It is a major street. It's probably the worst major street in the city, and it's… and it has major safety problems, so I'm just so grateful that it is getting…

1252
03:10:35.640 --> 03:10:42.309
Boardroom: Finally getting, getting paved, and of course, we will talk about the, specifics of that in a few weeks.

1253
03:10:42.580 --> 03:10:52.489
Boardroom: So, I'm not gonna… I do want to say one thing about that, though. It's about this and about that. I want to invite my colleagues right now, while we're sort of looking at this

1254
03:10:52.490 --> 03:11:02.739
Boardroom: paving plan situation in its totality, I think we should all just really appreciate how unforgivably zero-sum this is.

1255
03:11:02.880 --> 03:11:07.439
Boardroom: Every single street that's on here is another street that's not on here.

1256
03:11:07.620 --> 03:11:21.730
Boardroom: Every dollar we spend is not getting spent somewhere else where it's needed. And I want us to think about that, because in a few weeks, when we look at Hopkins Street, we are going to choose between a treatment that is either unbelievably expensive.

1257
03:11:21.890 --> 03:11:24.429
Boardroom: Or a treatment that is…

1258

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03:11:24.490 --> 03:11:42.150
Boardroom: twice as expensive as the unbelievably expensive treatment. So, just, you know, I'm not gonna go into that more, we're gonna do that next, you know, in two weeks, but I just… this is… every dollar counts, and let's be really careful and smart with how we spend these dollars, because it's a very difficult problem to solve, and thanks again.

1259
03:11:43.110 --> 03:11:55.550
Boardroom: Thank you. Councilmember Humbert? Yes, thank you, Madam Mayor, and I mentioned before that I'd like to make a motion, and add some language to the staff recommendation and the resolution.

1260
03:11:57.560 --> 03:12:07.730
Boardroom: I'd like to add, a whereas clause, one whereas clause, and one therefore clause to the resolution, and otherwise move the staff recommendation.

1261
03:12:07.960 --> 03:12:25.859
Boardroom: Whereas at its June 23, 2026 meeting, Council identified the Traffic Signal Master Plan Transportation Fiber Optic Network, and Traffic Signal Modernization Project, and Transportation Nexus Study as unfunded needs requiring further review

1262
03:12:25.970 --> 03:12:32.879
Boardroom: by the Safe Streets Citizens Citizen Oversight Committee, SSCOC in Brands.

1263
03:12:32.970 --> 03:12:44.150
Boardroom: and City Council. Therefore, it be resolved that the Berkeley City Council directs staff to note the Traffic Signal Master Plan, Transportation Fiber Optic Network.

1264
03:12:44.150 --> 03:12:59.579
Boardroom: Traffic Signal Modernization Project and Transportation Nexus Study are preliminary Measure FF safety projects, and are subject to subsequent review and approval by the Safe Streets Citizen Oversight Committee, SSCOC,

1265
03:12:59.580 --> 03:13:22.149
Boardroom: and the City Council. And otherwise, I'd like to, with these slight amendments, move the item pursuant to the staff recommendation. Councilmember, and maybe staff also, just to confirm, that would mean that, just as we agreed to, or we discussed at the CIP conversation, that, that those pieces would go to the Measure FF

1266

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03:13:22.390 --> 03:13:27.560
Boardroom: Committee, and they would take a look at it, and then if approved, it would be added on to…

1267
03:13:27.720 --> 03:13:32.270
Boardroom: Correct. I think part of that is also City Attorney's, review.

1268
03:13:32.370 --> 03:13:37.790
Boardroom: And then if it passes that review, then we would present it to the oversight.

1269
03:13:38.360 --> 03:13:39.300
Boardroom: Great.

1270
03:13:39.300 --> 03:13:53.839
Manoj Madhavan: Can I… sorry, may I interrupt and just say that the four projects that Councilmember Humbert just mentioned, there's one that's slightly off. We're talking about the Vision Zero Action Plan Update-based implementation roadmap. That was unfunded.

1271
03:13:54.240 --> 03:13:57.930
Boardroom: Oh, right, we add that too, I'm sorry.

1272
03:13:57.930 --> 03:14:02.780
Manoj Madhavan: There are four… there's a fifth one you mentioned, which is not on that list.

1273
03:14:02.780 --> 03:14:15.950
Boardroom: There was a fifth one as well that was the transportation design element plan that, as part of the CIP, that was also asked for the review. So, just to… So there are actually 5, not 4?

1274
03:14:16.530 --> 03:14:17.920
Manoj Madhavan: There are only 4.

1275
03:14:18.530 --> 03:14:26.319
Manoj Madhavan: You mentioned another one right now, Councilmember, that is not on that unfunded project list that was passed during budget.

1276
03:14:27.010 --> 03:14:35.470
Boardroom: We'll share the slide on what… Yeah, no, I can see the slide. Is that the Transportation Fiber Optic Network?

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1277
03:14:37.470 --> 03:14:41.640
Manoj Madhavan: Correct. I think that's the one that you mentioned that is actually not unfunded.

1278
03:14:41.640 --> 03:14:52.239
Boardroom: Okay. I, I would like to make this 5 then, and that should likewise be unfunded and subject to the same process, as the other four.

1279
03:15:00.110 --> 03:15:04.249
Boardroom: Sorry, I'm just checking this slide. I just… I think just for…

1280
03:15:04.290 --> 03:15:22.420
Boardroom: clarity, I think we can just say the same… same ones that we talked about at the CIP conversation, is that right? Right, but I think we did talk about the fiber optic network at the CIP. Sure, that's fine, I just want to make sure that we're all saying the same page. Yeah, I see what you mean, yeah. Okay. Alright, very good. What's the… what's being added?

1281
03:15:22.820 --> 03:15:27.319
Boardroom: The Transportation Fiber Optic Network.

1282
03:15:28.520 --> 03:15:31.070
Boardroom: To the, to the list that's on…

1283
03:15:31.250 --> 03:15:35.110
Boardroom: Page 26 of the slide deck.

1284
03:15:35.310 --> 03:15:42.660
Boardroom: Is anything changing in the whereas or the resolve clause that you would… Yes, I guess to add…

1285
03:15:46.190 --> 03:15:48.270
Boardroom: Just those, just,

1286
03:15:48.830 --> 03:15:58.580
Boardroom: Which one did I miss? The Vision Zero. The Vision Zero actually phased implementation roadmap should be in the… in the motion.

1287
03:16:01.140 --> 03:16:02.090
Boardroom: Okay.

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1288
03:16:06.550 --> 03:16:24.980
Boardroom: Thank you. I also just want to add my thanks so much to city staff. There's just so much work that goes into this, and I understand how complicated this is, and we have so many miles of streets to go through, so I really just want to appreciate all of you for the work that you've done to put this together and to present it to us this evening.

1289
03:16:24.980 --> 03:16:31.429
Boardroom: And I know you've also had to present it in many different iterations to many different bodies, so thank you for that as well.

1290
03:16:31.430 --> 03:16:50.049
Boardroom: And of course, thank you to the public works staff who actually do the implementation and work to make this happen. So, you know, one of my policy priority areas is infrastructure, and I know that our streets, sidewalks, infrastructure are really in need of a lot of care and work.

1291
03:16:50.190 --> 03:16:52.560
Boardroom: And I'm really happy to see

1292
03:16:52.560 --> 03:17:15.420
Boardroom: the support of Measure FF funds that are being used to address the backlog of low PCI streets, as well as implementing green infrastructure projects, and also just generally happy to see, us doing so much work towards making Berkeley a safer place, especially looking at ADA improvements, repaving streets and repairing sidewalks, bike lanes, etc, all these complete street projects, thank you.

1293
03:17:15.420 --> 03:17:26.549
Boardroom: for all of that work. And just to the public, I really want to remind everyone that we have nearly $2 billion in unfunded infrastructure needs.

1294
03:17:26.550 --> 03:17:33.770
Boardroom: And that's really why we put this infrastructure bond on the ballot for November, because there's so much need that we still have as a city.

1295
03:17:33.770 --> 03:17:52.369
Boardroom: And, you know, that that bond would really help out, especially with the sidewalk repair. We've been talking about the 50-50 program, which is such a long backlog, and other pedestrian safety improvements. So, I just want to thank you all again for the work, and

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remind us, even though we've got lots to do, we're making good progress, so thank you all very much.

1296
03:17:52.370 --> 03:18:01.449
Boardroom: So I think there is… Was there a seconder? Was there a seconder for your motion? I will second. Very good. Okay, can we take a roll, please?

1297
03:18:01.830 --> 03:18:04.859
Boardroom: Okay. To adopt the,

1298
03:18:04.960 --> 03:18:19.690
Boardroom: 5-year street rehabilitation plan, and the Measure FF 5-year CIP plan, adding the Whereas clause and the Resolve Clause, introduced by Councilmember Humbert.

1299
03:18:19.690 --> 03:18:26.140
Boardroom: with the addition of the Vision Zero phased implementation roadmap into both of those.

1300
03:18:26.160 --> 03:18:34.600
Boardroom: New clauses in the resolution. So on that motion, Councilmember Kesarwani.

1301
03:18:34.600 --> 03:18:35.270
Rashi Kesarwani: Yes.

1302
03:18:35.740 --> 03:18:36.410
Boardroom: Taplin.

1303
03:18:36.410 --> 03:18:37.090
Terry Taplin: Yes.

1304
03:18:37.430 --> 03:18:42.560
Boardroom: Hartlett? Yes. Tragum? Aye. O'Keefe? Yes. Blackaby?

1305
03:18:42.560 --> 03:18:43.290
Brent Blackaby: Yes.

1306
03:18:43.890 --> 03:18:54.560

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Boardroom: Luna Parra? Yes. Humbert? Yes. And Mayor Ishii? Yes. Okay, motion carries. Thank you very much. Thank you, staff. Okay, so, yes, I know.

1307
03:18:54.560 --> 03:19:09.700
Boardroom: So, we are now moving on to item A. I'm gonna give us 5 minutes to do a little shift over, so, our staff can circle out and rent board staff can come up. So we will be back in 5-ish minutes.

1308
03:19:17.670 --> 03:19:35.309
Boardroom: Hi, everyone! Thank you again for your patience. I know it's getting late, so… or late for us. Alright, we're on item A, placing an ordinance amending the Rent Stabilization ordinance on the November 3rd, 2026 ballot, which was continued from June 30th, 2026.

1309
03:19:35.680 --> 03:19:39.430
Boardroom: And, I am gonna pass it over to Councilmember Lunapara.

1310
03:19:40.020 --> 03:19:43.679
Boardroom: Thank you, I have a presentation, if it's okay to pull it up.

1311
03:19:43.920 --> 03:19:52.760
Boardroom: Also, I'm sick and not feeling great, so apologies for any issues. You don't need to apologize for being sick and not feeling great.

1312
03:19:53.700 --> 03:19:55.559
Boardroom: Thank you. Okay.

1313
03:19:57.700 --> 03:20:05.799
Boardroom: Good evening. As the co-chair of the 4x4, I am presenting the Rent Stabilization ordinance Amendments introduced by the Rent Board.

1314
03:20:10.070 --> 03:20:22.920
Boardroom: The rent stabilization ordinance was passed by voters in 1980, which means that any changes to the ordinance must be approved by the voters. Since the Berkeley Tenant Protection and Right to Organize Act was passed in 2024,

1315
03:20:23.840 --> 03:20:37.650
Boardroom: We have seen several issues and needs for revision pop up, and these amendments are meant to clean up the ordinance and address these. The revisions needed include typos, clarifications, and inefficiencies, an avenue for fee waivers for 501c3 nonprofits.

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1316
03:20:38.230 --> 03:20:41.069
Boardroom: A change to the known removal of rights provision.

1317
03:20:41.230 --> 03:20:55.410
Boardroom: A cap on banked annual general adjustment rent increases on fully covered units to match protections for partially covered units, and lowering the right to organize threshold from 10 or more units to 5 or more units to align with other policies.

1318
03:20:56.520 --> 03:20:58.159
Boardroom: Sorry, my notes are,

1319
03:20:59.180 --> 03:21:19.360
Boardroom: These revisions passed by the Rent Board and the 4x4 Joint Task Force Committee on Housing unanimously, and in consultation with the Berkeley Property Owners Association, we have submitted a supplemental material to address their concerns, and this presentation matches that material. We also have been in close communication with the City Attorney's Office and thank them thoroughly for their collaboration.

1320
03:21:21.870 --> 03:21:28.950
Boardroom: These changes can be very complicated, so I'm trying to go through them one by one to make them as comprehensible as possible.

1321
03:21:30.030 --> 03:21:42.419
Boardroom: In the City of Berkeley, if a landlord chooses not to increase rent on a rent-controlled tenant, the annual general adjustments may compound. These banked rent increases can add up indefinitely for fully covered units.

1322
03:21:43.080 --> 03:21:56.589
Boardroom: We have seen this be an issue most commonly during landlord turnover, where a tenant who might have had a unique situation with their landlord now finds themselves with a new landlord who is willing to increase their rent 50% at a time.

1323
03:21:57.010 --> 03:22:06.610
Boardroom: This standard is inconsistent with state law protecting partially covered units, as AD 1482 caps all increases at 10% per year, regardless of banked increases over time.

1324
03:22:07.570 --> 03:22:16.139

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Boardroom: Our solution here is to apply this protection enjoyed by partially covered tenants to fully covered tenants, prohibiting over a 10% increase in a given year.

1325
03:22:16.270 --> 03:22:30.049
Boardroom: To clarify, this means that landlords do not lose banked AGAs, but may not necessarily impose them all in one year. Originally, we had tied this percent to any changes in state law, but we removed that section in the spirit of compromise and predictability for small landlords.

1326
03:22:33.080 --> 03:22:38.700
Boardroom: With the new tenant right to organize provision of the Rent Stabilization ordinance, we have come across two issues.

1327
03:22:39.060 --> 03:22:51.610
Boardroom: There has been a situation where a qualified building with a property management company forms a tenant association, and then the property management company is disbanded in an attempt to thwart the recognized union. We have clarified

1328
03:22:51.610 --> 03:23:00.089
Boardroom: Oh, thank you. We have clarified that a tenant association remains valid after a property management company no longer manages the property.

1329
03:23:00.220 --> 03:23:13.059
Boardroom: Additionally, organizers have found that 10-plus units is an arbitrary number for the threshold for tenant associations, and lowering the threshold to 5-plus units better aligns with the goal of the provision to exempt small landlords.

1330
03:23:16.600 --> 03:23:32.740
Boardroom: Currently, tenants may face, and this is the no rights of removal changes, a current issue is that tenants may face the unexpected loss of protections in the middle of their tenancy. This is most common during a turnover in ownership, where the new landlord is looking to maximize profits.

1331
03:23:32.910 --> 03:23:44.890
Boardroom: This change means that sitting tenants are protected and will continue to enjoy rent control and eviction protections, with exemptions applying as normal to future tenancies as long as the unit continues to meet requirements for exemption.

1332

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03:23:47.370 --> 03:24:01.230
Boardroom: On the nonprofits piece, the current problem is that the 2024 RSO changes, nonprofit units are fully covered by the rent stabilization ordinance, and their tenants enjoy some of the services of the rent board.

1333
03:24:01.230 --> 03:24:08.060
Boardroom: However, inadvertently, this has created a large financial burden for nonprofit housing providers, who now must pay the full fees.

1334
03:24:08.190 --> 03:24:18.790
Boardroom: Therefore, these changes would authorize the Rent Board to adopt regulations to waive or reduce fees for fully covered nonprofit units, while ensuring affordable housing tenants can continue to enjoy Rent Board services.

1335
03:24:21.390 --> 03:24:36.310
Boardroom: There are a list of, a long list of typos, language clarifications, and relatively non-substantive edits. Some of the sections of the amendments correct typographic errors, which are highlighted in red here.

1336
03:24:38.140 --> 03:24:45.760
Boardroom: These sections in blue address current inefficiencies and streamline deadline changes to better align with Rent Board practices.

1337
03:24:48.080 --> 03:24:49.860
Boardroom: Oh, I'm missing one of them.

1338
03:24:51.750 --> 03:25:05.899
Boardroom: And then the sections in orange are clarifications and non-substantive edits, including clarifying definitions, striking obsolete sections, removing outdated requirements, and allowing new developments to include rent-stabilized units if agreed by both the city and the Developer.

1339
03:25:07.980 --> 03:25:31.049
Boardroom: In the Humbert-Kesarwani supplemental, the authors brought up a potential misunderstanding of what is meant by replacement units in the rent stabilization ordinance. To clarify, and with no substantive change, I'd like to replace the existing language with design… designated as replacement units in a housing development project, as defined in SB330, to the motion to this following section.

1340
03:25:33.030 --> 03:25:36.399

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Boardroom: And I can bring this back up also if that's, helpful later.

1341
03:25:38.080 --> 03:25:42.660
Boardroom: I'm happy to answer any questions, and Rent Board staff are here to respond as well.

1342
03:25:43.290 --> 03:25:47.750
Boardroom: Thank you. Thank you. It might be helpful, actually, if…

1343
03:25:47.890 --> 03:25:55.059
Boardroom: Councilmember Kesarwani or Humbert, if you wanted to present… I know that there have been some, maybe, changes.

1344
03:25:55.890 --> 03:26:09.270
Boardroom: Sure, thank you, Madam Mayor, and yes, it's been a moving target. I want to thank Council Members Lunapara and Trey Gobin Yu, Mayor Ishii, for bringing this item forward. I want to thank the Rent Board and, you know, for all of you for

1345
03:26:09.680 --> 03:26:20.890
Boardroom: For all the hard work of making the fixes, and improving clarity, I especially want to thank Councilmember Lunapara and her staff, who have been thinking really deeply about these issues.

1346
03:26:20.890 --> 03:26:33.510
Boardroom: And from what I've seen in the supplementals and the presentation, are working extremely hard to be fair to both sides, tenants and landlords, and build consensus. I was very pleased to note that after I submitted our

1347
03:26:33.510 --> 03:26:41.239
Boardroom: own supplemental yesterday. Councilmember Lunapara had also submitted a supplemental, which addressed, really, my biggest

1348
03:26:41.240 --> 03:26:55.629
Boardroom: substantive issue with the proposal, which was golden duplexes. They're out of it, and I appreciate it. While I agree that even mom-and-pop landlords with golden duplexes should, as a matter of good practice, be providing notices to their tenants.

1349
03:26:55.650 --> 03:27:07.760
Boardroom: of the special provisions governing golden duplexes, so tenants know what the rights are. I wasn't not prepared to accept a remedy that brought such units under the jurisdiction of the Rent Board.

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1350
03:27:07.760 --> 03:27:24.200
Boardroom: I recognize there are students and others who may not be fully aware of tenant and landlord rights and responsibilities, and how these are affected by different housing types, but I don't think that would have been solved well by creating situations where soured tenant-landlord relationships drag on

1351
03:27:24.310 --> 03:27:40.940
Boardroom: I think that increased outreach and education by the Rent Board is the way to go, and I appreciate that the Rent Board already has a social media presence that they could, potentially build upon in this regard. And this is now moot, given Council members supplementals, so I'm very glad that we're moving toward consensus.

1352
03:27:41.230 --> 03:27:49.749
Boardroom: As far as the question of waiving fees for nonprofits, Councilmember Kesarwani and I in our supplemental, thought it would be cleaner just to exempt nonprofits.

1353
03:27:49.900 --> 03:28:05.419
Boardroom: But as, you know, I think as long as we can adjust the language to make it even more clear that regs and the resulting waivers would be standards-based and non-discretionary, I could support that, and I understand there may be some particular nuances that I wasn't aware of.

1354
03:28:05.420 --> 03:28:15.010
Boardroom: having to do with the language, in that regard. With regard to our language and our supplemental VATSP330 projects.

1355
03:28:15.010 --> 03:28:34.419
Boardroom: at least for me, I'm not sure whether it's, satisfactory to Councilmember Kesarwani, but for me, that it… I think Councilmember Lunapara has addressed this, and more cleanly than I did my supplemental. So, you know, I think I'm fine with that version under subsection B1,

1356
03:28:34.420 --> 03:28:43.670
Boardroom: I think the city attorney asked about this as well, and I wonder if the city attorney believes this resolves any minor ambiguity that may have existed.

1357
03:28:45.260 --> 03:28:51.520
Boardroom: The version that, Councilmember Lunaparo just read?

1358

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03:28:51.890 --> 03:29:02.870
Boardroom: Is that your… what you… Yes, that's correct, yeah. It's… okay. It has your imprimatur on it, is that right? Thank you, Madam City Attorney. Those are my comments for now. Thank you.

1359
03:29:03.390 --> 03:29:07.239
Boardroom: Thank you very much. Councilmember Kesarwani, did you have a question or a comment.

1360
03:29:07.240 --> 03:29:12.989
Rashi Kesarwani: Yes, I, I had some, questions, and I, I do wanna…

1361
03:29:13.080 --> 03:29:32.999
Rashi Kesarwani: do all the same thank yous that Councilmember Humbert has done. Thank you, to the authors, of this proposal, and I've looked at, your latest supplemental, and so it sounds like the Golden Duplex issue is now moot. I… I just… is our… is Mr. Brown the,

1362
03:29:34.170 --> 03:29:42.049
Rashi Kesarwani: the, legal… for the RENT Board on the call to answer questions.

1363
03:29:42.460 --> 03:29:43.930
Rashi Kesarwani: Matt Brown.

1364
03:29:43.930 --> 03:29:46.110
Boardroom: They're here in the room, yeah. Yes.

1365
03:29:46.110 --> 03:29:58.769
Rashi Kesarwani: Oh, okay, wonderful. Oh, I'm sorry, I couldn't see who's at the table. Thank you to the representatives at the table as well. Okay, I see. I see you now. I didn't see you before. So, so I just want to make sure I…

1366
03:29:58.770 --> 03:30:14.429
Rashi Kesarwani: I understand, there's… there's two paragraphs. I just want to get clarity of my understanding of the intent of them. So when I'm… I'm in the, Councilmember Lunapata, SUP2, the 28-page PDF, and…

1367
03:30:14.430 --> 03:30:22.320
Rashi Kesarwani: I'm on page 9 of the PDF and page 2 of the proposed ordinance changes, and it shows

1368

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03:30:22.410 --> 03:30:34.009
Rashi Kesarwani: this, you know, this language around, as set forth in California, Civil Code Section 1954.52B, and I was, you know, tracking

1369
03:30:34.010 --> 03:30:46.249
Rashi Kesarwani: all of those code references, and it looks like it relates to single-family homes that may be… oh, okay, no. So, can somebody at the table just explain in layperson's language

1370
03:30:46.650 --> 03:30:50.590
Rashi Kesarwani: that that paragraph.

1371
03:30:50.590 --> 03:30:54.560
Boardroom: Yeah, happily. Sally Albert, chair of the board.

1372
03:30:54.560 --> 03:31:17.970
Boardroom: 1954.52B is the only section of state law I can cite by memory. It's been my little pet project for the past 6 years now. Essentially, this is a provision of Costa-Hawkins that allows for a landlord or developer and a city or other public agency to agree by contract to allow a new… what would otherwise be exempt from rent control as new construction or a single-family home

1373
03:31:17.970 --> 03:31:19.990
Boardroom: to be… Covered?

1374
03:31:20.160 --> 03:31:23.869
Boardroom: but only by contract. So what this section does… Okay.

1375
03:31:23.870 --> 03:31:32.170
Rashi Kesarwani: So it is about single-family homes in some regard, but also other types of housing.

1376
03:31:32.290 --> 03:31:33.490
Boardroom: Yeah, so this same section is.

1377
03:31:33.490 --> 03:31:36.900
Rashi Kesarwani: Okay, that's what I thought, so I just wanted to confirm my understanding.

1378
03:31:38.430 --> 03:31:43.250
Rashi Kesarwani: I'm sorry, I didn't mean to cut you off, Mr. Alpert, I just, I was just chiming in.

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1379
03:31:43.850 --> 03:31:44.420
Rashi Kesarwani: Oh.

1380
03:31:44.790 --> 03:31:45.669
Rashi Kesarwani: Go ahead.

1381
03:31:45.850 --> 03:31:56.810
Boardroom: It was just gonna clarify that it only allows the city to create such a program. It doesn't direct anything to be created, so if the city were to decide to create some kind of incentive program.

1382
03:31:57.220 --> 03:32:06.850
Boardroom: giving some kind of, you know, density bonus or real financial interest in exchange for the application of rent control. It would be allowed, but it wouldn't provide for that to be created.

1383
03:32:07.890 --> 03:32:16.370
Rashi Kesarwani: Okay, so, so is it fair to say this… this paragraph doesn't have any current implication, then?

1384
03:32:17.120 --> 03:32:22.520
Rashi Kesarwani: Okay, so it is anticipating some future possibility that doesn't currently exist.

1385
03:32:22.790 --> 03:32:38.290
Boardroom: I guess what I would say is that there are some circumstances, very narrowly, where ZAB has a… in exchange for some kind of zoning variance, and Councilmember Trey, I know, has voted on some of these himself, where ZAB has, in exchange for a zoning variance.

1386
03:32:38.290 --> 03:32:48.639
Boardroom: required that the landlord or developer agree to the application of rent control. And in previous instances where that has occurred, those properties have benefited from

1387
03:32:48.640 --> 03:32:53.700
Boardroom: Kind of fake rent control, where they have the rules of rent control, but none of the services of the board.

1388
03:32:53.700 --> 03:33:11.309
Boardroom: because they're not technically allowed under our rules. And so what this would allow would be, if the landlord were, you know, wanted

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to agree to it in exchange for some kind of zoning variance, those one-off circumstances could come under the ordinance, and then it would also enable the council to create some kind of density program or other program to do that on a larger scale.

1389
03:33:12.760 --> 03:33:21.189
Rashi Kesarwani: Okay… Alright, so that was one of the paragraphs I want to understand. So it looks like it appears twice, and it's the same thing.

1390
03:33:21.320 --> 03:33:36.199
Rashi Kesarwani: Right? So it's on page 2 of the ordinance, and then page 3. So, so I'm gonna go on, and so there was one other thing I just wanted to talk through, which was… so this is page 5 of the ordinance, or page 12 of 28 of the PDF.

1391
03:33:36.220 --> 03:33:42.150
Rashi Kesarwani: So the paragraph D around no removal of rights previously established.

1392
03:33:42.510 --> 03:33:51.970
Rashi Kesarwani: So this is saying no exemption articulated in subsection C shall apply when the current tenancy commenced prior to the date of the

1393
03:33:52.310 --> 03:33:53.280
Rashi Kesarwani: the date…

1394
03:33:53.780 --> 03:34:02.979
Rashi Kesarwani: the unit met all elements of the exemption. This subsection shall not apply to any rental unit deemed exempt prior to November 3rd, 2026.

1395
03:34:03.480 --> 03:34:14.060
Rashi Kesarwani: I guess, so after a lot of, sort of, thinking this through, My sense here…

1396
03:34:14.830 --> 03:34:27.639
Rashi Kesarwani: Well, maybe I'll have Mr. Brown just confirm if… if some… if… so this is related to any two-unit situation, right? So it could be a main unit and an ADU…

1397
03:34:27.780 --> 03:34:33.839
Rashi Kesarwani: or a golden duplex, right? It's sort of like, when you have a two-unit situation that's exempt.

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1398
03:34:34.020 --> 03:34:37.359
Rashi Kesarwani: Because the property owner is on site.

1399
03:34:37.830 --> 03:34:42.629
Rashi Kesarwani: It seems like… so basically, I was trying to understand…

1400
03:34:42.970 --> 03:34:49.509
Rashi Kesarwani: the implications of this paragraph for the two-unit exempt situation. So.

1401
03:34:49.540 --> 03:35:03.460
Rashi Kesarwani: I guess to use an example, a main unit, like, you know, a main house and an ADU, and let's say it starts as exempt, because the property owner lives in one of the two units and has rented out the other unit.

1402
03:35:03.630 --> 03:35:10.689
Rashi Kesarwani: And then, if you have a situation where that property owner moves abroad for a year, let's say a sub…

1403
03:35:11.180 --> 03:35:17.790
Rashi Kesarwani: radical… Can you just clarify, Mr. Brown, does… That…

1404
03:35:18.300 --> 03:35:26.799
Rashi Kesarwani: tenant who remains there, who started the tenancy when the property owner was living there, that tenant remains exempt, correct?

1405
03:35:28.290 --> 03:35:31.170
Rashi Kesarwani: Or you just, you know, you can tell me if I'm wrong there.

1406
03:35:31.680 --> 03:35:47.120
Boardroom: Good evening, Councilmember Kastarwani. Thank you for the questions. I think it's important to distinguish a little bit between the two scenarios that you pose. The one being Golden Duplex, in which you have to answer two questions, yes, in order for the

1407
03:35:47.200 --> 03:35:52.930
Boardroom: exemption to attach. The first question being, was there an owner principally occupying

1408

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03:35:53.170 --> 03:36:06.370
Boardroom: any unit on the property on December 31st, 1979. And the second, is there a current, 50% owner principally occupying the unit? And if you can answer yes to both of those questions, then yes.

1409
03:36:06.400 --> 03:36:15.469
Boardroom: The other unit that's occupied by a tenancy would be completely exempt from any provision of the ordinance, including just cause eviction protections.

1410
03:36:15.590 --> 03:36:33.089
Boardroom: The second, scenario that you, asked about is one in which, which is clearly defined in the ordinance, where there is a single-family home with a principal unit, and an ADU, which was built, after 1980,

1411
03:36:33.090 --> 03:36:45.840
Boardroom: And that, in that situation, there was a golden duplex-like exemption. However, in the event that the owner moves out of, let's say, the principal unit, and the, tenant remains.

1412
03:36:45.930 --> 03:36:52.379
Boardroom: The tenant would not be rent-controlled, because that's a newer unit, so it would be partially covered by the ordinance anyway.

1413
03:36:52.390 --> 03:37:07.790
Boardroom: So, in the situation, that is proposed, by the board and adopted by the 4x4, in front of you today, the, the tenants, that start out in a

1414
03:37:07.850 --> 03:37:11.230
Boardroom: Non-fully exempt situation.

1415
03:37:11.350 --> 03:37:19.139
Boardroom: Would retain whatever rights they had in that situation, in the event that an owner moved in when they were not there before.

1416
03:37:20.580 --> 03:37:22.799
Boardroom: And just to clarify to your point.

1417
03:37:23.740 --> 03:37:31.769
Boardroom: the… based on the language of that, when the tenancy commenced, right? It's only for those tenancies that, at the inception of the tenancy.

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1418
03:37:31.920 --> 03:37:44.030
Boardroom: the tenant was exempt partially, had some number of rights. So, if a tenant is moving into a fully exempt situation, then there's a disruption in that exemption because the owner moves out. But then the owner returns, this section would not apply.

1419
03:37:44.090 --> 03:37:58.389
Boardroom: So that the exemption would reapply to that tenant, and there would not be rent or eviction control. And that was something we had a similar question from the Berkeley Property Zone Association, and we gave them clarifying language over email as well, to that effect.

1420
03:37:58.980 --> 03:38:14.799
Rashi Kesarwani: Okay, and thank you so much. I turned off my video because my internet was unstable, but I, you know, I'm still here listening. So, okay, so it sounds like, right, so I guess, Mr. Brown, so there's actually, like, 3 different permutations of this. There's the golden duplex situation that you…

1421
03:38:15.150 --> 03:38:33.470
Rashi Kesarwani: described, and you gave an answer to, there's the ADU situation, I guess, like, an older ADU, but pre-1980, where there's partially exempted. And then, I was sort of thinking more of these, like, really new ADUs. I guess they're post… is it post-2018 that they're fully exempt?

1422
03:38:33.880 --> 03:38:34.910
Rashi Kesarwani: ballot measure.

1423
03:38:35.070 --> 03:38:47.329
Boardroom: Pre-1980, accessory units would not be considered ADUs under the way that they're defined in the ordinance, because they existed as of 1980, and they would be considered a duplex.

1424
03:38:48.980 --> 03:38:49.320
Rashi Kesarwani: Okay.

1425
03:38:49.320 --> 03:38:56.329
Boardroom: If a newly constructed ADU, a newly constructed ADU is exempt if there is an owner in occupancy in one of the units.

1426
03:38:56.330 --> 03:39:14.310
Rashi Kesarwani: Right, right. So, and Mr. Alpert, I think the newly constructed… I believe that that date is based on a different ballot

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measure. I believe it's, you know, the November 2018 date, I believe, right? So, okay, so this is a little more complicated than I initially thought. So maybe there's…

1427
03:39:14.410 --> 03:39:28.600
Rashi Kesarwani: There's 4 different types of 2-unit situations with varying levels of exemption, perhaps. But you're saying… what this language is essentially saying is whatever you started out with is what you keep.

1428
03:39:28.670 --> 03:39:37.639
Rashi Kesarwani: Regardless of a change in situation of whether the property owner is there or not. I guess the Golden Duplex is a little nuanced and different, though.

1429
03:39:38.340 --> 03:39:51.260
Boardroom: Essentially. Correct, yeah. If you started out as a controlled or a partially covered tenancy, and an owner moves in, then your right to a controlled or partially covered tenancy is not removed.

1430
03:39:51.670 --> 03:39:52.560
Rashi Kesarwani: Okay, and is…

1431
03:39:52.560 --> 03:40:01.240
Boardroom: In the event that you do not start out that way, but they're a transient occupancy by, a principal owner, then… or rather.

1432
03:40:01.660 --> 03:40:16.079
Boardroom: principal, occupancy by a 50% owner, then those units can go in and out of exemption. The exemption, rather, the coverage only attaches based on what the unit commenced at.

1433
03:40:16.080 --> 03:40:17.420
Rashi Kesarwani: commence, and it's.

1434
03:40:17.420 --> 03:40:23.159
Boardroom: Councilmember, your time is up, so does someone want to give her some of their time? Councilmember Humbert will…

1435
03:40:23.160 --> 03:40:26.930
Rashi Kesarwani: Okay, I, I have one additional question on this.

1436
03:40:27.430 --> 03:40:33.829

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Rashi Kesarwani: point. This is my… this is my only set of questions, Mayor. I don't have further questions. So, the,

1437
03:40:35.280 --> 03:40:43.789
Rashi Kesarwani: Is this representing, this paragraph D, is it clarifying, sort of, your existing interpretation, or is it a new policy?

1438
03:40:43.790 --> 03:41:02.850
Boardroom: This is new policy, and primarily it's designed to protect tenants when there's a change in ownership. So, currently, the situation that we've seen, is, for example, take a golden duplex, where you have a golden-eligible property, so it's a duplex that would be a golden duplex if it was owner-occupied, but both units are being rented.

1439
03:41:02.850 --> 03:41:16.020
Boardroom: Both tenants have rent control and eviction control. A new owner purchases the property. They can owner move and evict one of the tenants, that tenant gets relocation benefits, they get, you know, protections. The owner moves in, suddenly the second tenant is stripped of all rights.

1440
03:41:16.020 --> 03:41:24.530
Boardroom: Because the new owner makes it a golden duplex. And so the two tenants are treated differently for arbitrary reasons. So this is particularly designed to protect that kind of situation.

1441
03:41:25.330 --> 03:41:27.830
Rashi Kesarwani: So the… okay, okay. And then,

1442
03:41:27.980 --> 03:41:41.710
Rashi Kesarwani: this is my last question about this. Can you help me understand this after November 3rd thing? So are… are you planning to treat tenancies… you're sort of… is this gonna be, like, prospective? Like, you're… so you're…

1443
03:41:41.780 --> 03:41:58.569
Rashi Kesarwani: you're basically, like, as tenancies commence after November 3rd, this is going to kick in? Is that what you're intending here? And so, if somebody does this owner move-in that you just described before November 3rd, that other tenant is going to lose their rights, I guess.

1444
03:41:58.850 --> 03:41:59.960
Boardroom: we're not…

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1445
03:42:00.260 --> 03:42:19.380
Boardroom: particularly worried about that situation. The design of the date there is not to change the status quo for a landlord-tenant relationship that already exists. So, say you had, you know, someone who moved into a golden duplex, they did have protections, then they lost those protections because the landlord moved into the other unit. We're not going to now impose protections.

1446
03:42:19.390 --> 03:42:26.240
Boardroom: on the landlord, it's only going forward when people know that these rules… So this is designed to make sure that everyone understands.

1447
03:42:27.870 --> 03:42:30.250
Rashi Kesarwani: Okay, thank you, I'll leave it at that.

1448
03:42:30.260 --> 03:42:32.269
Boardroom: Thank you. Are there other questions?

1449
03:42:33.590 --> 03:42:43.129
Boardroom: Is there any public comment on this item? We are on item A, placing an ordinance amending the rent stabilization ordinance on the November 3rd, 2026 ballot.

1450
03:42:48.920 --> 03:42:53.529
Boardroom: It's okay, if you want to let someone go before you, if you need some time, or are you ready?

1451
03:42:55.500 --> 03:43:19.360
Boardroom: Okay, yeah, I'm Terry Garrettz, and I'm a Golden Duplex owner, and I want to thank you for deciding to withdraw the language on the Golden Duplex. But I want to impress upon you how, overall, this increased regulation and modifying the stabilization ordinance every two years is crazy-making. It makes possible new

1452
03:43:19.360 --> 03:43:31.500
Boardroom: landlords, who I like to call housing providers, very likely to enter the rental market. We don't have enough housing. Stop restricting it with increased regulations.

1453
03:43:32.110 --> 03:43:34.460
Boardroom: Thank you. Okay. Thanks.

1454
03:43:39.730 --> 03:43:53.010

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Boardroom: Angela Cavanaugh with Satellite Affordable Housing Associates. We have almost 1,200 affordable units in the City of Berkeley, and we support the amendment as written by Councilmember Luna Barra.

1455
03:43:53.010 --> 03:44:04.860
Boardroom: And just appreciate all the work and consideration that the Council has done, and the Rent Board, too. They were great to work with this whole time, and we think that meets the… it meets a good balance.

1456
03:44:04.860 --> 03:44:07.730
Boardroom: In preserving tenants' rights, as well as

1457
03:44:07.760 --> 03:44:12.609
Boardroom: Helping us to maintain our well-needed services at our buildings.

1458
03:44:12.650 --> 03:44:14.349
Boardroom: Thank you. Thank you.

1459
03:44:21.090 --> 03:44:39.210
Boardroom: Good evening, Council. I'm Courtney Powell, I'm the Policy Manager with Resources for Community Development, here again to support the cleanup amendments to the Rent Stabilization ordinance on the November ballot, and particularly the amendment that Angela talked about, regarding the rent board fees for nonprofit affordable housing providers.

1460
03:44:39.210 --> 03:44:49.800
Boardroom: We're in support of the original language that Councilmember Lunapara proposed. We really appreciated working with the Rent Board, with the 4x4, with the City Council to come to this proposed solution.

1461
03:44:49.800 --> 03:45:03.930
Boardroom: that balances legal considerations with tenants' rights, with the needs of affordable housing providers. And so, we are really grateful for all the work that's been done, and look forward to hopefully seeing this on the November ballot for the voters to decide. Thank you. Thank you.

1462
03:45:06.300 --> 03:45:30.119
Boardroom: Carol Morasovic, pleased about the changes in terms of the Golden Duplex, that the exemption remains, and how the nuances were addressed here, today. We need to be focusing on larger multi-unit buildings, and not small landlords that only have a few… and of which there's only a few golden duplexes in the community anyway.

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1463
03:45:30.120 --> 03:45:31.510
Boardroom: Or a small number.

1464
03:45:31.510 --> 03:45:40.189
Boardroom: Second, I believe that the discretionary nature of waiving the fees for nonprofits should stand.

1465
03:45:40.190 --> 03:46:04.769
Boardroom: Because there may be a situation where they're out of compliance, and you want to be able to have that leverage. For example, the elevator ordinance. Many… some nonprofits, reportedly, have not been in compliance with that, has… have also some, market rate buildings. Last, I want to say that in terms of the voluntary

1466
03:46:04.770 --> 03:46:13.290
Boardroom: agreement, Ed… Thanks. Thank you. In terms of the voluntary agreement.

1467
03:46:13.430 --> 03:46:20.559
Boardroom: With, that would… developers would be able to enter into?

1468
03:46:21.040 --> 03:46:26.360
Boardroom: It seems as if there should be clearer language on that, in terms of the incentives.

1469
03:46:26.750 --> 03:46:42.760
Boardroom: So that it's more transparent. The language as is seems very convoluted. It's really not clear what's being proposed here. And it seems for the voters to fairly consider it. It should be clear what an incentive program could be.

1470
03:46:43.070 --> 03:46:45.919
Boardroom: Thank you. For transparency purposes. Thank you.

1471
03:46:46.520 --> 03:46:50.080
Boardroom: Thanks, Carol. I think there are a few folks online

1472
03:46:50.610 --> 03:46:53.390
Boardroom: Yes, first speaker is Karen Chenoy.

1473
03:46:55.090 --> 03:47:04.229

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Boardroom: And I'm going to… Oh, thank you. Yeah, I was like, I think you're standing for a reason. Okay, there you go. Alright, 2 minutes.

1474
03:47:05.210 --> 03:47:12.160
Kiran Shenoy: Thank you, thank you, Krista. Good evening, Council. I just have to say the irony here is hard to ignore.

1475
03:47:12.190 --> 03:47:27.369
Kiran Shenoy: We're being told that nonprofit landlords need an exemption from rent stabilization board fees because they can't simply raise rents to absorb those costs. In other words, the rent board is acknowledging that these fees and regulations increase rents across the city.

1476
03:47:27.460 --> 03:47:36.640
Kiran Shenoy: This is further proof that the constant tightening of Berkeley's rent stabilization ordinance is little more than lip service to the problem of housing affordability.

1477
03:47:36.760 --> 03:47:46.070
Kiran Shenoy: This measure is an admission that rent control increases rents. The result isn't greater affordability, it actually limits available housing to only the wealthiest of tenants.

1478
03:47:46.420 --> 03:48:00.880
Kiran Shenoy: Now, we appreciate the willingness to remove the proposed changes to the Golden Duplex exemption that would have harmed seniors and long-time homeowners who live alongside their tenants, but one problem remains. That's Section 13.76.050D.

1479
03:48:01.040 --> 03:48:07.599
Kiran Shenoy: Every time this council tinkers with exemptions and puts something on the ballot, it sends yet another message to homeowners.

1480
03:48:07.750 --> 03:48:17.149
Kiran Shenoy: Don't build that ADU. Don't create that duplex. Don't invest in more housing, because the rules can change after you've already made the investment.

1481
03:48:17.340 --> 03:48:36.909
Kiran Shenoy: You can streamline permits and pass zoning reform all you want, but none of it matters if homeowners don't trust that the rules they build under today will still exist tomorrow. Please remove Section 13.76.050D and move this measure forward without these unnecessary amendments. Thank you.

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1482
03:48:37.400 --> 03:48:38.480
Boardroom: Thank you, Kieran.

1483
03:48:40.930 --> 03:48:42.900
Boardroom: Next is Tony Mester.

1484
03:48:46.090 --> 03:49:00.969
Toni Mester: Good evening. I'm the owner of a golden duplex. I used to be a landlady. When they start, started to threaten, when the rent board started to threaten my exemption, I went out of business. I stopped renting.

1485
03:49:01.100 --> 03:49:13.380
Toni Mester: And I think that's what a lot of people will do when rent control, becomes so onerous and so complicated that members of the city council, like,

1486
03:49:13.520 --> 03:49:33.190
Toni Mester: Councilmember Kesarwani, who I think is a very smart lady, gets very confused by it. I… I acknowledge… I acknowledge, Rasha, your confusion. Believe me, it is such a pain to, try to figure out what the Rent Board is going to do next, but

1487
03:49:33.340 --> 03:49:50.129
Toni Mester: Wherever you have exemptions, that's fine. Make more exemptions. More exemptions means more housing. That's basically the bottom line. People will build when they're exempt from rent control. Period. Full stop.

1488
03:49:50.670 --> 03:49:52.400
Boardroom: Thanks, Tony.

1489
03:49:53.190 --> 03:49:55.700
Boardroom: Next is Stefan Elkstrand.

1490
03:49:59.560 --> 03:50:24.490
Stefan Elgstrand: Hi, good evening, Mayor and council members. This is Stefan Elkstrom, Rent Board Commissioner. Good to be back at the Council meeting, even though I'm just here virtually. I wanted just to provide some additional background as to how we got here. Before this item went to the 4x4, the full rent board, there was an ad hoc committee which I served on to develop this measure. You know, we really went into the weeds, and, you know.

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1491
03:50:24.490 --> 03:50:36.779
Stefan Elgstrand: I wanted to have a proposal that provided a thoughtful and balanced approach that incorporates the best practices and builds upon Measure BB that was approved by Berkeley voters back in 2024.

1492
03:50:36.780 --> 03:50:46.069
Stefan Elgstrand: I just wanted to, say that I appreciate the input of the Council and stakeholders to further refine this measure, and I think we're getting to a very good place.

1493
03:50:46.070 --> 03:50:57.640
Stefan Elgstrand: So, I hope that you will, place this, this item on the, on the ballot, and to let the, voters have the final say on this. Thank you, and, have a good evening.

1494
03:50:58.800 --> 03:51:05.899
Boardroom: Thank you! Nice to hear your voice, Stephan. Next speaker is Sophia DeWitt.

1495
03:51:09.040 --> 03:51:17.219
Sophia DeWitt: Hello, Mayor and Council Members, Reverend Sophia DeWitt, Chief Program Officer with EBHO.

1496
03:51:17.330 --> 03:51:22.529
Sophia DeWitt: here to support, Councilwoman Luna Para's,

1497
03:51:22.750 --> 03:51:35.579
Sophia DeWitt: Memo, and hope that you will put, these changes, to the, rent ordinance on the ballot, particularly, those that,

1498
03:51:35.650 --> 03:51:47.249
Sophia DeWitt: Provide an exemption for affordable housing providers, to the rent board fees, and, we appreciate the work

1499
03:51:47.420 --> 03:52:00.459
Sophia DeWitt: that, the committee and the 4x4 and the Rent Board did with, stakeholders, to put this approach forward. And thanks so much for your work.

1500
03:52:01.960 --> 03:52:09.570
Boardroom: Thank you very much. I think that was our final comment. Do I have any comments from my Council colleagues? Oh, I do. Councilmember Treyko.

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1501
03:52:10.400 --> 03:52:26.469
Boardroom: Thank you, Madam Mayor. I would like to appreciate Councilmember Lunapara and her staff, the Whiteboard, and the 4x4 for all of the work that has gone into this item.

1502
03:52:26.870 --> 03:52:33.369
Boardroom: I also want to acknowledge the thoughtful efforts to address stakeholder feedback.

1503
03:52:33.580 --> 03:52:37.749
Boardroom: And the item that is in front of us tonight

1504
03:52:38.150 --> 03:52:46.610
Boardroom: To be very clear, incorporate changes that have been made in close collaboration with,

1505
03:52:46.610 --> 03:53:00.499
Boardroom: advocates, and stakeholders, including, both the renter, community, and the Berkeley Property Owners Association. These comments have been reflected in the updated language.

1506
03:53:00.860 --> 03:53:06.770
Boardroom: As a former Rampport Commissioner and current member of the 4x4 Committee.

1507
03:53:07.210 --> 03:53:18.549
Boardroom: I feel strongly that this ballot measure, if placed on the ballot by the Council and adopted by voters this November, would modernize the administration of the rent ordinance.

1508
03:53:18.860 --> 03:53:22.900
Boardroom: By the rent board, such as through allowance for paperless billing.

1509
03:53:23.480 --> 03:53:28.330
Boardroom: Increase the number of renters who could avail themselves of the right to organize.

1510
03:53:28.650 --> 03:53:32.700
Boardroom: An enhanced transparency provided to prospective renters.

1511

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03:53:34.730 --> 03:53:39.449
Boardroom: I was particularly pleased to support language.

1512
03:53:39.940 --> 03:53:52.189
Boardroom: Providing the Rent Board with discretion to waive or reduce fees for residential properties leased or controlled by non-profit affordable housing providers.

1513
03:53:52.640 --> 03:54:10.479
Boardroom: And to be very clear, given some of the, public comments that have been made, this is something that I felt very strongly about, when it came to non-profit housing providers.

1514
03:54:10.650 --> 03:54:12.700
Boardroom: Because these nonprofits

1515
03:54:12.770 --> 03:54:23.240
Boardroom: Already provide an important public service to the community, and tend to already be under stringent federal requirements

1516
03:54:23.240 --> 03:54:32.909
Boardroom: to provide an affordable, habitable place for renters to live. So they are already regulated. And so the point was to…

1517
03:54:32.910 --> 03:54:51.300
Boardroom: Ensure that, as they're already regulated, that those fees, be used for, to address habitability concerns and make sure, the renters have a hospitable, habitable place to live there that is affordable.

1518
03:54:52.280 --> 03:55:09.619
Boardroom: The provision related to SB 330 addresses an ambiguity that I faced many times as a former member of the Zoning Adjustments Board. I believe my colleague, Councilmember O'Keefe, was in a similar boat.

1519
03:55:11.760 --> 03:55:32.850
Boardroom: I am supportive of, changes that have been made in consultation with the BPOA, to remove, noticing requirements, related to, the treatment of… related to Golden Duplexes or housing types that map onto the Golden Duplex framework.

1520
03:55:33.960 --> 03:55:52.059
Boardroom: Looking ahead, though, I encourage us as a city to prioritize education and outreach on that point. This is something… the noticing

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piece is something for which I have advocated since 2018, and I will continue to do so.

1521
03:55:52.170 --> 03:56:02.909
Boardroom: This is a topic that would benefit from clear guidance, and will help property owners, as well as renters, understand their rights under the law.

1522
03:56:04.580 --> 03:56:16.400
Boardroom: And I look forward to still seeing how such a noticing provision could be incorporated into the ordinance, or at minimum, how we could support a consorted educational efforts.

1523
03:56:16.460 --> 03:56:34.579
Boardroom: Perhaps along the lines of what the BPOA already provides in its model, lease, and perhaps that framework could be used to, provide that same information to those who currently do not have access to it.

1524
03:56:36.410 --> 03:56:49.529
Boardroom: I also just really want to appreciate how, just the careful, deliberate way in which, we have, this provision

1525
03:56:50.620 --> 03:57:05.610
Boardroom: has made it, continued to make it… has continued to make it easier to subdivide, ADUs where appropriate, to create new housing opportunities while ensuring that

1526
03:57:05.680 --> 03:57:24.349
Boardroom: sitting tenants can avail themselves of the same rights with which they started. And with that, I will, make a motion to support the Councilmember Lunapara, item, which I'm proud to co-sponsor. Thank you. A second from Councilmember Bartlett.

1527
03:57:24.350 --> 03:57:31.230
Boardroom: Okay, I'm so sorry, I think I just accidentally hit reset, but I believe that Councilmember Humbert was next on the queue.

1528
03:57:31.660 --> 03:57:36.090
Boardroom: Did you have comments? No, I don't. Okay, did anyone else have comments?

1529
03:57:36.960 --> 03:57:53.180
Boardroom: Okay, alright, very good. There's a motion, there's a second, no other comments. Can we… oh, you have comments? Sorry, can I just ask

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that we incorporate the language that I brought forward in the presentation, because that was not in our supplemental, about the replacement units.

1530
03:57:53.680 --> 03:58:01.350
Boardroom: Yes, as incorporated in the presentation made on the dice tonight. And I'll send it… I'll send it.

1531
03:58:02.220 --> 03:58:13.899
Boardroom: go in the ordinance, you'll… you'll have a citation as to exactly where that… Yes. Okay. Thank you. And that's okay with you, Councilmember Bartlett, as well as the seconder? Yes. Okay.

1532
03:58:14.240 --> 03:58:26.169
Boardroom: Thank you. Anything else? Okay. Alright, well, I do just want to thank you very much, so much for all of your work. I know that this was a lot to go through, and, I really do appreciate you

1533
03:58:26.340 --> 03:58:38.050
Boardroom: Meeting with folks, especially those who have reached out and, you know, coming to a place where, you know, we could agree on things. I also see, sorry, that Councilmember Blackaby has his hands up.

1534
03:58:39.180 --> 03:58:43.840
Brent Blackaby: Just wanted to be brief. I want to thank Councilmember Lunapara and the Rent Board team for bringing this forward.

1535
03:58:43.840 --> 03:59:03.340
Brent Blackaby: I share some of the feedback we've heard from the community tonight, like, you know, I do want to get to a point where I hope we can all be encouraging folks to come into the market. I do worry that we, as we continue to make changes and amend the rent stabilization, the ordinance.

1536
03:59:03.340 --> 03:59:20.550
Brent Blackaby: that the continued changes do create some instability, and I think we need to do a better job of encouraging small landlords, many of whom live in District 6, to come into the market. And there needs to be more education, more outreach, and we need to sort of be building bridges, and not sort of dividing the tenant and landlord,

1537
03:59:20.600 --> 03:59:31.799
Brent Blackaby: relationship. So, again, I support this measure mostly because it addresses a really important loophole on the nonprofit side,

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and this was a real issue and a real challenge that needed to be addressed.

1538
03:59:31.850 --> 03:59:50.919
Brent Blackaby: But I do think we all need to do a better job of trying to make this a place where people should want to be marketing small units to tenants. We have a housing crisis in this city, and we need to protect current tenants, we also need to protect future tenants. Part of protecting future tenants is making sure we have more supply of rental housing on the market.

1539
03:59:50.920 --> 04:00:05.399
Brent Blackaby: which is also supporting people who have housing and are just not currently putting on the market. So, again, I hope we can do more of that as well. That's something I'm committed to in the months ahead. I hear it all the time from people in my district. We need to do a better job of

1540
04:00:05.400 --> 04:00:16.599
Brent Blackaby: of encouraging that kind of activity and not penalizing that kind of activity. But again, I support this measure, and I want to thank Councilmember Lou Tapara and Councilmember Trago for helping to try and thread the needle here.

1541
04:00:19.320 --> 04:00:30.800
Boardroom: Thank you. Yes, so just thanking Councilmember Lenopara, the Rent Board, and Rent Board staff, our City Attorney's Office, her staff, I know we've talked to a lot of different folks over the past.

1542
04:00:31.200 --> 04:00:56.159
Boardroom: I can't remember now, a couple weeks or so. But yeah, just want to say that these cleanup items are necessary, and, I support them going to voters for approval. And I'm also very supportive of the waiver option for the 501c3 nonprofits providing affordable housing. Thank you all so much for being here and speaking, in support of this as well. These cleanup items and clarifications will be beneficial to tenants as well as to landlords, so thank you all very much, and with that, let's take a

1543
04:00:56.160 --> 04:01:00.179
Boardroom: to vote. And then, did you want to designate… Nope, sorry.

1544
04:01:00.450 --> 04:01:19.790
Boardroom: Councilmember Little Power wants to see that. So sorry, I just, I realized… I just wanted to thank my colleagues, the Rent Board, folks at the Rent Board, the City Attorney's Office, and the folks at

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BPOA, who all put in a lot of effort into getting this done, and so I just really want to thank everyone. And I'm happy to, volunteer for the…

1545
04:01:20.130 --> 04:01:25.410
Boardroom: to write the… The ballot argument?

1546
04:01:26.230 --> 04:01:29.010
Boardroom: Sorry, Councilmember Taplin, did you have a question or a…

1547
04:01:29.450 --> 04:01:32.860
Terry Taplin: I think… I'll be supporting the motion, but I wanted to just,

1548
04:01:33.770 --> 04:01:36.169
Terry Taplin: sort of reflect back. I'm hearing…

1549
04:01:36.750 --> 04:01:40.380
Terry Taplin: I'm hearing a lot of folks… or I'm hearing folks say.

1550
04:01:40.490 --> 04:01:48.060
Terry Taplin: that, you know, us returning to the voters every two years is, disruptive, and I'm recognizing the need to…

1551
04:01:48.570 --> 04:02:02.169
Terry Taplin: to be doing that now to clean up some mistakes from the… from the last cycle, and I'm wondering whether we can avoid the need for continuous cleanups and successive iterations of

1552
04:02:03.010 --> 04:02:21.060
Terry Taplin: this measure by taking more time to do a deeper, wider, more comprehensive review of the ordinance involving the various stakeholders, so that when we do go back next time… I know the report has done that, but I'm thinking about, like… and replicating the process that created the original

1553
04:02:21.260 --> 04:02:29.270
Terry Taplin: measure in the 80s. Like, a big, massive citywide process that involves all of us. So when we do these measures.

1554
04:02:30.160 --> 04:02:33.740
Terry Taplin: We can do them in… Less frequently.

1555

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04:02:47.110 --> 04:02:47.780
Boardroom: Nope.

1556
04:02:53.930 --> 04:02:56.090
Terry Taplin: I'm sorry, I can't hear anything, so if…

1557
04:02:56.090 --> 04:03:04.710
Boardroom: I'm so sorry, no, no, no. Did you want to take the role? Do you want to designate the authors to write the…

1558
04:03:04.850 --> 04:03:06.240
Boardroom: Argument in favor?

1559
04:03:07.670 --> 04:03:14.049
Boardroom: Yes, I think that, Councilmember Linapara has already offered to assist with that. Is anyone else?

1560
04:03:15.400 --> 04:03:30.890
Boardroom: Want to join? Yes. Okay. Councilmember Draco will join, and I'm happy to join as well, even though I imagine that you have something in mind already. Okay, thank you very much. That's what I was asking about, Mark. Okay. Okay.

1561
04:03:32.650 --> 04:03:47.549
Boardroom: So on the motion to place the measure on the ballot as written in, the supplemental from Councilmember Lunapara, including the, changes to the resolution and the ballot question and the text of the measure.

1562
04:03:47.760 --> 04:04:03.449
Boardroom: with a further amendment regarding, replacement units, and to designate Councilmember Lunapara, Councilmember Trego, and Mayor Ishii to author the argument in favor, on that motion, Councilmember Kesarwani.

1563
04:04:03.450 --> 04:04:04.250
Rashi Kesarwani: Yes.

1564
04:04:04.620 --> 04:04:05.790
Boardroom: Taplin?

1565
04:04:05.790 --> 04:04:06.480
Terry Taplin: Yes.

1566

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04:04:06.870 --> 04:04:09.830
Boardroom: Bartlett? Yes. Trega? Aye.

1567
04:04:10.070 --> 04:04:11.440
Boardroom: O'Keefe? Yes.

1568
04:04:11.710 --> 04:04:13.130
Boardroom: Blackaby?

1569
04:04:13.130 --> 04:04:13.790
Brent Blackaby: Yes.

1570
04:04:14.190 --> 04:04:19.059
Boardroom: Lunapara? Yes. Humbert? Yes. And Mayor Ishii? Yes.

1571
04:04:19.190 --> 04:04:30.120
Boardroom: Okay, motion carries. Alright, motion carries. Thank you so much. Thank you, everyone. Okay, so now moving on to public comment for items not listed on the agenda. Is there any other public comment this evening?

1572
04:04:31.360 --> 04:04:32.450
Boardroom: Okay, yeah.

1573
04:04:38.170 --> 04:04:46.600
Boardroom: So I always hope that we can find common ground on issues, and Councilmember Chaplin, I want to advise you that,

1574
04:04:46.770 --> 04:04:57.099
Boardroom: Amber Whitson had, contacted city staff last week. She… she generally copies me on emails that she sends out about.

1575
04:04:57.240 --> 04:05:06.380
Boardroom: A person who has moved in recently, who has brought in unscrupulous people, and has blocked the sidewalks.

1576
04:05:06.730 --> 04:05:24.950
Boardroom: with stolen bicycles, and she was unfortunately advised that she should just call the police when she sees this happen. But for an unhoused person to do that, they're very physically vulnerable, and that's why she's going to the city and saying, can you do something about this?

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1577
04:05:25.050 --> 04:05:42.809
Boardroom: So that I don't… my name doesn't have to be involved. And I also want to add, I'm, again, showing how there is common ground here, and, you are aligned on some matters. And,

1578
04:05:42.810 --> 04:05:46.450
Boardroom: In an unrelated matter, she texted me

1579
04:05:46.610 --> 04:05:50.170
Boardroom: Harrison is horrible. I hope they don't bring their shit here.

1580
04:05:50.300 --> 04:06:03.700
Boardroom: So, I just wanted you to know that you are… do have common ground. Amber was at the Spark Lot on Grayson, but she didn't receive… she was housing assessed.

1581
04:06:03.700 --> 04:06:13.209
Boardroom: But almost 4 years later, she doesn't have housing. And for her, if she were able to secure the apartment that the landlord

1582
04:06:13.220 --> 04:06:21.189
Boardroom: Prospective landlord promised her for, months ago, but is now put out on the market.

1583
04:06:21.740 --> 04:06:32.329
Boardroom: It would be cheaper than the cost of being in a motel at a time that our motel conversions are in jeopardy anyway, and may not lead to permanent housing.

1584
04:06:32.480 --> 04:06:41.769
Boardroom: That would be a lower cost for her if only someone could facilitate it through the system. Thank you. Thanks, Carol. I think there's one person online.

1585
04:06:48.140 --> 04:06:53.289
Boardroom: It's just a… oh, somebody listed as Zoom user.

1586
04:06:57.860 --> 04:07:16.519
Zoom user: Hi, it's me. Oh, it's Moni Law. I just wanted to invite everyone, it's a closure here for the fact that we have a landlord's welcome and a huge workshop with all of the organizations that service property owners in Berkeley, being hosted at the Berkeley Rent Board offices in two weeks' time, so check out your social media.

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1587
04:07:16.520 --> 04:07:21.869
Zoom user: And we will be there providing information and guidance and all the clarity that people have been talking about the last…

1588
04:07:22.020 --> 04:07:25.500
Zoom user: few minutes on this last item. So, Landlord's Workshop.

1589
04:07:25.540 --> 04:07:43.920
Zoom user: opening with all the groups that are there in one space, from room to room, and they will be able to interact and get a lot of education about how things go, and to be encouraged to enter that marketplace to provide housing if they have not started to do so. So I just want to make sure everybody puts that on their calendar. I believe it's July 22nd?

1590
04:07:44.310 --> 04:07:56.399
Zoom user: Yeah, it's a Wednesday, and it's from 10 to 11.30, I believe. But check your Instagram, your Facebook, our website, all the details are there. Thank you!

1591
04:07:57.670 --> 04:08:04.410
Boardroom: Thank you. One more with a caller with a phone number ending in 211.

1592
04:08:13.230 --> 04:08:14.679
1510****211: Hi, good evening.

1593
04:08:15.100 --> 04:08:20.340
1510****211: So, our manager is still out of town, that's why we're not able to… Connect with you today.

1594
04:08:21.110 --> 04:08:24.350
1510****211: what really all of us worry. First of all, the global warming.

1595
04:08:24.630 --> 04:08:32.039
1510****211: It's an awful situation. I've been practically 62 years, never been so cold in the summer. We have serious problems with all of this heat.

1596
04:08:32.510 --> 04:08:36.400
1510****211: in the… It's caused, as well in Europe, we were online.

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1597
04:08:36.700 --> 04:08:41.379
1510****211: And also, we'll have a master in the White House, Totally breaking all rules.

1598
04:08:41.550 --> 04:08:43.080
1510****211: Well, all rules.

1599
04:08:43.430 --> 04:08:46.749
1510****211: What are you worried about? Not myself, I don't care, live long enough.

1600
04:08:47.100 --> 04:08:48.070
1510****211: How about you?

1601
04:08:48.920 --> 04:08:51.180
1510****211: My family, your family, everybody else.

1602
04:08:51.740 --> 04:08:53.759
1510****211: Anyway, I would love to hear from you soon.

1603
04:08:54.080 --> 04:08:58.700
1510****211: And you have my number, 510-848… 5,000.

1604
04:08:59.090 --> 04:09:00.640
1510****211: Thank you, and have a good night.

1605
04:09:01.580 --> 04:09:02.790
Boardroom: Thank you.

1606
04:09:04.500 --> 04:09:10.169
Boardroom: That's all. Okay, is there a motion to adjourn? So moved. Second. Can we take the roll on that, please?

1607
04:09:10.280 --> 04:09:19.150
Boardroom: Okay… Who, who, seconder… okay. To adjourn the meeting, Councilmember Kesarwani.

1608
04:09:20.180 --> 04:09:24.769
Boardroom: Gone. She's absent. Councilmember Taplin?

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1609
04:09:24.770 --> 04:09:25.480
Terry Taplin: Yes.

1610
04:09:25.980 --> 04:09:33.150
Boardroom: Bartlett? Yes. Dreggo? Aye. O'Keefe? Aye. Yes. Blackaby? Yes.

1611
04:09:33.470 --> 04:09:39.010
Boardroom: Lunapara? Yes. Humbert? Yes. And Mayor Ishii? Yes. Okay.

1612
04:09:39.370 --> 04:09:44.740
Boardroom: Okay, thank you so much. Thank you, everyone. Meeting is adjourned.

1613
04:09:45.290 --> 04:09:50.080
Boardroom: I know when you talk about interpretation.

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